

PHOEBE DARING

by L. Frank Baum



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Title: Phoebe Daring: A Story for Young Folk

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Illustrator: Josef Pierre Nuyttens

Release date: April 10, 2017 [eBook #54529]

Most recently updated: October 23, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/54529

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DARING: A STORY FOR YOUNG FOLK ***

The Daring Twins Series

Phoebe Daring

PHOEBE DARING

by L. Frank Baum





“Shame on you all!” she cried, glaring around with righteous indignation. “How dare you attack one who is more unfortunate than yourselves!”

Phoebe Daring

A Story for Young Folk

By
L. Frank Baum

Author of "The Daring Twins," The Oz Books, "The Sea
Fairies" and Other Tales



Illustrated by Joseph Pierre Nuyttens

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Chicago

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PHOEBE DARING

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- “Shame on you all!” she cried, glaring around with righteous indignation. “How dare you attack one who is more unfortunate than yourselves!” *Frontispiece*
- “Then,” said Phoebe, “we must organize a conspiracy, we three, and help Toby without his ever suspecting it.” *Page 68*
- Lawyer Kellogg came up, triumphantly waving his hand, in which was clasped an oblong packet. “We’ve got it!” he cried, his round fat face well depicting his joy. *Page 224*
- “I’m not going to undertake that trial for nothing, Mrs. Ritchie. If you want Toby Clark imprisoned for stealing your box you’ve got to pay handsomely for it.” *Page 282*

Phoebe Daring

CHAPTER I

HOW TOBY CLARK LOST HIS JOB

“It’s a shame!” cried Becky Daring, indignantly shaking her scraggly red locks for emphasis.

“So say we all of us,” observed her brother Don in matter-of-fact tones. “But that won’t help it, Beck.”

“Wasn’t it all Judge Ferguson’s fault?” asked little Sue, listening with round, solemn eyes.

“Why, the poor old judge couldn’t help dying, you know,” said Don, judicially. “And he hadn’t an idea his candle would flicker out so soon. Old Mr. Ferguson liked Toby Clark and I’m sure, if he’d thought his own end was so near, he’d have fixed it so his clerk wouldn’t be left out in the cold.”

“And now Toby hasn’t any job, or any money, or any friends,” remarked Sue, sighing deeply.

“Yes, he has!” declared Becky. “He has me for a friend, for one, and all the village to back me up. But friends ain’t bread-an’-butter and I guess a poor cripple out of work is as bad off as if he hadn’t a friend in the world. That’s why I say it’s a shame Judge Ferguson didn’t leave him any money. It’s worse than a common shame—it’s just a *howling* shame!”

“Dear me,” said Phoebe, entering the room with a smiling glance at her younger sisters and brother, “what’s wrong now? What’s a howling shame, Becky?”

“The way Judge Ferguson treated Toby Clark.”

Phoebe's smile vanished. She went to the window and stood looking out for a moment. Then she turned and seated herself among the group.

"You've heard the news, then?" she asked.

"Yes. Doris Randolph told us the Fergusons read the will this morning, and Toby wasn't mentioned in it," replied Don.

"That is not strange," said Phoebe, thoughtfully. "Toby Clark was not a relative of the Fergusons, you know; he was just a clerk in the judge's law office."

"But he's a cripple," retorted Becky, "and he was made a cripple by saving Judge Ferguson's life."

"That is true," admitted Phoebe. "Judge Ferguson went into grandfather's vault, where he suspected all the Daring money had been hidden by old Elaine, our crazy housekeeper, and while he was in there, in company with Toby and the constable, old Elaine tried to shut the heavy door and lock them all up. Had she succeeded they would soon have suffocated; but Toby stopped the door from closing, with his foot, which was badly crushed, and so by his quick wit and bravery saved three lives—including his own. The judge was grateful to him, of course, and had he lived Toby would have remained in his law office until in time he became a partner. That his friend and patron suddenly died and so deprived Toby of further employment, was due to the accident of circumstances. I do not think anyone can be blamed."

They were silent a moment and then Sue asked: "What's going to become of Toby now, Phoebe?"

"I don't know. He hasn't any father or mother; they both died years ago, long before Judge Ferguson took the boy to work for him. The Clarks owned a little cabin down by the river—a poor place it is—and there Toby has lived and cooked his own meals while he studied law in the judge's office. He lives there yet, and since the judge died, a week ago, he has done nothing but mourn for his friend and benefactor. But Toby will find some other work to do, I'm sure, as soon as he applies for it, for everyone in the village likes him."

“Can’t we do something?” asked Becky earnestly. “We owe Toby a lot, too, for he helped the judge to save grandfather’s fortune for us.”

“We will do all we can,” replied Phoebe, positively, “but we can’t offer Toby charity, you understand. He is very proud and it would hurt him dreadfully to think we were offering him alms. I’ll ask the Little Mother about it and see what she thinks.”

That ended the conversation, for the time, and the younger Darings all ran out into the crisp October air while Phoebe went about her household duties with a thoughtful face. She and her twin, Phil, were the real heads of the Daring family, although the orphans had a “Little Mother” in Cousin Judith Eliot, a sweet-faced, gentle young woman who had come to live with them and see that they were not allowed to run wild. But Phil was now in college, paving the way for mighty deeds in the future, and Phoebe knew her twin would be deeply grieved over the sudden death of their father’s old friend, Judge Ferguson. The judge had also been their guardian and, with Cousin Judith, a trustee of the Daring estate—a competence inherited from their grandfather, Jonas Eliot, who had been one of the big men of the county. The fine old colonial mansion in which the Darings lived was also an inheritance from Grandpa Eliot, and although it was not so showy as some of the modern residences of Riverdale—the handsome Randolph house across the way, for instance—it possessed a dignity and beauty that compelled respect.

The loss of their guardian did not worry the young Darings so much as the loss of their friend, for the shrewd old lawyer had been very kind to them, skillfully advising them in every affair, big or little, that might in any way affect their interests. Mr. Ferguson—called “Judge” merely by courtesy, for he had always been a practicing lawyer—had doubtless been the most highly esteemed member of the community. For a score of years he had been the confidential adviser of many of the wealthiest families in that part of the state, counseling with them not only in business but in family affairs. In his dingy offices, which were located over the post office in Riverdale, many important transactions and transfers of property had been consummated, and the tall wooden cupboard in the lawyer’s private room contained numerous metal boxes marked with the names of important

clients and containing documents of considerable value. Yet, in spite of his large and varied practice, Mr. Ferguson attended to all his clients personally and only a young boy, Toby Clark, had been employed as a clerk during the past few years.

At first Toby swept out the office and ran errands. Then he developed an eagerness to study law, and the judge, finding the young fellow bright and capable, assisted his ambition by promoting Toby to copying deeds and law papers and laying out for him a course of practical study. In many ways Toby proved of value to his employer and Mr. Ferguson grew very fond of the boy, especially after that adventure when Toby Clark heroically sacrificed his foot to prevent them both from being hermetically sealed up in old Mr. Eliot's mausoleum, where they would soon have perished from lack of air.

Knowing ones declared that so strong was the affection between the old lawyer and his youthful clerk that Toby would surely inherit the fine law business some day. But no one realized then that the grizzled old lawyer's days were numbered. He had been so rugged and strong in appearance that it was a shock to the entire community when he was suddenly stricken by an insidious heart disease and expired without a word to even the members of his own family. Many grieved at Judge Ferguson's death, but none more sincerely than his office boy and daily companion, Toby Clark. He had no thought, at the time, of his own ruined prospects, remembering only that his one staunch friend had been taken from him.

Except that the lawyer's friendship had distinguished him, Toby was a nobody in Riverdale. The Clarks, who were not natives of the town but had strayed into it years before, had been not only poor and lowly but lacking in refinement. They had not even been considered "good citizens," for the man was surly and unsociable and the woman untidy. With such parents it was wonderful that the boy developed any ability whatever, and in his early days the barefooted, ragged urchin was regarded by the villagers with strong disapproval. Then his mother passed away and a year or so later his father, and the boy was left to buffet the world alone. It was now that he evinced intelligence and force of character. Although still considered a queer and unaccountable little fellow, his willingness to do any odd job to turn an

honest penny won the respect of the people and many gave him a day's employment just to help him along. That was how the waif came under Judge Ferguson's notice and the old lawyer, a shrewd judge of humanity, recognized the latent force and cleverness in the boy's nature and took him under his wing.

Toby wasn't very prepossessing in appearance. At nineteen years of age he was so small in size that he seemed scarcely fifteen. His hair was unruly and of a dull tow color, his face freckled and red and his nose inclined to turn up at the point. He was awkward and shuffling in manner and extremely silent and shy of speech, seldom venturing any remark not absolutely necessary. The eyes redeemed the boy in many ways. They were not large nor beautiful, but they were so bright and twinkled in such a merry, honest fashion that they won him many friends. He had a whimsical but engaging expression of countenance, and although a bad conversationalist he was a good listener and so alert that nothing seemed to escape his quick, keen glance or his big freckled ears.

"If Toby said all he knows," once remarked Will Chandler, the postmaster and village president, "he'd jabber night an' day. It's lucky for us his tongue don't work easy."

The only thing Toby inherited from his shiftless parents was a shanty down by the river bank, on property that no one had any use for, and its contents, consisting of a few pieces of cheap, much-used furniture. His father, who had won the reputation of being too lazy to work, often fished in the river, partly because it was "a lazy man's job" and partly to secure food which he had no money to purchase. The villagers said he built his shanty on the waste ground bordering the stream—at a point south of the town—for two reasons, one, because he was unsociable and avoided his fellows, the other, because it saved him a walk to the river when he wanted to fish. The house seemed good enough for Toby's present purposes, for he never complained of it; but after entering Mr. Ferguson's office the boy grew neater in appearance and always wore decent clothes and clean linen. Living simply, he could afford such things, even on the small weekly wage he earned.

The boy was ambitious. He realized perfectly that he was now a nobody, but he determined to become a somebody. It was hard to advance much in a small town like Riverdale, where everyone knew his antecedents and remembered his parents as little better than the mud on the river bank. The villagers generally liked Toby and were willing to extend a helping hand to him; but he was odd—there was no doubt of that—and as he belonged directly to nobody he was wholly irresponsible.

It is a mystery how the waif managed to subsist before Judge Ferguson took charge of him; but he got an odd job now and then and never begged nor whined, although he must have been hungry more than once.

With his admission to the law office Toby's fortunes changed. The representative of a popular attorney was entitled to respect and Toby assumed a new dignity, a new importance and a new and greater ambition than before. He read in the law books during every leisure moment and found his mind easily grasped the dry details of jurisprudence. The boy attended court whenever he was able to and listened with absorbed interest to every debate and exposition of the law. Not infrequently, during the last few months, he had been able to call Mr. Ferguson's attention to some point of law which the learned and experienced attorney had overlooked. Toby seemed to live in every case his employer conducted and in his quiet way he noted the management of the many estates held in trust by the old judge and the care with which every separate interest was guarded. The boy could tell the contents of nearly every one of the precious metal boxes arranged on the shelves of the oak cupboard, for often the lawyer would hand him the bunch of slender steel keys and tell him to get a paper from such or such a box.

This trusteeship was the largest part of Mr. Ferguson's business, for not many legal differences came to court or were tried in so small and placid a district. There were other prominent lawyers in neighboring towns and a rival in Riverdale—one Abner Kellogg, a fat and pompous little man who had signally failed to win the confidence Judge Ferguson inspired but was so aggressive and meddlesome that he managed to make a living.

CHAPTER II

HOW MRS. RITCHIE DEMANDED HER PROPERTY

Toby Clark was inexpressibly shocked when one morning he learned that his dear friend and patron had been found dead in his bed. At once the lame boy hobbled over to the Ferguson home, a comfortable house at the far end of Riverdale, to find Mrs. Ferguson prostrated with grief, and Janet, the only daughter, weeping miserably and rejecting all attempts to comfort her. So he crept back to town, mounted the stairs to the homely law offices over the post office and sat down to try to realize that the kindly face he loved would never brighten its dingy gray walls again.

All the morning and till past noon Toby sat in the silent place, where every object reflected the personality of his departed master, bemoaning his loss and living over in memory the happy days that were past. Early in the afternoon steps sounded on the stairs. A key turned in the outer door and Will Chandler, the postmaster, entered the office, accompanied by a stranger.

Toby knew that Chandler, who owned the building, usually kept Judge Ferguson's office key. Whenever the old judge, who was absent-minded at times, changed his trousers at home he would forget to change the contents of the pockets. So, to avoid being obliged to return home for his key on such occasions, he was accustomed to leave it in Chandler's keeping, where it might be conveniently found when needed. Of late years the judge had seldom required the key to the outer door, for Toby Clark was always on hand and had the offices swept, dusted and aired long before his master arrived. Mr. Chandler was a reliable man and as fully trusted by Mr. Ferguson as was Toby.

"Oh, you're here, eh?" exclaimed the postmaster, in surprise, as his eyes fell upon the boy.

Toby nodded his reply, staring vacantly.

“The Fergusons have been inquiring for you,” continued Chandler. “I believe Janet wants you at the house.”

Toby slowly rose and balanced himself on his crutch. Then he cast a hesitating glance at the stranger.

“You’ll lock up, sir, when you go away?” he asked.

“Of course,” replied Will Chandler. “I only came to show this gentleman, Mr. Holbrook, the offices. He’s a lawyer and has been in town for several days, trying to find a suitable place to locate. As poor Ferguson will not need these rooms hereafter I shall rent them to Mr. Holbrook—if they suit him.”

The stranger stepped forward. He was a young man, not more than twenty-five years of age, handsome and prepossessing in appearance. He had a dark moustache and dark, expressive eyes, and his face was cheery and pleasant to look at. In the matter of dress Mr. Holbrook was something of a dandy, but neat and immaculate as was his apparel there was little cause to criticise the young man’s taste.

“The rooms need brightening a bit,” he said, glancing around him, “but the fact that Judge Ferguson has occupied them for so long renders them invaluable to a young lawyer just starting in business. The ‘good will’ is worth a lot to me, as successor to so prominent an attorney. If you will accept the same rent the judge paid you, Mr. Chandler, we will call it a bargain.”

The postmaster nodded.

“It’s a fair rental,” said he; but Toby waited to hear no more. The daughter of his old master wanted him and he hastened to obey her summons, leaving Chandler and Mr. Holbrook in the office.

Janet was pacing up and down the sitting room, red-eyed and extremely nervous. In an easy-chair sat an elderly woman in black, stony-faced and

calm, whom Toby at once recognized as Mrs. Ritchie, who owned a large plantation between Riverdale and Bayport. She was one of Judge Ferguson's oldest clients and the lawyer had for years attended to all of the eccentric old creature's business affairs.

"This woman," said Janet, her voice trembling with indignation, "has come to annoy us about some papers."

Mrs. Ritchie turned her stolid glare upon the clerk.

"You're Toby Clark," she said. "I know you. You're the judge's office boy. I want all the papers and funds belonging to me, and I want 'em now. They're in the office, somewhere, in a tin box painted blue, with my name on the end of it. The Fergusons are responsible for my property, I know, but some of those papers are precious. The money could be replaced, but not the documents, and that's why I want 'em now. Understand? Now!"

Toby was puzzled.

"I remember the blue box marked 'Ritchie,' ma'am," said he, "but I don't know what's in it."

"All my money's in it—hard cash," she retorted, "and all my valuable papers besides. I could trust the judge with 'em better than I could trust myself; but I won't trust anyone else. Now he's gone I must take charge of the stuff myself. I want that box."

"Well," said Toby reflectively, "the box is yours, of course, and you're entitled to it. But I'm not sure we have the right to remove anything from the judge's office until an inventory has been made and the will probated. I suppose an administrator or trustee will be appointed who will deliver your box to you."

"Shucks!" cried Mrs. Ritchie scornfully; "you're a fool, Toby Clark. You can't tie up my personal property that way."

"The law, madam—"

“Drat the law! The property’s mine, and I want it now.”

Toby looked helplessly at Janet.

“That’s the way she’s been annoying me all the afternoon,” declared the girl, stifling a sob. “Can’t you get rid of her, Toby? Give her anything she wants; only make her go.”

“I’ll go when I get my property,” said Mrs. Ritchie, obstinately settling herself in the chair.

Toby thought about it.

“I might ask Lawyer Kellogg’s advice,” he said. “He wasn’t Judge Ferguson’s friend, but he knows the law and could tell us what to do.”

“Kellogg! That fat pig of a pettifogger?” cried the old woman, sniffing disdainfully. “I wouldn’t believe him on oath.”

“Never mind the law; give her the box, Toby,” implored Janet.

But Toby had a high respect for the law.

“Do you know Mr. Holbrook?” he asked.

“No,” said Janet.

“Who’s Holbrook?” inquired Mrs. Ritchie. “Never heard of him.”

“He is a young lawyer who has just come to Riverdale to practice. I think Will Chandler has rented him our offices,” explained the boy.

“Is he decent?” asked the old woman.

“I—I think so, ma’am. I’ve never seen him but once, a half hour ago. But I’m sure he is competent to advise us.”

“Go get him,” commanded Mrs. Ritchie.

“It will be better for you to come with me,” replied Toby, anxious to relieve Janet of the woman’s disturbing presence. “We will go to the hotel, and I’ll leave you there while I hunt up Mr. Holbrook. He may be stopping at the hotel, you know.”

The woman rose deliberately from her chair.

“It’s getting late,” she said. “I want to get my property and drive home before dark. Come along, boy.”

“Thank you, Toby,” whispered Janet, gratefully, as the two passed out of the room.

Mrs. Ritchie’s horse was hitched to a post in front of the house. They climbed into the rickety buggy and she drove into town and to the rambling old clapboard hotel, which was located on the main street. It was beginning to grow dusk by this time.

On the hotel porch stood the man they were seeking. Mr. Holbrook was smoking a cigarette and, with hands thrust deep in his pockets, was gazing vacantly down the street. Turning his attention to the arrivals the young lawyer seemed to recognize Toby. When the boy and the woman approached him he threw away his cigarette and bowed in deference to Mrs. Ritchie’s sex.

“I am Judge Ferguson’s clerk, sir,” began Toby.

“Yes; I know.”

“And this is Mrs. Ritchie, who employed the judge as her confidential business agent.”

“I am glad to know you, madam. Step into the hotel parlor, please. There we may converse with more comfort.”

When they had entered the parlor Toby explained the situation. Mrs. Ritchie wanted her box of private papers and Toby was not sure he had the right to give them up without legal authority.

“That is correct,” observed Mr. Holbrook. “You must have an order from the Probate Court to dispose of any property left by Judge Ferguson.”

“It’s *my* property!” snapped the woman.

“Very true, madam. We regret that you should be so annoyed. But you can readily understand that your interests are being safeguarded by the law. If anyone, without authority, could deliver your box to you, he might also deliver it to others, in which case you would suffer serious loss. There will be no difficulty, however, in securing the proper order from the court; but that will require a few days’ time.”

“There’s money in that box,” said Mrs. Ritchie. “I don’t trust those swindling banks, so the judge kept all my ready money for me. In that box are thousands of dollars in cold cash, an’ some government bonds as good as cash. I need some money to-day. Can’t this boy let me into the office so I can take what I want out of the box? I’ve got a key, if Toby Clark will open the cupboard for me. I drove to town to-day for money to pay off my hands with, and found the judge died las’ night, without letting me know. A pretty pickle I’ll be in, if the law’s to keep me from my rightful property!”

“You have no right to touch your box, Mrs. Ritchie. The boy has no right to allow you in Mr. Ferguson’s offices.”

“Never mind that; no one will know, if we keep our mouths shut.”

Mr. Holbrook smiled but shook his head.

“I am sorry you should be so distressed,” he said gently, “but the inconvenience is but temporary, I assure you. If you employ me to get the order from the court I will see that there is no unnecessary delay.”

“Humph!” said the woman, looking at him shrewdly. “Will it cost anything?”

“Merely my expenses to the city, a slight fee and the court charges.”

“Merely a job to rob me, eh? You want me to pay good money to get hold of my own property?”

“If you are in a hurry for it. Otherwise, by allowing the law to take its course, the property will be returned to you without charge.”

She considered this statement, eyeing the young man suspiciously the while.

“I’ll think it over,” was her final verdict. “To-morrow I’ll drive into town again. Don’t you blab about what I’ve told you is in that box, Holbrook. If you’re goin’ to settle in this town you’ll have to learn to keep your mouth shut, or you’ll get run out in short order. Judge Ferguson never blabbed and you’ll do well to follow his example. Come, Toby; I’m goin’ home.”

“By the way,” remarked Mr. Holbrook, addressing the boy in meaning tones, “you’d better keep out of Mr. Ferguson’s offices until after an inventory is made by the proper authorities. If you have a key, as I suspect—for I saw you in the office—get rid of it at once; for, if anything is missing, you might be held responsible.”

Toby saw the value of this advice.

“I’ll give my key to Mr. Spaythe, at the bank, for safe keeping,” he said.

“That’s right,” returned the young man, nodding approval.

“Mr. Spaythe was the judge’s best friend and I think he’ll be the executor, under the terms of the will,” continued Toby, thoughtfully.

“In any event, get rid of the key,” counseled Mr. Holbrook.

“I will, sir.”

When they were standing alone by Mrs. Ritchie’s buggy the woman asked in a low voice:

“So you’ve got the key, have you?”

“Yes,” said Toby.

“Then we’ll go to the office and get my box, law or no law. I’ll make it worth your while, Toby Clark, and no one will ever know.”

The boy shook his head, casting a whimsical smile at the unscrupulous old woman.

“No bribery and corruption for me, ma’am, thank you. I’m somewhat inclined to be honest, in my humble way. But I couldn’t do it, anyhow, Mrs. Ritchie, because Judge Ferguson always kept the key to the cupboard himself, on the same ring that he kept the keys to all the boxes.”

“Where are his keys, then?”

“At his house, I suppose.”

“Tcha! That impudent girl of his has them, an’ there’s no use asking her to give ’em up.”

“Not the slightest use, Mrs. Ritchie.”

“Well, I’m going home.”

She got into the buggy and drove away. Toby stood motionless a moment, thoughtfully leaning on his crutch as he considered what to do. Spaythe’s Bank was closed, of course, but the boy had an uneasy feeling that he ought not to keep the key to the office in his possession overnight. So he walked slowly to Mr. Spaythe’s house and asked to see the banker, who fortunately was at home.

“I’d like you to take the key to the office, sir, and keep it until it’s wanted,” he explained.

“Very well,” answered the banker, who knew Toby as the trusted clerk of his old friend Judge Ferguson.

“There’s another key,” remarked Toby. “It belonged to the judge, but he always left it in Will Chandler’s care.”

“I have that key also,” said Mr. Spaythe. “Mr. Chandler sent it to me early this afternoon, by the young lawyer who has rented the offices—Holbrook, I think his name is.”

“Yes, sir. Thank you, Mr. Spaythe.”

“I looked in at the offices a while ago and found them in good order,” continued the banker. Then he looked at Toby as if wondering if he had better say more, but evidently decided not to. Toby marked the man’s hesitation and waited.

“Good night, my boy.”

“Good night, Mr. Spaythe.”

Toby hobbled slowly to his lonely shanty on the river bank, prepared his simple supper, for he had forgotten to eat during this eventful day, and afterward went to bed. Every moment he grieved over the loss of his friend. Until after the funeral the boy, seemingly forgotten by all, kept to his isolated shanty except for a daily pilgrimage to the Ferguson house to ask Janet if there was anything he could do.

The day following the funeral the judge’s will was read and it was found that he had left his modest fortune to his wife, in trust for his only child, Janet. There were no bequests to anyone. Mr. Spaythe was named sole executor.

Toby was present during the reading of the will, but he was not surprised that he was not mentioned in it. The boy had never entertained a thought that his former master would leave him money. The judge had paid him his wages and been kind to him; that was enough. Now that the sad strain was over and the man he had known and loved was laid to rest, Toby Clark returned thoughtfully to his poor home to face a new era in his life.

The prime necessity, under the new conditions, was employment.

CHAPTER III

HOW THE DARINGS PLANNED

Phoebe Daring, who was fond of Toby Clark—as were, indeed, all of the Darings—did not forget her promise to ask the Little Mother what could be done for the boy. This “Little Mother” was Cousin Judith Eliot, scarcely more than a girl herself, who had come to live with the orphaned Darings and endeavor to train her wild and rather wayward charges in the ways they should go. The youngsters all adored Cousin Judith, yet she had no easy task, being a conscientious young woman and feeling deeply her grave responsibilities. Judith was an artist and had been studying miniature painting abroad when summoned to Riverdale by the sudden death of Mr. Daring. She painted some, still, in the seclusion of her pretty room, but was never too busy to attend to the children or to listen when they wished to consult her or to bewail their woes and tribulations.

Phoebe was no bother, for she was old enough and sufficiently mature not only to care for herself but to assist in the management of the younger ones. Phil, a frank, resourceful young fellow, was away at college and working hard. Becky was perhaps the most unruly of the lot; a tender-hearted, lovable child, but inclined to recklessness, willfulness and tomboy traits. It was hard to keep Becky “toein’ de chalk-line,” as old Aunt Hyacinth tersely put it, for restraint was a thing the girl abhorred. She fought constantly with Donald, the next younger, who always had a chip on his shoulder and defied everyone but Cousin Judith, while the clashes between Becky and little Sue—“who’s dat obst’nit she wouldn’t breave ef yo’ tol’ her she had to” (Aunt Hyacinth again)—were persistent and fearful. Before Judith came, the three younger Darings had grown careless, slangy and rude, and in spite of all admonitions they still lapsed at times into the old bad ways.

Judith loved them all. She knew their faults were due to dominant, aggressive natures inherited from their father, a splendid man who had been admired and respected by all who knew him, and that the lack of a mother's guiding hand had caused them to run wild for a while. But finer natures, more tender and trustful hearts, sweeter dispositions or better intentions could not be found in a multitude of similar children and their errors were never so serious that they could not be forgiven when penitence followed the fault, as it usually did.

A few days after the conversation recorded at the beginning of this story Phoebe went to Judith's room, where the Little Mother sat working on a miniature of Sue—the beauty of the family—and said:

“I'd like to do something for Toby Clark. We're all dreadfully sorry for him.”

“What has happened to Toby?” asked Judith.

“Mr. Ferguson's death has thrown him out of employment and it will be hard for him to find another place,” explained Phoebe. “His bad foot bars him from ordinary work, you know, and jobs are always scarce in Riverdale. Besides, Toby wants to become a lawyer, and if he cannot continue his study of the law he'll lose all the advantages he gained through the judge's help and sympathy. Our dear old friend's passing was a loss to us all, but to no one more than to Toby Clark.”

“Has he any money saved up?” asked Judith thoughtfully.

“Not much, I fear. His wages were always small, you know, and—he had to live.”

“Won't the Fergusons do anything for him?”

“They're eager to,” replied Phoebe, “but Toby won't accept money. He almost cried, Janet told me, when Mrs. Ferguson offered to assist him. He's a terribly proud boy, Cousin Judith, and that's going to make it hard for us to help him. If he thought for a moment we were offering him charity, he'd

feel humiliated and indignant. Toby's the kind of boy that would starve without letting his friends know he was hungry."

"He won't starve, dear," asserted Judith, smiling. "There's a good deal of courage in Toby's character. If he can't do one thing to earn an honest living, he'll do another. This morning I bought fish of him."

"Fish!"

"Yes; he says he has turned fisherman until something better offers. I'm sure that Riverdale people will buy all the fish he can catch, for they're good fish—we shall have some for dinner—and his prices are reasonable."

"Oh, dear; I'm so sorry," wailed Phoebe, really distressed. "The idea of that poor boy—a cripple—being obliged to carry fish around to the houses; and when he has the making of a fine lawyer in him, too!"

"Toby's foot doesn't bother him much," observed Judith, dabbing at her palette. "He limps, to be sure, and needs the crutch; but his foot doesn't hurt him, however much he uses it. Yet I think I admire his manly courage the more because the boy is capable of better things than fishing. I asked him, this morning, why he didn't apply to Lawyer Kellogg for a position; but he said the judge never liked Kellogg and so Toby considered it disloyal to his friend's memory to have any connection with the man. The chances are that he escaped a snub, for Mr. Kellogg detests everyone who loved Judge Ferguson."

Phoebe nodded, absently.

"Mr. Kellogg will have the law business of Riverdale all to himself, now," she said.

"I doubt it," replied Judith. "Toby tells me a young man named Holbrook, a perfect stranger to Riverdale, has come here to practice law, and that he has rented Mr. Ferguson's old offices."

"Oh!" exclaimed Phoebe, surprised. "Then perhaps Mr. Holbrook will take Toby for his clerk. That would be fine!"

“I thought of that, too, and mentioned it to Toby,” answered Cousin Judith; “but Mr. Holbrook said he didn’t need a clerk and refused Toby’s application.”

“Then he doesn’t know how bright and intelligent Toby is. Why should he, being a stranger? If some one would go to him and tell him how valuable the boy would be to him, after his experience with Mr. Ferguson, I’m sure the new lawyer would find a place for him.”

Judith worked a while reflectively.

“That might be the best way to help Toby,” she said. “But who is to go to Mr. Holbrook? It’s a rather delicate thing to propose, you see, and yet the argument you have advanced is a just one. A young lawyer, beginning business and unknown to our people, would find a clever, capable young fellow—who is well liked in the community—of real value to him. It seems to me that Janet Ferguson would be the best person to undertake the mission, for she has an excuse in pleading for her father’s former assistant.”

“I’ll see Janet about it,” declared Phoebe, promptly, and she was so enthusiastic over the idea and so positive of success that she went at once to the Ferguson house to interview Janet.

This girl was about Phoebe’s own age and the two had been good friends from the time they were mere tots. Janet was rather more sedate and serious-minded than Phoebe Daring, and had graduated with much higher honors at the high school, but their natures were congenial and they had always been much together.

“It’s an excellent idea,” said Janet, when the matter was explained to her. “I will be glad to call on Mr. Holbrook in regard to the matter, if you will go with me, Phoebe.”

“Any time you say, Janet.”

“I think we ought to wait a few days. Mr. Spaythe is trustee of father’s estate, you know, and he has arranged to sell the office furniture to Mr. Holbrook. To-morrow all the papers and securities which father held in trust

for his clients will be returned to their proper owners, and on the day after Mr. Holbrook will move into the offices for the first time. He is staying at the hotel, right now, and it seems to me best to wait until he is in his offices and established in business, for this is strictly a business matter.”

“Of course; strictly business,” said Phoebe. “Perhaps you are right, Janet, but we mustn’t wait too long, for then Mr. Holbrook might employ some other clerk and Toby would be out of it. Let’s go to him day after tomorrow, as soon as he has possession of the office.”

“Very well.”

“At ten o’clock, say,” continued Phoebe. “There’s nothing like being prompt in such things. You stop at the house for me at nine-thirty, Janet, and we’ll go down town together.”

The arrangement being successfully concluded, Phoebe went home with a light heart. At suppertime Donald came tearing into the house, tossed his cap in a corner and with scarcely enough breath to speak announced:

“There’s a big row down at Spaythe’s Bank!”

“What’s up, Don?” asked Becky, for the family was assembled around the table.

“There’s a blue box missing from Judge Ferguson’s cupboard, and it belonged to that old cat, Mrs. Ritchie. She’s been nagging Mr. Spaythe for days to give it up to her, but for some reason he wouldn’t. This afternoon, when Spaythe cleaned out the old cupboard and took all the boxes over to his bank, Mrs. Ritchie was hot on his trail and discovered her blue box was not among the others. It’s really missing, and they can’t find hide nor hair of it. I heard Mr. Spaythe tell the old cat he did not know where it is or what’s become of it, and she was just furious and swore she’d have the banker arrested for burglary. It was the jolliest scrap you could imagine and there’ll be a royal rumpus that’ll do your hearts good before this thing is settled, I can promise you!”

The news astonished them all, for sensations of any sort were rare in Riverdale.

“What do you suppose has become of the box?” asked Phoebe.

“Give it up,” said Don, delighted to find himself so important.

“Perhaps Mr. Ferguson kept it somewhere else; in the bank vault, or at his house,” suggested Judith.

“Nope. Spaythe has looked everywhere,” declared Don. “Old Ritchie says she had a lot of money in that box, and bonds an’ s’curities to no end. She’s rich as mud, you know, but hates to lose a penny.”

“Dear me,” exclaimed Phoebe; “can’t she hold the Fergusons responsible?” appealing to Cousin Judith.

“I’m not sure of that,” replied the Little Mother, seriously, for here was a matter that might cause their lately bereaved friends an added misfortune. “If the box contained so much of value it would ruin the Fergusons to replace it. The question to be determined is when the box disappeared. If it was there when Mr. Spaythe took possession of the office, I think he will be personally responsible.”

“I don’t know anything about that,” said Don. “I was on my way home when I heard Mrs. Ritchie screeching like a lunatic that her box was stolen. I joined the crowd and we all followed to the bank, Mr. Spaythe in his automobile with the load of boxes and Ritchie running along beside the car jawing him like a crazy woman. She called him a thief and a robber at ev’ry step, but he paid no attention. Eric Spaythe had just closed the bank when we got there, but he helped his father carry in the truck, and Mrs. Ritchie watched every box that went in and yelled: ‘That ain’t it! That ain’t it!’ while the crowd laughed an’ hooted. Then Mr. Spaythe tried to explain and quiet her, but she wouldn’t listen to reason. So Eric and his father both went into the bank and locked the woman out when she wanted to follow them. It was lots of fun, about that time. I thought she’d smash in the glass with her umbrella; but while she was screaming an’ threatening the Spaythes, Lawyer Kellogg happened to come along and he drew her aside. He

whispered to her a minute an' then they both got into her buggy an' drove away. That broke up the circus, but ev'ryone says there'll be something doing before this thing is settled, unless that lost box turns up."

The information conveyed was not entirely lucid, but sufficiently so to disturb the whole Daring family. They were not at all interested in Mrs. Ritchie, but the Fergusons were such old and close friends that there was a general impression that the lost box might cost them all the judge had left and practically ruin them.

"We know," said Phoebe, in talking it over later, "that the judge was honest. Mrs. Ritchie knew that, too, or she wouldn't have put her valuables in his keeping."

"But it seems very unbusinesslike, on his part, to keep her valuables in an old wooden cupboard," declared Judith. "Judge Ferguson was quite old-fashioned about such matters and evidently had no fear of either fires or burglars."

"They never bothered him, neither," Don reminded her. "That old cupboard's been stuffed full of valuable papers and tin boxes for years, an' not a soul ever touched 'em."

"Oak doors, strong boxes and good locks," said Phoebe; "that accounts for their past safety. Those cupboard doors are as strong as a good many safes, and as far as burglars are concerned, they manage to break in anywhere if they get the chance. I don't believe anyone but a professional burglar could steal Mrs. Ritchie's box, and no burglar would take hers and leave all the others. Still, if it wasn't stolen, where is it? That's the question."

"It's more than a question, Phoebe," replied Don; "it's a mystery."

CHAPTER IV

HOW PHOEBE BECAME WORRIED

Reflecting on the astonishing information Don had conveyed, Phoebe went to her room and sat down at a small table near the window to which was fastened a telegraph instrument, the wire leading outside through a hole bored in the lower part of the sash.

A telegraph instrument is indeed a queer thing to be found in a young girl's room, yet its existence is simple enough when explained. Riverdale was an out-of-the-way town, quite as unenterprising as many Southern towns of its class. Its inhabitants followed slowly and reluctantly in the wake of progress. They had used electric lights since only the year before, getting the current from Canton, ten miles away, where there was more enterprise and consequently more business. Canton also supplied telephone service to Bayport and Riverdale, but the cost of construction and installation was considered so high that as yet Riverdale had but three connections: one at the post office, a public toll station; one at Spaythe's bank and one at the newspaper office. The citizens thought these three provided for all needs and so they did not encourage the Canton telephone company to establish a local exchange for the residences of their village.

Some were annoyed by this lack of public interest in so convenient a utility as the telephone. The Randolphs would have liked one in their house, and so would the Darings, the Camerons, the Fergusons and a few others; but these were obliged to wait until there was sufficient demand to warrant the establishment of an exchange.

The telegraph operator of the village was a young fellow who had been a schoolmate of both Phil and Phoebe Daring, although he was some few years their elder. Dave Hunter had gone to St. Louis to study telegraphy and

afterward served as an assistant in several cities until he finally managed to secure the position of operator in his home town.

The Hunters were nice people, but of humble means, and Dave was really the breadwinner for his widowed mother and his sister Lucy, a bright and pretty girl of Phoebe's age. Encouraged by her brother's success, Lucy determined to become a telegraph operator herself, as many girls are now doing; but to avoid the expense of going to a school of telegraphy Dave agreed to teach her during his leisure hours. In order to do this he stretched a wire from his office to his home, two blocks away, and placed instruments at either end so that Lucy could practice by telegraphing to her brother and receiving messages in reply.

She was getting along famously when Phoebe Daring and Nathalie Cameron called on her one day and were delighted by her ability to telegraph to her brother.

"Why, it's as good as a telephone, and much more fun," declared Phoebe, and Nathalie asked:

"Why couldn't we have telegraphs in our own houses, and get Dave to teach us how to use them? Then we could talk to one another whenever we pleased—rain or shine."

The idea appealed to Phoebe. Lucy telegraphed the suggestion to her brother and he readily agreed to teach the girls if they provided instruments and stretched wires between the various houses. That would be quite an expense, he warned them, and they would have to get permission from the village board to run the wires through the streets.

Nothing daunted, they immediately set to work to accomplish their novel purpose. Marion Randolph, the eldest of the Randolph children, was home from college at this time and entered heartily into the scheme. They were joined by Janet Ferguson, and the four girls, representing the best families in the village, had no trouble in getting permission to put up the wires, especially when they had the judge to argue their case for them.

Dave, seeing he could turn an honest penny, undertook to put up the wires, for there was not enough business at the Riverdale telegraph office to demand his entire time and Lucy was now competent to take his place when he was away. He connected the houses of the Darings, the Randolphs, the Camerons and the Fergusons, and then he connected them with his own home. For, as Lucy was the original telegraph girl, it would never do to leave her out of the fun, although she could not be asked to share the expense.

Lucy seemed a little embarrassed because Dave accepted money for his work and for teaching the four girls how to operate. "You see," she said one day when they were all assembled in her room, "Dave has lately developed a money-making disposition. You mustn't breathe it, girls, but I've an idea he's in love!"

"Oh, Lucy! In love?"

"He's been very sweet on Hazel Chandler, the postmaster's daughter, of late, and I sometimes think they've had an understanding and will be married, some day—when they have enough money. Poor Hazel hasn't anything, you know, for there are so many in the Chandler family that the postmaster's salary and all they can make out of the little stationery store in the post office is used up in living."

"It's used up mostly by Mrs. Chandler's social stunts," declared Nathalie. "She's proud of being the leader of Riverdale society, and a D. A. R., and several other things. But doesn't Hazel get anything for tending the shop and handing out the mail when her father is away?"

"Not a cent. She's lucky to get her board. And when she's not in the shop her mother expects her to do housework. Poor thing! It would be a relief to her to marry and have a home of her own. I hope Dave'll manage it, and I'd love to have Hazel for a sister," said Lucy. "Mind you, girls, this is a secret; I'm not even positive I'm right in my suspicions; but I wanted to explain why Dave took the money."

"He was perfectly right in doing so, under any circumstances," declared Phoebe, and the others agreed with her.

Phoebe and Marion learned telegraphy very quickly, developing surprising aptitude; Nathalie Cameron was not far behind them, but Janet Ferguson, a remarkably bright girl in her studies, found the art quite difficult to master and made so many blunders that she added materially to the delight they all found in telegraphing to one another on all possible occasions. When Marion went back to college the other four continued to amuse themselves by gossiping daily over the wire; but gradually, as the novelty of the thing wore away, they became less eager to use their lately acquired powers and so, at the period of this story, the click of an instrument was seldom heard except when there was some question to ask or some real news to communicate. By concerted arrangement they were all alert to a "call" between six and seven in the evening and from eight to nine in the mornings, but their trained ears now recognized the click-click! if they were anywhere within hearing of it.

Cousin Judith was much amused and interested in this odd diversion of Phoebe's, and she recognized the educational value of the accomplishment the girl had acquired and generously applauded her success. Indeed, Phoebe was admitted the most skillful operator of them all. But aside from the amusement and instruction it furnished, the little telegraph circuit was of no practical value and could in no way be compared with the utility of the telephone.

On this evening, after hearing the exciting news of the loss of Mrs. Ritchie's box, Phoebe went to her room with the idea of telegraphing to Janet and asking about the matter. But as she sat down before the instrument she remembered that the Ferguson household was a sad and anxious one just now and it was scarcely fitting to telegraph to her friend in regard to so personal and important an affair. She decided to run over in the morning for a quiet talk with Janet and meantime to call the other girls and ask them for further news. She got Lucy Hunter first, who said that Dave had come home full of the gossip caused by the missing box, but some one had come for him and he had suddenly gone away without telling the last half of his story.

Then Phoebe, after a long delay, got Nathalie Cameron on the wire and Nathalie had a lot to tell her. Mr. Cameron was a retired manufacturer who

was considered quite wealthy. Several years ago he had discovered Riverdale and brought his family there to live, that he might “round out his life,” as he said, amid quiet and peaceful scenes. He was a director in Spaythe’s bank, as had been Judge Ferguson. Mr. Cameron also owned a large plantation that adjoined the property of Mrs. Ritchie, on the Bayport road. Nathalie told Phoebe that the Cameron box, containing many valuable papers but no money, had also been in the judge’s cupboard, but Mr. Spaythe had reported it safe and untampered with. Nor had any box other than Mrs. Ritchie’s been taken. So far as they knew, the Ritchie box was the only one in Mr. Ferguson’s care that contained money, and it seemed as if the thief, whoever he might be, was aware of this and so refrained from disturbing any of the others. This theory, reported Nathalie, was sure to limit the number of suspects to a possible few and her father was positive that the burglar would soon be caught. Mr. Cameron had been at the bank and witnessed Mrs. Ritchie’s display of anger and indignation when her box could not be found. He had thought Mr. Spaythe rather too cold and unsympathetic, but the banker’s nature was reserved and unemotional.

“Father says the woman was as good as a vaudeville,” continued Nathalie, clicking out the words, “but not quite so circumspect—so you can imagine the scene! She is said to be rich and prosperous, but was furious over her loss and threatened Mr. Spaythe with so many horrible penalties, unless he restored her property, that he had to take refuge inside the bank and lock the door on her.”

This was merely such gossip as Phoebe had heard from Don, but it was interesting to have the details from another viewpoint.

To understand the excitement caused by the disappearance of Mrs. Ritchie’s box it is only necessary to remember that Riverdale is a sleepy old town where anything out of the ordinary seldom happens. In a big city such an occurrence would be a mere detail of the day’s doings and the newspapers would not accord it sufficient importance to mention it in a paragraph; but in Riverdale, where a humdrum, droning life prevailed, the mysterious incident roused the entire community to a state of wonder and speculation. The theft, or loss, or whatever it was, became indeed the “talk of the town.”

The principals in the scandal, moreover, were important people, or as important as any that Riverdale possessed. Mrs. Ritchie owned one of the largest plantations—or “farms”—in the neighborhood, left her long ago by her deceased husband; Mr. Spaythe was the local banker; Judge Ferguson had been known and highly respected far and wide. Therefore the weekly newspaper in the town was sure to print several columns of comment on the affair, provided the tipsy old compositor employed by the editor could set so much type before the paper went to press.

The following morning Phoebe walked over to see Janet and found that the Fergusons were face to face with a new and serious trouble. It was true that the Ritchie box had vanished and no one could imagine where it had gone to.

“Papa was very orderly, in his way,” said Janet, “and he had a book in which he kept a complete list of all papers and securities in his care and a record of whatever he delivered to the owners. Mrs. Ritchie’s account shows he had received money, bonds and mortgages from her, amounting in value to several thousand dollars, and these were kept in a heavy tin box painted blue, with the name ‘Ritchie’ upon it in white letters. With many similar boxes it was kept in the oak cupboard at the office, and my father always carried the keys himself. We gave these keys to Mr. Spaythe because we knew he was father’s executor, and he found all the boxes, with their contents undisturbed, except that of Mrs. Ritchie. It is very strange,” she added, with a sigh.

“Perhaps the judge removed it from the cupboard just before his—his attack,” said Phoebe. “Have you searched the house?”

“Everywhere. And it is not among father’s papers at the bank. One of the most curious things about the affair,” continued Janet, “is that Mrs. Ritchie came to the house the very day after father’s death to demand her box, and she was so insistent that I had to send for Toby Clark to take her away. No one else bothered us at all; only this woman whose property was even then missing.”

“Are you sure she didn’t go to the office and get the box?” asked Phoebe, suddenly suspicious of this queer circumstance.

“Why, she hadn’t the keys; nor had Toby. Mr. Spaythe found the cupboard properly locked. On the bunch of small keys which father carried is one labelled ‘Ritchie,’ and it proved there was a complicated lock on the box which could not have been picked.”

“That’s nothing,” returned Phoebe. “Whoever took the box could break it open at leisure. It was merely tin; a can-opener would do the job.”

“Yes; I’m sure that was why the entire box was taken away. It was the only one that contained money to tempt a thief. Mrs. Ritchie, for some reason, never trusted banks. She has some very peculiar ideas, you know. Whenever she needed money she came to father and got it out of the box, giving him a receipt for it and taking a receipt when she deposited money. The record book shows that she had about three thousand dollars in currency in her box when it—disappeared; and there were government bonds for several thousands more, besides notes and mortgages and other securities.”

“Can she hold you responsible for this property?” inquired Phoebe.

“Mr. Spaythe says that she can, but he is confident she will not attempt to collect it from us. He was here this morning and had a long talk with mother. He assured her the box will surely be found in time, and told her not to worry. We are liable to suffer our greatest annoyance from Mrs. Ritchie, who won’t be patient and wait for an investigation. The woman is very nervous and excitable and seems to think we are trying to defraud her.”

“I—I don’t suppose there is anything I can do?” said Phoebe helplessly.

“No, dear; nothing at all. Mr. Spaythe says not to pay any attention to Mrs. Ritchie and has asked us not to talk about the affair until the mystery is solved. If anyone asks questions we must refer them to Mr. Spaythe. So you mustn’t repeat what I’ve told you, Phoebe.”

“I won’t. Don says Mrs. Ritchie went away with Lawyer Kellogg last night.”

“I suppose Mr. Kellogg would like to take her case and make us all the trouble he can,” replied Janet bitterly.

“Why doesn’t Mr. Spaythe see Mr. Holbrook?” asked Phoebe.

“I don’t know. Perhaps he has seen him. Anyhow, I’m sure Mr. Spaythe will do everything in his power to find the box. He was one of father’s best friends and we know him to be an honorable man and very capable in all ways. We feel that we may trust Mr. Spaythe.”

Phoebe did not reply to this. She was wondering if anyone could be trusted in such a peculiar complication.

CHAPTER V

HOW PHOEBE INTERVIEWED THE LAWYER

Phoebe Daring returned home more mystified than ever in regard to the missing box. The girl was by nature logical and inquiring and aside from the interest she felt in the Fergusons the mystery appealed to her curiosity and aroused in her a disposition to investigate it on her own account. That day, however, there was no development in the affair. Mrs. Ritchie kept out of sight and aside from the gossip indulged in by the villagers concerning the discreditable scene at the bank the night before, the excitement incident to the loss of the precious blue box seemed to have subsided. Don and Becky reported that all the school children were talking about the lost box and that many absurd statements were made concerning its disappearance.

“I had to punch one of the fellows for saying that Judge Ferguson spent Mrs. Ritchie’s money and then committed suicide,” announced Don. “He took it back, afterward, and said that Kellogg robbed the judge for revenge. There may be some truth in that, for Kellogg paid his board bill the other day. Another kid said he dreamed it was Will Chandler, the postmaster, who cut a hole through the ceiling of the post office and so got into the judge’s cupboard. Nearly everybody in town is accused by somebody, they say, and I wouldn’t be surprised to hear that I stole the box myself.”

“I don’t believe there *was* any box,” muttered Becky. “Ol’ Mam Ritchie’s half crazy, an’ I guess she just imagined it.”

“Wake up, Beck,” said Don; “you’re dreaming.”

“That proves I’ve a brain,” retorted his sister. “No one can dream who hasn’t a brain; which is the reason, my poor Don, you never dream.”

“He snores, though,” declared Sue.

“I don’t!” cried Don indignantly.

“You snore like a pig; I’ve heard you.”

“Never!”

“I’ll leave it to Becky,” said Sue.

“If she sides with you, I’ll pinch her till she’s black-an’-blue,” promised Don angrily.

“I dare you,” said Becky, bristling at the threat.

“Now—now!” warned Phoebe; “there’ll be a fight in a minute, and some one will be sorry. Cool off, my dears, and don’t get excited over nothing. Have you got your lessons for to-morrow?”

At nine thirty next morning Janet Ferguson stopped at the house, as she had promised to do, and Phoebe put on her things and joined her friend on the way to town, to interview Mr. Holbrook.

“Any news?” asked Phoebe.

Janet shook her head.

“We haven’t heard from Mr. Spaythe since I saw you. Mother’s dreadfully nervous over the thing, which followed so soon after father’s death. I hope Mrs. Ritchie’s box will be found, for it would relieve us both of much anxiety.”

“I hope so, too,” replied Phoebe.

When they arrived at the well-known stairway leading to the offices which Judge Ferguson had occupied for so many years, Janet was rather shocked to find a showy new sign suspended above the entrance. It bore the words: “JOHN HOLBROOK, Attorney at Law,” and another but smaller tin sign was tacked to the door at the head of the stairs.

Phoebe knocked and a voice bade them enter. Mr. Holbrook was seated at a table with several law books spread open before him. But he sat in an easy attitude, smoking his cigarette, and both the girls decided the array of legal lore was intended to impress any clients who might chance to stray into the office.

“I am Miss Ferguson,” said Janet in stiff and formal tones. He bowed and tossed his cigarette through the open window, looking at Janet rather curiously and then turning to Phoebe. “Miss Daring, sir.”

He bowed again, very courteously, as he placed chairs for them. Somehow, they felt relieved by his polite manner. Neither had expected to find so young a man or one so handsome and well dressed and it occurred to Phoebe to wonder why Mr. Holbrook had selected this out-of-the-way corner, where he was wholly unknown, in which to practice law. Riverdale was normally an exceedingly quiet town and possessed few attractions for strangers.

Janet began the conversation.

“We have come to see you in regard to Toby Clark,” she said. “He was in my father’s employ for several years, first as office boy and then as clerk, and Judge Ferguson thought very highly of him and trusted him fully. Toby injured his foot a year ago and limps badly, but that doesn’t interfere much with his activity, and so we thought—we hoped—”

She hesitated, here, because Mr. Holbrook was looking at her with an amused smile. But Phoebe helped her out.

“Toby is without employment, just now,” she explained, “and we believe it will be to your advantage to secure him as an assistant.”

“The young man has already applied to me,” said the lawyer. “I was obliged to decline his application.”

“I know,” said Phoebe; “but perhaps you did not realize his value. Toby is very popular in Riverdale and knows every one of Judge Ferguson’s former clients personally.”

“I do not need a clerk,” returned Mr. Holbrook, rather shortly.

“But you are a stranger here and you will pardon my saying that it is evident you wish to secure business, or you would not have opened a law office. Also you are anxious to succeed to Judge Ferguson’s practice, or you would not so promptly have rented the office he had occupied. Nothing will help you to succeed more than to employ Toby Clark, who was the judge’s old clerk and knew a good deal about his law business. Toby is as much a part of the outfit of this office as the furniture,” she added with a smile.

“I thank you for your consideration of my interests,” said Mr. Holbrook.

Phoebe flushed.

“I admit that we are more interested, for the moment, in Toby Clark,” she replied. “Like everyone else in Riverdale who knows the boy, we are fond of him, and so we want him to have the opportunity to continue his studies of the law. He is very poor, you know, and cannot afford to go to college just yet; so nothing would assist him more than for you to employ him, just as Judge Ferguson did.”

Mr. Holbrook drummed with his fingers on the table, in an absent way. He was evidently puzzled how to answer this fair pleader. Then he suddenly straightened up, sat back in his chair and faced the two girls frankly.

“I am, as you state, an entire stranger here,” said he, “and for that reason I must tell you something of myself or you will not understand my refusal to employ Toby Clark. I—”

“Excuse me,” said Janet, rising; “we did not intend to force your confidence, sir. We thought that perhaps, when you were informed of the value of my father’s clerk, you might be glad to employ him, and we would like to have you do so; but having presented the case to the best of our ability we can only leave you to decide as you think best.”

“Sit down, please, Miss Ferguson,” he replied earnestly. “It is indeed to my advantage to make friends in Riverdale, rather than enemies, and as I am unable to employ Toby Clark you are likely to become annoyed by my

refusal, unless you fully understand my reasons. Therefore I beg you will allow me to explain.”

Janet glanced at Phoebe, who had remained seated. Her friend nodded, so Janet sat down again. The truth was that Miss Daring was curious to hear Mr. Holbrook’s explanation.

“I’ve had my own way to make in the world,” began the young man, in a hesitating, uncertain tone, but gathering confidence as he proceeded. “There was no one to put me through college, so I worked my way—doing all sorts of disagreeable jobs to pay expenses. After I got my degree and was admitted to the bar I was without a dollar with which to begin the practice of law. Yet I had to make a start, somehow or other, and it occurred to me that a small town would be less expensive to begin in than a city. During the past summer I worked hard. I don’t mind telling you that I tended a soda-fountain in St. Louis and remained on duty twelve hours a day. I earned an excellent salary, however, and by the first of October believed I had saved enough money to start me in business. Seeking a small and desirable town, I arrived in Riverdale and liked the place. While hesitating whether or not to make it my permanent location, Judge Ferguson died, and that decided me. I imagined I might find a good opening here by trying to fill his place. I rented these offices and paid a month’s rent in advance. I purchased this furniture and the law library from Mr. Spaythe, the executor, and partly paid for it in cash. My board at the hotel is paid for up to Saturday night, and I had some letterheads and cards printed and my signs painted. All this indicates me prosperous, but the cold fact, young ladies, is that I have at this moment exactly one dollar and fifteen cents in my pocket, and no idea where the next dollar is coming from. Absurd, isn’t it? And amusing, too, if we consider it philosophically. I’m putting up a good front, for a pauper, and I’m not at all dismayed, because I believe myself a good lawyer. I’ve an idea that something will occur to furnish me with a paying client in time to save the day. But you can readily understand that under such circumstances I cannot employ a clerk, even at a minimum salary. I must be my own office-boy and errand-boy until my living expenses are assured and I can see the week’s wage ahead for my assistant. And now, Miss Ferguson and Miss Daring, you have the bare facts in the case and I hope you will be able to forgive me for refusing your request.”

The girls had listened in some amazement, yet there was little in Mr. Holbrook's ingenuous statement to cause surprise. Such a condition was easily understood and quite plausible in this aggressive age. But the story affected the two girls differently. Janet developed an admiration for the bold, masterful way in which this impecunious young fellow had established himself. Such a combination of audacity and courage could scarcely fail to lead him to success.

Phoebe, on the other hand, thought she detected a false note running through the smooth recital. It seemed to her that Mr. Holbrook had either invented the entire story on the spur of the moment or was holding something back—perhaps both—for reasons of his own. She did not doubt the main point of the story, that he was absolutely penniless and dependent upon the uncertainties of his law business for a living; but she felt sure he had not confided to them his actual history, or any important details of his past life. She reflected that this young fellow wore expensive clothes and that every detail of his apparel, from the patent-leather shoes to the white silk tie with its jeweled stick-pin, denoted extravagance rather than cautious economy, such as he had claimed he had practiced. A silk-lined overcoat hung upon a peg and beside it was a hat of better quality than the young men of Riverdale wore. A taste for expensive clothes might be a weakness with the lawyer, and while Phoebe hesitated to condemn him for the endeavor to present a prosperous appearance she could not help thinking he would have saved a good deal more money as soda-water clerk had he been content with more modest attire. Imagine dapper Mr. Holbrook a soda-water clerk! Phoebe was almost sure that was one of the inventions. Yet she, as well as Janet, admitted the frank and winning personality of the young lawyer and felt she knew and appreciated him better since listening to his story.

“Of course,” continued Holbrook, a little anxiously, “this confidence places me at a disadvantage in your eyes. If Riverdale knows me as you do I shall be ruined.”

“We shall respect your confidence, sir,” said Janet, less stiffly than before, “and we now fully understand why you cannot, at present, employ Toby Clark. Perhaps, by and by—”

“If I succeed, I shall give Toby the first job in my office,” he promised earnestly.

“Thank you, sir. Come, Phoebe.”

But Phoebe again refused to stir. She was pondering something in her mind and presently gave it expression.

“Toby Clark,” said she, “injured his foot while endeavoring to serve the family fortunes of the Darings, so we are really under serious obligations to the boy. But he is so proud and shy, Mr. Holbrook, that were we to offer him assistance at this crisis in his affairs, he would be hurt and humiliated. And he would refuse to accept any help that savored of charity.”

Mr. Holbrook nodded, smiling at her.

“I understand that disposition, Miss Daring,” said he, “for I have similar qualities of independence myself.”

“Yet something must be done for Toby,” she continued, “or else the boy will lose all the advantages of his former association with Judge Ferguson and perhaps starve or freeze when the cold weather comes on. From your explanation, sir, and the promise you have just made to Miss Ferguson, I understand your sole reason for not employing Toby is the lack of money with which to pay his wages. Is that correct?”

“Entirely so, Miss Daring. I appreciate the advantages of having this young fellow with me, since he is so well acquainted hereabouts and is somewhat posted in Mr. Ferguson’s business affairs; but—”

“Then,” said Phoebe, “we must organize a conspiracy, we three, and help Toby without his ever suspecting it. We Darings are not wealthy, Mr. Holbrook, but we have more means than we absolutely require and it will be a great pleasure to us to pay Toby Clark’s salary as your clerk until you become prosperous enough to pay it yourself. Judge Ferguson was not over-liberal in the matter of wages and gave Toby but five dollars a week in money; but he also gave him a wealth of kindly sympathy and much assistance in the study of law. I want you to hire Toby at the same wages—

five dollars a week—and try to assist him at odd times as the judge did. No one but we three shall ever know how the wages are supplied, and especially must the secret be guarded from Toby. What do you say to this proposition, Mr. Holbrook?”

Janet was filled with admiration of this clever idea and looked appealingly at the young man. Mr. Holbrook flushed slightly, then frowned and began drumming on the table with his fingers again. Presently he looked up and asked:

“Will this arrangement be a source of satisfaction to you young ladies?”

“It will give us great pleasure,” declared Phoebe.

“And it will be splendid for Toby,” added Janet.

“Do you also realize that it is an assistance to me—that it will add to the false evidences of my prosperity?” inquired the young man.

“Oh, I was not considering you at all,” said Phoebe quickly, fearing he might refuse. “I was only thinking of Toby; but if you find any advantage in the arrangement I hope it will repay you for your kindness to our friend—and to ourselves.”



“Then,” said Phoebe, “we must organize a conspiracy, we three, and help Toby without his ever suspecting it.”

Mr. Holbrook smiled. Then he nodded cheerfully and replied:

“It would be very ungracious of me to say no, under such quaint conditions, and therefore we will consider the matter as settled, Miss Daring.”

“I will send you a check for twenty dollars, which will be four weeks’ wages for Toby, in advance,” she said. “And each month I will send you twenty more, until you notify me you are able to assume the obligation yourself.”

He shook his head, still smiling.

“Send me five dollars each week,” said he. “Otherwise, in my present circumstances, I might be tempted to spend Toby’s wages on myself.”

“Very well, if you prefer it so.” Then, half turning toward the door, she added: “I thank you, Mr. Holbrook. Your coöperation in this little conspiracy of mine has relieved me of a great anxiety; indeed, it will give pleasure to all who know Toby Clark and are interested in his welfare. I shall not forget that we owe you this kindness.”

He bowed rather gravely in acknowledgment of this pretty speech and then they heard hasty steps mounting the stairs and the door opened abruptly to admit Mr. Spaythe.

CHAPTER VI

HOW TOBY CAME TO GRIEF

The banker of Riverdale was perhaps the most important personage in the community, not even excepting Will Chandler. A man of considerable wealth and sterling character, Mr. Spaythe was greatly respected by high and low and was deemed reliable in any emergency. In character he was somewhat stern and unyielding and his sense of justice and honor was so strong that he was uncharitably bitter and harsh toward any delinquent in such matters. As an old friend of the late Judge Ferguson he had accepted the responsibilities of administering his estate and was engaged in fulfilling his duties with businesslike celerity and exactness when the unpleasant incident of Mrs. Ritchie's missing box came up to annoy him. Mr. Ferguson's affairs were in perfect order; Mr. Spaythe knew that the box had disappeared since his demise; but the affair required rigid investigation and the banker had undertaken to solve the mystery in his own way, without confiding in or consulting anybody.

Mr. Spaythe was usually so deliberate and unexcitable in demeanor that his sudden entrance and agitated manner made both the girls, who knew him well, gasp in astonishment. He seemed to be startled to find them in young Mr. Holbrook's office and his red face took on a deeper glow as he stared first at one and then at the other.

"We were just going," said Phoebe, understanding that Mr. Spaythe had come to see the lawyer, and then both the girls bowed and turned toward the door.

"One moment, please," said the banker earnestly, as he held out an arm with a restraining gesture. "A most extraordinary thing has happened, in which you will doubtless be interested. Mrs. Ritchie has just had Toby Clark arrested for stealing her box!"

Phoebe sank into a chair, weak and trembling, and as she did so her eyes swept Mr. Holbrook's face and noticed that it flushed scarlet. But the wave of color quickly receded and he turned a look of grave inquiry upon Mr. Spaythe.

"How absurd!" exclaimed Janet indignantly.

"Yes, it is absurd," agreed the banker, in a nervous manner, "but it is quite serious, as well. I am sure Toby is innocent, but Mrs. Ritchie has employed Abner Kellogg as her counselor and Kellogg would delight in sending Toby to prison—if he can manage to do so."

"That box must be found!" cried Phoebe.

Mr. Spaythe frowned.

"It *has* been found," he rejoined bitterly.

"Where?"

"In a rubbish-heap at the back of Toby Clark's shanty, down by the river. It is Mrs. Ritchie's box, beyond doubt; I have seen it; the cover had been wrenched off and—it was empty."

The two girls stared at one another in speechless amazement. Mr. Holbrook stood by his table, watching them curiously, but he did not seem to share their astonishment. Mr. Spaythe sat down in a chair and wiped his forehead with a handkerchief.

"Who arrested Toby?" asked Janet.

"Parsons, the constable. The warrant was issued by Powell, a justice of the peace, on a sworn statement made by Mrs. Ritchie and Abner Kellogg."

"And Sam Parsons—Toby's friend—has put him in jail?"

"Yes; he was obliged to do that, you know."

Phoebe was gradually recovering her composure.

“He can be bailed out, I suppose,” she suggested.

Mr. Spaythe turned to the lawyer.

“That is what I have come to see you about, Mr. Holbrook,” he said. “Since this remarkable development in the matter of the missing box, I shall be obliged to employ counsel. I would like to engage you to defend Toby Clark.”

The young man bowed.

“I am fortunate, sir, to have so important a case brought to me so early in my career,” he replied. “I will do my best for your protégé, I assure you.”

“Toby Clark is no protégé of mine,” declared the banker sternly. “But,” he added, more mildly, “he was Judge Ferguson’s protégé and I believe the boy incapable of this alleged theft. Therefore I propose he shall be properly defended. I will be personally responsible for your fee, Mr. Holbrook.”

“That is quite satisfactory to me, sir.”

“But about the bail,” cried Janet impatiently. “We cannot allow Toby to remain in that dreadful jail!”

“The county seat is at Bayport,” observed the lawyer. “We have no judge here who is authorized to accept bail for an accused criminal. Toby Clark must be taken to Bayport for a preliminary hearing, at which I will appear in his behalf, instruct him to plead not guilty and then demand his release on bail. If you will drive over with me, Mr. Spaythe, I’ve no doubt the bail can be easily arranged.”

“When will his case be tried?” asked the banker.

“The next term of court is the first week in December. The trial will of course be at Bayport.”

“What a long time to wait!” exclaimed Janet.

“Never mind; it will give us time to discover the real criminal,” said Phoebe decidedly. “In that event Toby’s case will never be tried.”

Mr. Spaythe nodded. Then he shifted uneasily in his chair a moment and asked:

“Ought we to employ a detective, Mr. Holbrook?”

“Of course!” said Phoebe. “That is the first thing to be done.”

“Pardon me, Miss Daring,” returned the lawyer seriously, “I think that should be reserved as our final resource. Riverdale is so small a place that the movements of every inhabitant may easily be traced. I believe I possess some small talent in the detective way myself—a good criminal lawyer ought to be a good detective, it is said—so if Clark is really innocent it ought not to be difficult to discover the real criminal.”

“I don’t like that ‘if,’ Mr. Holbrook,” said Phoebe resentfully.

The young man flushed again. It seemed to be one of his characteristics to change color, on occasion, and he was aware of this failing and evidently annoyed by it. At Phoebe’s remark he bit his lip and hesitated a moment. Then he replied with dignity:

“The ‘if’ was not intended to condemn your friend, Miss Daring. Even the law holds him innocent until he is proved guilty. But you must remember that Toby Clark is a perfect stranger to me and perhaps you will admit that circumstantial evidence is at present against him. The box was found on his premises, it seems, and he had the keys to this office at the time of Judge Ferguson’s death. Even before there was a rumor that anything was missing from the place I urged the boy to get rid of the key—merely as a matter of ordinary precaution.”

“I know that is true,” said Mr. Spaythe. “When Toby brought the key to me he said you had advised him to do so.”

“Still,” continued the lawyer reflectively, “the circumstantial evidence, while it might influence a jury, can have no effect upon those who know the

boy's character and believe in his honesty. The thing for me to do, if I undertake this case, is first to discover who knew of Mrs. Ritchie's box—"

"Why, everybody, nearly, knew of it," said Phoebe. "She's a queer old creature and, having used the judge for a banker, was constantly coming to him to deposit money or to get it from her box. I've no doubt she imagined it was a secret, but Mrs. Ritchie's box was a matter of public gossip."

"The next thing," continued Mr. Holbrook quietly, "is to discover who were Toby Clark's enemies."

"I don't believe he had one in Riverdale," asserted Phoebe.

"The real criminal placed the rifled box on Toby Clark's premises, where if found it would implicate him in the theft. No one but an enemy would have done that," declared the young man, but he spoke argumentatively and there was not an earnest ring to his words. "Then," he resumed, "we must watch and see what citizen has suddenly acquired money. There are no professional burglars in Riverdale, I imagine, so the thief will be unable to resist the temptation to use some of the stolen money. Really, Mr. Spaythe, the case is so simple that I am positive we shall have no need of a detective. Indeed, a detective in town would be quickly recognized and his very presence would defeat us by putting the criminal on guard. Let us proceed quietly to ferret out the mystery ourselves. I already feel reasonably certain of success and, when I have interviewed Toby Clark, which I shall do at once, he will perhaps be able to furnish us with a clew."

This logical reasoning appealed to Mr. Spaythe and silenced even Phoebe's objections. The girls left the office filled with horror of the cowardly charge brought against the poor boy they had so earnestly sought to aid.

On their way home Janet said:

"Of course this will prevent Mr. Holbrook from carrying out his agreement, for until Toby's innocence is proved we cannot expect anyone to give him employment."

“Why not?” asked Phoebe, who was trembling with nervous excitement. “Do you suppose anyone in Riverdale would doubt Toby’s honesty, just because that miserable Abner Kellogg and old Mrs. Ritchie accuse him? I think it would be a clever thing for Mr. Holbrook to take him into his office at once. It would make the lawyer lots of friends.”

“Perhaps that is true,” answered Janet doubtfully; “but Mr. Holbrook can’t be expected to believe in Toby as implicitly as we do. He may think it would injure his reputation to employ one accused of stealing. If he did, we could not blame him.”

Phoebe made no reply. Parting from Janet at the gate she ran into the house and straight to Cousin Judith’s room, where she first had a crying spell and then related the startling incidents of the morning.

The Little Mother was greatly shocked and quite as indignant as Phoebe had been. But she tried to comfort the girl by assuring her that Toby would be proved innocent.

“I think Mr. Spaythe was fortunate in securing Mr. Holbrook to defend Toby,” she added. “As this is his first case, it will be an opportunity for him to make a fine reputation in Riverdale by winning it, and as he seems a young man of ability and judgment we may depend on his doing his utmost and in the end clearing Toby triumphantly.”

That didn’t seem to reassure Phoebe.

“I think Mr. Holbrook has both ability and judgment,” she agreed. “He impressed me as being a very clever young man—too clever to be altogether trusted.”

“Oh, Phoebe!”

“He looks honest, and talks honest,” the girl went on, “but there’s something about him—his manner or his smile; I don’t know what—that makes me think he is not sincere.”

Judith looked at her thoughtfully.

“Nevertheless,” she rejoined, “it is to his interest to free his client, and from what you say he already believes that he can do so.”

“I didn’t like several things he said,” remarked Phoebe. “Once he said ‘if’ Toby was innocent—just as if there could be any doubt about it!—and he wouldn’t allow Mr. Spaythe to send to the city for a detective.”

“He may be wise in that,” affirmed Judith. “Doubtless he prefers to wait and see what the next few days develop. If he is able to solve the mystery himself it will be best to keep a detective out of it. The detective would be a stranger, you know, and at their best detectives are not infallible.”

Phoebe sighed.

“What a cruel thing for Mrs. Ritchie to do!” she said. “And just when Janet and I had settled Toby’s affairs so nicely and obtained for him just the position he would have liked best.”

The Little Mother smiled.

“Was I wrong to promise that we would pay Toby’s wages?” asked Phoebe quickly.

“No, dear; I would have agreed to your plan very willingly. But it was placing Mr. Holbrook in a rather delicate position, after his confession to you of his poverty, don’t you think?”

“Perhaps so,” said the girl. “But he took it very nicely. He seems gentlemanly and kind, Cousin Judith. I can’t say why I don’t wholly trust him. Janet thinks he acted splendidly and I imagine she is quite interested in her father’s successor. I don’t dislike him, myself, you know; only, until I’ve seen more of him, I can’t exactly trust him.”

“We cannot expect to find one able to fill Judge Ferguson’s place,” observed Judith regretfully.

There was great excitement among the young Darings when they came rushing home from school. The news of Toby’s arrest had spread like

wildfire throughout the village and the inhabitants of Riverdale were at first generally indignant and inclined to think that Toby Clark was being unjustly persecuted. When the details were learned, however, and it was known that Mrs. Ritchie's blue box, battered and empty, had been found just back of Toby's shanty, there were some who began to believe in the boy's guilt, while others stoutly defended him.

The following morning, at the request of Lawyer Kellogg, an officer was sent over from Bayport who, in conjunction with Sam Parsons, the Riverdale constable, made a thorough search of Toby Clark's tumble-down house. It was so poor a place that the door was not even locked. There were but two rooms; that at the front, where Toby cooked and slept, and a little den at the back, which contained only a few bits of broken, cast-off furniture and some boxes and barrels. In this back room, concealed beneath a pile of old newspapers, the officers found a bundle of mortgages and other documents, the property of Mrs. Ritchie and which were of no value to anyone but their owner. The money and bonds, however, could not be found.

Armed with this fresh evidence against the prisoner the officers of the law went to the jail and urged the boy to confess.

"Tell the truth," said Jardyce, the Bayport policeman, "and the chances are you'll get a light sentence. It is foolish to continue to deny your guilt."

Toby, quite broken and despondent, for he felt deeply the disgrace of his accusation and arrest, stared at the officer in wonder.

"Are you sure you found those papers in my room?" he asked.

"There is no doubt of it."

"Then some one else put them there. Who do you suppose it could be, Sam?" inquired Toby, addressing Parsons, the constable, who had always been his friend.

"Can't imagine," was the gruff reply; then, noting Toby's appealing look, he turned to the Bayport man and added: "There's something crooked about

this thing, Jardyce. I know, as well as I know anything, that Toby Clark had nothing to do with stealing that box.”

“In spite of the evidence?”

“Bother the evidence! You know, an’ I know, that lots of evidence is cooked up.”

“Yes, that’s true. I will say this,” continued the policeman, thoughtfully, “that after a long experience with crooks of all sorts, this boy don’t impress me as being guilty. But the evidence is mighty strong against him, you’ll admit, and the chances are a jury will convict him without argument. Too bad, if he’s innocent; but many an innocent man is serving time because he couldn’t explain away the circumstantial evidence against him.”

CHAPTER VII

HOW TOBY FOUND A FRIEND

The discovery of the incriminating papers cost Toby the confidence of many of his fellow townsmen. Popular opinion had been about evenly divided, before that, but it was hard to argue innocence in the face of such adverse evidence. Yet, even while conceding the boy's guilt, the Riverdale people were regretful and grieved rather than condemnatory.

"Ye see, it's this way," said Tom Rathbun the grocer to a crowd that had gathered in his store; "Toby's a nice little chap an' has tried to be honest. But he comes of bad stock; his father owed me seven dollars when he died an' his mother were addicted to drink, as you'll all remember. 'Tain't to be wondered at that with such parents Toby inherited some desprit bad failin's, an' when the jedge died, an' the boy's fat job was killed, he jes' natcherly yielded to the temptation to take Mrs. Ritchie's box, knowin' it were full o' money. Seems like if the jedge had lived Toby'd 'a' kep' himself honest, an' growed up to be a decent man; but when he lost his best friend he backslid an' got caught at it."

Rathbun's expression voiced the sentiment of the majority, although a few staunch friends refused to admit the evidence against Toby Clark. Perhaps the boy's most bitter condemnation came from Dave Hunter, the young telegraph operator, who seemed certain of Toby's guilt and proclaimed his conviction everywhere and on every occasion.

Lawyer Kellogg was jubilant over his success in "landing his bird at the first shot," as he proudly stated, and swaggered more pompously than ever. Mrs. Ritchie, however did not congratulate him. The woman seemed terribly nervous over the missing contents of her box and rated her lawyer for not recovering them. One important paper, especially, had disappeared, she claimed, and she laid more stress on Kellogg's finding that than on

finding her money and bonds, although she was notoriously careful of her money.

“Drat the mortgages an’ deeds!” she cried angrily; “no one could turn ’em into money if they tried; it’s the negotiable stuff I want. An’ you’ve got to get it, Abner Kellogg. The boy ain’t had a chance to spend the money, or sell the bonds, an’ there’s no reason you can’t make him give ’em up. Whatever else you do, though, you’ve got to find that other paper. I want it, an’ I’m goin’ to have it! We’ve got the thief, all right, so why don’t you get back my property?”

“I can’t, just yet,” protested Kellogg. “The money is not on Toby’s person and he won’t tell where he’s hid it. But be calm, Mrs. Ritchie; be calm and trust to me. When the case comes to trial I know a way to make Clark confess, and I’ll get every cent of your money and the missing paper, I promise you.”

“I don’t trust you,” declared the old woman. “I think you’re as big a villain as Toby Clark. I hired you ’cause you agreed to catch the thief and get my property back or you wouldn’t charge a cent. I made you sign that agreement in black an’ white.”

“Quite true, Mrs. Ritchie; but give me time. I’ve got the thief, and I’ve recovered part of your property! Give me time and I’ll get the money and the bonds. The boy can’t spend anything while he’s in jail and sooner or later he’ll confess where he’s hid the stuff.”

“If you hadn’t caught the thief,” rejoined Mrs. Ritchie, savagely, “I could have held the Fergusons responsible. Now they’re out of it and if you don’t get the money from Toby it’s gone for good. I want that paper, too.”

“Don’t worry; I’ll get it all; give me time,” repeated the lawyer.

Mr. Holbrook, on the other side of the case, was proceeding very leisurely. Orders had been received to have the prisoner brought to Bayport for a preliminary examination, and soon after Sam Parsons had left the jail with his charge, taking him in a buggy over to the county seat, the young

lawyer and Mr. Spaythe started for the same place in the banker's automobile with Eric Spaythe, the banker's only son, acting as driver.

"This latest discovery looks very black for our client," remarked Holbrook, as they sped over the smooth country road.

"Do you refer to the finding of those papers?" asked Mr. Spaythe.

"Of course, sir. It's rather damning evidence."

"I cannot see that it is any worse than the finding of the box," asserted the banker.

"It fastens the accusation more firmly," Holbrook stated. "With us it can have no effect, but others will be likely to condemn our client on the strength of such conclusive proof."

"I do not care what others think," said Mr. Spaythe.

"No; I was referring solely to the jury that will try him. These jurors will be drawn from the entire county, and some will not be intimately acquainted with Toby Clark or have any confidence in his record for probity."

"Whoever placed the box in Toby's yard placed the papers in his room," asserted Eric, speaking for the first time. "The place was never locked, and as the real thief wanted to get rid of such dangerous property there was no better place in all Riverdale to hide it in than Toby's shanty."

"I shall use that argument in my defense," remarked the young lawyer in a careless tone that annoyed Eric.

"I trust this case will never come to trial," resumed Mr. Spaythe after a pause. "What steps are you taking to discover the criminal?"

"My first idea was to prove an alibi for Clark, but that I am unable to do. He was twice seen entering Judge Ferguson's office, the day following his death. I myself found him there when I went to look at the rooms with Chandler the postmaster. When the boy left the place the second time he carried under his arm a parcel large enough to contain Mrs. Ritchie's box.

Finding that Kellogg had unearthed this fact and would use it in evidence, I went to see Toby about it. He tells me it was a package containing his personal books and possessions, which he was removing from the office. I believe this statement, for he had the package in plain sight when he carried the key to you, at your house.”

“I remember,” said Mr. Spaythe.

“But several others saw and noticed the package, and I understand that all of these will be subpoenaed as witnesses at the trial.”

“But about the guilty one—the person who actually took the box from the office—have you any suspicion as to his identity?”

Mr. Holbrook was lighting a cigarette and took time to answer.

“Not as yet, sir. But I shall begin a thorough investigation in the near future and try to secure a clew to guide me to success.”

“We ought to have had a detective,” grumbled Eric, but Mr. Holbrook ignored the remark.

At this moment they swung around a bend and overtook the buggy in which the constable and Toby Clark were seated. They seemed to be chatting together in a friendly manner and as the automobile passed them Eric cried out:

“Cheer up, Toby! There’s nothing to worry about.”

Toby nodded. He did not look like a thief. His eyes were still twinkling as of old and his cheeks were fresh and rosy. He had no smile for his friend’s greeting, for the accusation against him was very serious, but neither did he wear a hang-dog expression nor seem confused.

“I want you to work earnestly on this case,” said Mr. Spaythe, when they had passed beyond hearing. “Toby Clark must be cleared of the unjust charge, and the only way to do it is to discover who is actually guilty. I depend upon you, Mr. Holbrook, to do that, and without any waste of time.”

Holbrook colored red and waited a moment before he replied.

“I realize,” said he, with deliberation, “that my reputation as a lawyer depends upon my success in this, my first case in Riverdale. Unless Toby Clark is actually guilty, and is proved so without question, I shall lose the confidence of the community by not fastening the guilt on the real criminal. Therefore you may rest assured that I shall do everything in my power to vindicate my client. I cannot now confide to you the various processes I intend to employ, for that would be unwise; but I am conversant with the latest scientific methods of criminal detection, having made them a study for years, and I do not think they will fail me in the present case. If they do, I must stand the consequences, which will not be less severe for me than for my client.”

Eric gave a scornful grunt, the speech was so evidently conciliatory and noncommittal, but Mr. Spaythe forbore any comment.

The preliminary hearing was brief. The judge knew Mr. Spaythe and gave him a seat beside his desk. He had heard of Mr. Holbrook, the new Riverdale lawyer, but now met him for the first time.

Lawyer Kellogg, fat and pig-eyed, presented his evidence against the prisoner with an air of triumph that was distinctly aggravating to the defense. The judge listened carefully, noting each point made on his memoranda. Then Mr. Holbrook, speaking for the prisoner, pleaded “not guilty” and asked that a reasonable amount of bail be fixed until the case came to trial. The judge frowned and considered.

“The offense, if proved, is serious,” said he, “and the missing money and bonds alone amount to many thousands of dollars in value. The evidence is so strong and the accused so young and irresponsible, that I hesitate to fix bail in this case and prefer to remand the prisoner to the county jail to await his trial.”

Kellogg grinned and rubbed his hands together gleefully. But Mr. Spaythe, in his quiet way, leaned over the desk and said:

“I hope, Judge, you will reconsider that decision. This boy is very dear to many in Riverdale, where he is thoroughly respected. I myself have a strong personal interest in his welfare and believe that in spite of the evidence just presented to you he will be proved innocent. To allow him to languish in jail for two months or more, only to discover that he has been falsely accused, would be a grave injustice. Therefore I am prepared to furnish his bail in whatever sum you demand.”

“Ah,” said the judge, “that alters the case. Five thousand dollars.”

Mr. Spaythe signed the bond and then turned to Toby.

“You are to ride back with us,” he said, “for I want you to come to my house and make it your home until this cloud has been removed from your good name—as it surely will be, in time.”

Toby’s eyes filled with tears.

“You are very kind, Mr. Spaythe,” he replied brokenly, “but until I can prove my innocence to the world I have no right to go to your house. I’ll go—home—and work this thing out. But I thank you, sir; I thank you with all my heart!”

“Look here, Toby,” said Eric sharply, “you’re going to do just what the governor says, if we have to lug you home by force. Don’t be a fool; it’s a step in your redemption. Don’t you see how it will help, to have father stand up for you before all the world!”

Toby looked helplessly around the group and appealed to his lawyer.

“What do you advise, sir?” he asked.

“That you do as you suggest and, declining Mr. Spaythe’s kind invitation, go directly to your own home,” answered Mr. Holbrook.

“All right,” said Toby, a humorous twinkle in his bright eyes; “I’ll accept your hospitality, Mr. Spaythe, and hope I won’t be too much trouble to you.”

“Bravo!” cried Eric, and danced a little jig over Holbrook’s discomfiture.

CHAPTER VIII

HOW PHOEBE CONSPIRED

Whatever happens, the sun rises and sets and the old world continues to whirl on its axis. Toby Clark's arrest was a huge sensation in Riverdale for a day, and then it lost its novelty. Now and then, during the days that followed the boy's arraignment, the people gossiped concerning the outcome of the case, but since nothing new developed to bolster public interest Toby's dilemma soon became an old story.

Young Mr. Holbrook had acquired a certain distinction through being employed by Mr. Spaythe for the defense. The banker's judgment was so reliable that the former clients of Judge Ferguson began to consult Holbrook rather than Kellogg and while he was not as yet entrusted with much important business the new lawyer found his practice steadily growing.

But Mr. Spaythe was not entirely satisfied with his attorney, although he did not express his dissatisfaction in words. Every few days he would go to Mr. Holbrook's office and say: "Well?"

"The case is progressing finely," was the invariable reply.

"What have you discovered?"

"Nothing definite as yet, sir; but I am getting at the facts and will report to you as soon as I can furnish absolute proofs."

That did not content Mr. Spaythe, but it silenced him and he went away.

Toby remained quietly at the banker's house, reading his few law books diligently and leaving his defense to his friends, as he had been urged to do. The Darings invited him to their home on many occasions, and so did Janet

Ferguson; but the boy refused to go, saying that until his innocence was fully established he preferred to remain in retirement. It was a comfort to them all that the Spaythes were caring for Toby. The Darings, from little Sue up to Phoebe, were loud in their praise of the banker, who had never before been known to extend such kindly consideration to anyone. Mrs. Spaythe had died years before, when Eric was a baby, and a prim old lady, a distant relative, kept house for the father and son, who were both engaged at the bank during the day and seldom passed an evening at home. So Toby practically had the house to himself.

One evening Eric Spaythe called on Phoebe and they had a long talk about Toby Clark's affairs.

"Hasn't Mr. Holbrook done anything yet?" asked Phoebe impatiently.

"No; and I've an idea he doesn't intend to do anything," replied Eric.

"What makes you think that?"

"The way he acts. He's letting things drag terribly. I don't understand Holbrook, and that's a fact. The time for prompt action was right after the robbery," declared Eric. "Then everything was fresh and the trails were clear. It wouldn't have been any trick at all to catch the thief then; but nearly a month has gone by and not a clew uncovered. We're as far from the truth as ever."

"Mr. Holbrook can hardly afford to make a failure of the case," said Phoebe, using the well-worn argument doubtfully.

"It appeared to me that way, at first, especially as he seemed so cocksure of himself," returned young Spaythe. "But he once made a remark to father that I've not forgotten. He said his reputation would be injured *unless Toby Clark's guilt was proved* or—he found the guilty party. I don't like that alternative, Phoebe. Do you know, I've an idea that Holbrook believes Toby is guilty?"

"I've had that idea from the first," declared Phoebe with eagerness. "I was in his office when your father came to him with the news of Toby's

arrest, and I watched Mr. Holbrook carefully. Even at that time I could see he doubted Toby's innocence, or else—or else—”

“Or else what, Phoebe?”

“Or else he knows who took the box and is willing to have Toby accused.”

Eric stared at her wonderingly.

“That's a good deal to accuse the fellow of,” he said. “I think our first guess is right, and in that event Toby is in a bad way. If Holbrook believes him guilty he won't make any honest effort to find out who took the box. He'll just let Kellogg prove his case. Then Holbrook will say he did the best he could but that no one could clear a guilty person. Most people will accept that sort of a statement and Holbrook may be depending upon it to save himself. That's why he's putting us off and taking things easy.”

“But they can't prove Toby guilty!” protested Phoebe, who knowing in her heart the boy was innocent, had clung to the belief as her best anchorage.

“I'm not sure of that,” said Eric, gravely shaking his head. “It's pretty strong evidence, Phoebe, and I don't believe it's safe to let the case go to trial just as it stands.”

“Then what can we do?” she asked helplessly.

Eric laughed.

“You know how to put a poser,” said he. “I've wondered many times what could be done, but for my part I can't do anything. I'm tied down to the bank so closely that I haven't a minute to devote to Toby, much as I long to help him. One or two evenings I've stayed at home and talked with Toby, but he's as much bewildered by the thing as we are. The fact is, something's got to be discovered. We can talk till we're blind, but unless we know more than we do now it won't amount to anything. Here's the situation: Toby didn't take Mrs. Ritchie's box, but who did?”

“Ah, that’s the question!” said Phoebe.

“Yes, that’s the question—that and nothing else—and unless we can find an answer to it poor Toby is likely to suffer for another’s crime.”

This conversation rendered the girl very unhappy. She had previously been content to leave Toby’s salvation to the direction of Mr. Spaythe and Mr. Holbrook and she had not been especially uneasy over the outcome of the affair. But Eric had destroyed her confidence in the lawyer, and Mr. Spaythe was so silent and reserved that it appeared he was not taking any active part in Toby’s defense. In fact, nothing was being done to save Toby, and Phoebe told Cousin Judith that she was getting very anxious about the poor boy’s fate.

“That is not strange, dear, for I have been anxious from the very beginning,” confessed Judith. “I believe that for some reason there is a conspiracy afoot to destroy Toby Clark, and that it is likely to succeed.”

“Then,” retorted Phoebe, with one of her sudden decisions, “we must organize a counter-conspiracy to save him. We’ve been idle long enough, Cousin Judith—too long, I fear—and it’s time for us to act.”

“To whom do you refer when you say ‘us’!” asked the Little Mother, smiling at the girl’s earnestness.

“To you and to myself, of course.”

“I fear I am not a good conspirator, Phoebe; though you, I admit, seem qualified to be one. But what may two weak, inexperienced girls do, where a powerful banker and a clever lawyer fail?”

“We can do lots,” asserted Phoebe. “I can’t say just what, until I’ve thought it over; but oughtn’t the right to triumph, Cousin Judith!”

“It ought to, Phoebe, but I fear the right is sometimes smothered in false evidence.”

“It mustn’t be this time,” declared the girl. “We must try to save Toby. You think it over carefully, Cousin, and so will I, and perhaps one or the other of us will evolve an idea.”

Judith agreed to this, but added:

“I’ll not be an active conspirator, dear, but the conspirator’s assistant. I’ll help all I can, but I fear my talent for penetrating mysteries is not so well developed as your own.”

Phoebe went to her own room and sat down at her desk to think. She realized that she could not expect much energetic assistance from Cousin Judith and that whatever was accomplished she must undertake single-handed.

“I wish Phil was here,” she reflected, referring to her twin brother; “he’d know just how to tackle this problem.”

As a matter of fact Phoebe was far more resourceful than Phil, who had always come to his sister for advice in every difficulty. But she did not realize this.

“I wonder why Mr. Holbrook refused to have a detective?” she mused. “Was he so sure of his own ability to unravel the mystery, or—was he afraid?”

She jumped up and paced the room in sudden agitation. Then she controlled herself and sat down again.

“This won’t do!” she exclaimed, taking herself to task. “Unless I can consider everything calmly I shall deceive myself and start along the wrong road.” She took a pencil and sheet of paper and continued, talking to herself in an argumentative way: “Let’s marshal the facts. First, Mrs. Ritchie’s box is stolen. That’s a hard fact; you can’t get around it. In that box was a lot of money, some bonds as good as cash and other papers only valuable to their owner. The box was stolen for the money and bonds; fact number two. Whoever stole it from Judge Ferguson’s cupboard either had a key or picked the lock; anyhow the cupboard was found locked and the box gone.

Yet no one but Judge Ferguson was supposed to have the key. Whoever it was that wanted the money, he or she had no key to the box itself and couldn't pick the lock; so he or she had to carry away the box. That's the third fact.

"Now, then, having got the box safely away, the thief broke it open, took the money and bonds, and then wondered what to do with the rest of the junk. He must get rid of all telltale evidence, somehow or other, so he took the box to the river, perhaps thinking to drown it. Perhaps he saw Toby's shanty and decided to put the blame on him; that would throw the police on a false track. That was clever. Fact number—No! that isn't really a fact; it's just a surmise. No, if Toby is innocent it *must* be a fact. I'll call it so—Fact number four."

She jotted it down.

"Now let's see where we are at," she continued. "Thief has the money safe; police on a false track arrest Toby. Well, that's as far as I can go on that line. Now, the important question is, who is the thief? First we must consider who knew about the box and that it contained money. Toby knew, of course, and Judge Ferguson. But who else? Mrs. Ritchie, but—Never mind; I'll put her on the list. Janet knew; she couldn't steal it but I'll add her to the list. If I'm going to find out anything I must be thorough. I think Mr. Spaythe knew. I must ask him. Meantime, here he goes on the list. I wonder if Mr. Holbrook knew about the money? Not at first, but—Yes, I remember Janet told me that Toby took Mrs. Ritchie away, when she came to the house, and they went to ask Mr. Holbrook if it was lawful to give her the box. Of course the woman blabbed what was in it, and so—Mr. Holbrook knew. The theft was committed on the day or the night following the judge's death, so that lets Mr. Holbrook into the game. Down he goes on the list. Who else? There's Will Chandler, the postmaster; but perhaps he didn't know. He owns the building and kept the judge's key to the office. Will Chandler *might* have known there was money in the Ritchie box, so I'll put the dear old boy under suspicion. Who else?"

She reflected long and deeply, but could not think of another person likely to know the location of the box and that it contained money. She considered Lawyer Kellogg, but knew that he and Judge Ferguson had been

open enemies and that Kellogg had not been consulted by Mrs. Ritchie until after the loss of the box was a matter of public knowledge. So she reviewed her list: Mrs. Ritchie; Janet Ferguson; Mr. Spaythe; Mr. Holbrook; Will Chandler.

“Why, it’s nonsense!” she gasped in astonishment. “They’re every one impossible. I—I must start another line of discovery.”

But, try as she would, she could not get away from that list of obvious innocents.

“Unless some one knew the box was there, and that it contained money—enough to make it worth stealing—he couldn’t possibly have stolen it,” she told herself. “The list is all right, as far as it goes; but—is it complete?”

After more thought she put on her things and walked to Mr. Spaythe’s residence. Of course Toby was there, for he seldom if ever went out, and she promptly interviewed him.

“Who knew that Mrs. Ritchie’s box was in the cupboard, and that there was a good deal of money in it?” she demanded.

“What’s up, Phoebe?” he asked.

“I’m trying to sift this thing on my own account, and in secret, Toby,” she replied. “I want you to help me—just as if I were Sherlock Holmes or Monsieur Lecoq. Don’t ask questions; just answer them. Who knew?”

“I knew,” said Toby, with a grin.

“But I’m going to leave you out of it,” she replied. “This is an investigation to prove your innocence, so I don’t want any evidence against you.”

“You can’t do it, Phoebe,” said the boy. “Don’t bother about me; I’m not worth it. Let Holbrook do as he pleases.”

“What do you mean by that?” she demanded.

“He isn’t very anxious to clear me,” said Toby, looking at her with a queer expression. “I don’t know why; I only know that if I were a lawyer and had such a case I’d stir things up and find out the truth.”

“I think you would,” replied the girl. “It’s because Mr. Holbrook is so inactive that I’ve determined to take up the investigation myself.”

“It’s nice of you, Phoebe; but, say—a girl can’t do much. There’s something queer about the whole affair. I know something of law and also I ought to be able to guess who took the box; but it’s entirely beyond me. I can’t investigate it myself, and so—”

“And so I’m going to do it for you,” she said. “My being a girl is no handicap at all, Toby. What we all want is the truth, and if I can discover that, you will be saved. Now, then, who knew about the box?”

“Mr. Spaythe,” said the boy.

“Why should he know?”

“He was the closest friend Judge Ferguson had. They were together a good deal and the judge used to tell all his affairs to his friend. I once heard him say, jokingly, that he was a rival banker, for Mrs. Ritchie deposited all her money with him. Mr. Spaythe asked where he kept it, and when the judge told him he said it was foolish to trust to oak doors and a tin box when the bank vault was fire and burglar proof.”

“Very well; who else knew?” asked Phoebe.

“Will Chandler, and Griggs the carpenter.”

“Oh!” cried Phoebe, scenting a clew at last. “Griggs knew, did he? Tell me how that happened.”

“The cupboard doors stuck, a few months ago, and wouldn’t shut properly. So the judge called up Will Chandler, who was his landlord, and asked him to fix the doors. Will looked at them and said the building must have settled a little, to make the doors bind that way, and the best plan

would be to plane off the tops of them. So he got Griggs the carpenter and they took the doors off the hinges and planed them. While Griggs was working and Chandler helping him, in came Mrs. Ritchie and wanted fifty dollars. The judge took down her box and put it on the table and took out the money. I noticed both the men were surprised to see the box half full of bank bills and gold, for they couldn't help seeing it; but they said nothing and when I mentioned it to the judge, afterward, he said they were both honest as the day is long, and he could trust them."

"Do *you* think they are honest, Toby—both of 'em?"

"Yes."

"Well, who else knew?"

Toby considered.

"Mr. Holbrook, of course. The night I took Mrs. Ritchie to see him she said there was currency to the amount of several thousand dollars in the box, besides a lot of bonds."

"Was that before the box was stolen?" asked Phoebe.

"I don't know. I haven't seen the inside of the cupboard since a few days before Judge Ferguson died. I can't tell when the box was stolen."

"But the loss wasn't discovered until after Mr. Holbrook had talked with Mrs. Ritchie?"

"No. I think Mr. Spaythe discovered that the box was missing some days afterward."

"Tell me who else knew."

"I can't. Mrs. Ritchie might have told some one, of course; but she's usually too shrewd to do that. Judge Ferguson didn't talk about his business."

Phoebe referred to her list. The interview with Toby had netted just one addition—Griggs the carpenter.

“There was Mrs. Miller, the woman who used to wash the office windows,” said Toby reflectively.

“But she’s deaf and dumb,” returned Phoebe.

“She isn’t blind, though. She’s washed the windows and cleaned the offices every Saturday for years, and Saturday was Mrs. Ritchie’s usual day for driving to town. I can’t remember that Mrs. Miller has ever seen the box opened, but she might have done so.”

Phoebe added Mrs. Miller’s name to the list.

“The next thing I want to know is who visited Judge Ferguson’s office the day after he died,” she said.

“I can’t help you much in that,” said Toby. “I went there in the morning, because I didn’t know where else to go; but no one came in—except Will Chandler and Mr. Holbrook.”

“Oh; they were there, then. And why?”

“They came together, because Mr. Holbrook wanted to see the offices. He rented them that very day, I understand. Will told me that Janet wanted me, so I went away and left them there. Will had the key, you know.”

“This is news,” said Phoebe, drawing a long breath.

Toby smiled. “You’re not suspecting them, I hope?” he said.

“I’m not suspecting anybody, as yet. All I want at present are the facts in the case. I suppose no one else had a key to the office?”

“No. That very day Mr. Holbrook advised Will to give his key to Mr. Spaythe, and he advised me to get rid of my key, also. Will sent his key to the bank by Mr. Holbrook, who was going that way, but I went back and got

my books and traps out of the office before I brought the key here to this house and gave it to Mr. Spaythe.”

“Was it a very complicated lock?”

“The one on the office door? No. It was a common lock and that on the cupboard wasn’t much better. But the boxes all had better locks, that couldn’t be easily picked.”

“All right. I’m going now, Toby, but I may be back for more information. Keep your courage; I’m sure we shall get at the truth in time.”

But the boy, looking after her, shook his head and sighed.

“She’ll never suspect the truth,” he muttered. “No one will ever suspect, except those who know; and those who know will never tell.”

CHAPTER IX

HOW PHOEBE PLAYED DETECTIVE

On her way home Phoebe Daring stopped at the post office and talked with Will Chandler. He was a middle-aged man, slow and deliberate in thought and action, yet a veritable potentate in local politics and all affairs of a public character in Riverdale. There had been Chandlers in the town ever since it had been established, and before it had been named Riverdale it had been called Chandler's Crossing, the original Chandler having been a ferryman on the river. This Will Chandler, the sole representative of a long and prominent line, was a steady, straightforward fellow and greatly respected by everyone. It was said that he was too honest ever to become rich, and to eke out a living for a large family he kept a little stock of stationery for sale in the post office. This was located in the front part of the room, and his daughter, a white-faced, silent girl, waited on customers and gave out the mail when her father was absent.

The postmaster was on his stool behind the wicket when Phoebe approached him.

"Who do you think could have taken Mrs. Ritchie's box?" asked the girl.

"I don't know," said Chandler. "If I did, I'd help Toby out of his trouble."

"I didn't ask who took the box," said Phoebe; "but who *could* have taken it."

The postmaster slowly revolved this in his mind.

"Possible burglar?" he asked.

"Yes."

“Sam Parsons, the constable.”

“How is that?”

“I went upstairs about noon and found Sam peeking through the keyhole into the judge’s office. He mumbled some and went away. That night, just before I went home to supper, I walked upstairs again, just to see if everything was all right. I hadn’t any key, that time, but Parsons was standing with his back to the door, silent like, as if he was thinking.”

“Rather curious, isn’t it?” asked Phoebe, quite astonished by this report.

“Can’t say,” replied Chandler. “I’d trust Sam with all I’ve got—even with the United States mail. He’s the squarest man that ever walked.”

“I think so, too,” she agreed. “What other possible burglar do you know of?”

Chandler pondered.

“I might have done it,” said he; “but I guess I didn’t. Toby might have done it; but I guess he didn’t. Holbrook might have done it; but I guess—”

“Had Mr. Holbrook any chance to take the box?” she asked quickly.

“A chance, but a rather slim one. I took him up to see the office and while we were there Hazel called me for something. So I left him sizing up the furniture and law books, to see if they were worth buying, and came down to the office. When I got back Holbrook was sitting down, looking through the books. That was the only chance he had, as far as I know, and I’ll swear he didn’t have the box when I locked up and we went away.”

“You didn’t see Mrs. Miller around that day?”

“No.”

“Nor Griggs the carpenter?”

“Haw-haw! Phoebe; that’s funny. Griggs? Griggs steal the box? Why, the old idiot won’t take the money he earns, unless you force it on him. If there’s a soul in this world that don’t care a snap for money, it’s old Griggs.”

“Thank you, Mr. Chandler. Please don’t tell anyone I’ve been questioning you.”

He looked at her steadily.

“I suppose you’re Toby’s friend, because he once helped your people out of a scrape, as everybody knows—that time the Darings came near losing their money. I wish, Phoebe Daring, you could find out who took that box. I’ve been just miserable over Toby’s arrest; but I’m so busy here, just now, I can’t lift a finger to help him.”

The girl walked thoughtfully home, wondering if she had really accomplished anything. Sitting down at her desk she made the following memoranda, writing it neatly and carefully:

“THOSE WHO KNEW OF THE BOX.

“1.—Janet Ferguson.—Being the judge’s daughter and likely to suffer more than anyone else by the theft of the box, which the Ferguson estate was responsible for, and being a sweet and honest girl and incapable of stealing even a pin, Janet is beyond suspicion.

“2.—Mrs. Ritchie.—She knew better than anyone else the value of the box. A hard, shrewd old woman, very selfish and mean. It is said she half starves the workmen on her farm and makes her hired girl pay for the dishes she breaks. Her husband left her a good deal of money, and she has made more, so she is quite rich. Never spends anything.

“*Question:* Did Mrs. Ritchie steal her own box?

“*Answer:* She might be capable of doing it and then throwing the blame on Toby. Her eagerness to have the box given up to her as soon as she heard of the judge’s death looks suspicious. On the other hand she couldn’t pick a lock to save her neck, and it’s easy to trace her

every movement from the time she drove into town until she went home again. She afterward went to Mr. Spaythe and bothered him until he decided to give her the box a day earlier than he planned to give the other boxes up to their owners. But when they went to the office and opened the cupboard, the box was gone. She nearly had a fit and called Mr. Spaythe a thief to his face. Don't think she is clever enough to assume all that. She afterward went to Lawyer Kellogg, whom she hates, and employed him to help her find the thief. If she had stolen the box herself she wouldn't have done that. She'd have kept quiet and obliged the Fergusons to make good any loss she claimed. Considering all this, I don't believe that Mrs. Ritchie stole her own box.

"3.—Mr. Spaythe.—A rich man who likes to make more money. Gets all the interest he can and doesn't spend much. Pays his son Eric a mighty small salary; people say it's because he's so stingy. He was Judge Ferguson's best friend. Stern and severe to most people. His own son fears him.

"Question: Did Mr. Spaythe steal Mrs. Ritchie's box?"

"Answer: He had the keys and could have done so. We're not sure the box was taken the day after the judge's death; it might have been several days later. It is astonishing that Mr. Spaythe at once defended Toby; was much excited over his arrest; put himself out to go to Bayport to give five thousand dollars bail, and then took Toby into his own home. Mr. Spaythe isn't usually charitable or considerate of others; he has known Toby Clark for years and has never taken any interest in him till now. Why has he changed so suddenly? Is it because he himself stole the box but doesn't want an innocent boy to suffer for it? No answer just now. Better watch Mr. Spaythe. He's the biggest man around here and considered very honorable. Always keeps his word religiously. Is trusted with everyone's money. Can I suspect such a man? Yes. Somebody stole that box. I'll put Mr. Spaythe under suspicion.

"4.—Will Chandler.—A prominent citizen, postmaster for a good many years and generally liked. Under bonds to the post-office

department, so he has to be honest. No Chandler has ever done anything wrong.

“Question: Did Will Chandler steal the box?

“Answer: Not likely. He could have done so, but the same chance has existed for a long time, as far as Chandler is concerned, for the judge trusted him with his key. This key always hung on a peg just inside the post-office window, where the judge could reach it from the outside without bothering Chandler; but very few people knew that and either Will or his daughter Hazel always had the key in plain sight. Chandler had learned that there was money in Mrs. Ritchie’s box. He may have been suddenly tempted. Better put him under suspicion.

“5.—John Holbrook.—Absolutely unknown here. No record of his past. Is a lawyer and has a certificate to practice in this state. Dresses extravagantly, lives at the hotel and claims to be too poor to hire a clerk.

“Question: Did he steal Mrs. Ritchie’s box?

“Answer: This man, having little or no money, was audacious enough to open a law office here—‘on his nerve,’ Don would say. Boldness is therefore a trait in his character. He suddenly learned, from the woman herself, that there was considerable money in her box. He told Toby not to give it up, which was quite right and good advice. But he had all that night to work in. Had been in the office—left alone there—and if he was observing had noticed that the locks of the door and of the cupboard were not hard to pick. Says he knows a lot about criminal practices and so he might have taken a wax impression of the keyholes and made keys to fit them. I’ve read of such things being done. Holbrook might have hidden the box in Toby’s rubbish heap and put the papers in his room without knowing who lived in the shanty. Was evidently disturbed by the news of Toby’s arrest. Took his case, but hasn’t done a single thing to clear up the mystery. Didn’t want a detective to come here. Why? Easy to guess, if Mr. Holbrook is guilty. All his acts are strongly suspicious. Keep a sharp eye on him.

“6.—Joe Griggs, the carpenter.—Harmless old man, who doesn’t care for money. Handy with tools and could pick a lock, but wouldn’t have any desire to do so. Likes Toby and wouldn’t have any object in hurting him; careless about money; is always poor and contented. Joe Griggs could have stolen that box but I’ll bet anything he didn’t.

“7.—Mrs. Miller.—A woman who bears a doubtful character. Is deaf and dumb, but quick-witted. Her husband a drunkard and she supports the family by washing and cleaning. May have known there was money in Mrs. Ritchie’s box and wouldn’t be above stealing it. But how could she? It would be like her to hide the box and papers on Toby’s premises, to divert suspicion from herself. None can tell what an unscrupulous woman like Mrs. Miller might not do, if she set about it. Suspicious.

“8.—Sam Parsons.—Constable. That means the sole policeman and officer of the law in Riverdale. Not very well educated but quite intelligent and a terror to evil-doers. Sam is very kind hearted; is married and has a happy wife and three children. Great friend of Judge Ferguson and Toby Clark. Plays chess nearly every Monday night with Will Chandler. Everybody likes Sam except the hoodlums.

“*Question:* Did Sam Parsons steal Mrs. Ritchie’s box?

“*Answer:* Seems as if one might as well suspect the law itself, or the judge and the court and the Constitution of the United States. But somebody stole that box and Sam Parsons was twice seen in a compromising position. It was underhanded to peek through the keyhole of the office door; and what was he doing, standing with his back to it, when it was locked and no one inside? This is the strongest clew I have found in the case, and the hardest to follow. Either Sam did it, or he knows something about the theft of the box; but in either case he has kept mum. Why did he arrest Toby and put him in jail, never saying a word in protest or defense, if he knew who really took the box? Sam is fond of Toby and from the first said he was innocent. But he has never hinted that he knows the guilty party. There’s a possibility that Sam stole the box himself. I take it that a constable is human, like other folks. Therefore I’ll watch Sam Parsons.”

Phoebe now reread what she had written and nodded approval. It occurred to her that her reasoning was very logical and entirely without personal bias.

“I’ve made a beginning, at least,” she murmured. “I’ve narrowed down the possible thieves to just five people: Mr. Spaythe, Will Chandler, Mr. Holbrook, Mrs. Miller and Sam Parsons. I am positive that one of these five is guilty, but without more evidence I can’t even guess which it is. I believe I’ll go and report progress to the Little Mother, my fellow conspirator.”

Judith greeted the girl with her usual affectionate smile.

“Well, Miss Conspirator,” she said playfully, “what news?”

“I’ve accomplished something, I believe,” returned Phoebe with an air of satisfaction. “Here are my present conclusions, all written out.”

Before she read the paper, however, she related to Judith her visit to Toby Clark and to Will Chandler. Then, slowly and deliberately, she began to read.

Judith listened in some surprise, for she was astonished by the girl’s shrewdness in analyzing human character. Phoebe had struggled to be perfectly unprejudiced and impersonal in jotting down her items, but more than once the Little Mother had to repress a smile at some inconsistent hypothesis. Yet there was cleverness and a degree of logic in the entire summary.

“You see,” concluded the girl, folding the paper carefully for future reference, “we must seek the criminal among these five persons.”

“Why, dear?”

“Because, being aware of Judge Ferguson’s life and habits and of about all that goes on in this village, I find them the only ones who knew of the box, were able to get hold of it, or might for some reason or other be tempted to steal it. Don’t you agree with me, Cousin Judith?”

“Not entirely, Phoebe. I do not think any stretch of the imagination could connect Mr. Spaythe with the crime, or even Will Chandler. From their very natures, their antecedents and standing in Riverdale, such a connection is impossible.”

“Improbable, I admit, Cousin; but nothing is impossible.”

“On the other hand,” continued Judith, “you have a strong argument in favor of suspecting Mr. Holbrook. I myself have thought of him as the possible perpetrator of the crime, but have been almost ashamed to harbor such a thought. I have never seen the man, you know; but I wish we knew something of his past history.”

“How about Mrs. Miller?”

“I agree with you that she might be capable of the theft, but do not see how she could accomplish it.”

“And Sam Parsons?”

“There, I think, you have unearthed a real clew, but not one leading to Sam’s identity with the thief. The constable is absolutely honest; but he is a clever fellow, for all he seems so slow and easy, and he is the nearest approach to a detective we have in town. My idea is that Sam was suspicious that some one intended to rob the judge’s office, and was hanging around to prevent it or to discover the thief. We may conclude that he failed to do either, for had he known who took the box he would have denounced and arrested him. It may be that Sam has some hint of the truth and is lying in wait for the burglar. Why don’t you have a talk with him, Phoebe, and try to discover how much he knows?”

“I think I shall,” said the girl, musing over this suggestion.

“And bear in mind the fact that the box might have been taken by some person you have not yet thought of in this connection. You’ve made progress, my dear—extraordinary progress—but, after all, you may be far from the truth in your deductions.”

CHAPTER X

HOW THE MARCHING CLUB WAS ORGANIZED

“Something’s got to be done,” said Don Daring, with emphasis, as he addressed a circle of eager listeners.

The children had assembled on the upper floor of the Randolph barn, a big, roomy place intended for the storage of hay, when it was built, but now a bare room because the automobile, which had replaced the carriage horses, did not eat hay. The Randolphs lived directly across the road from the Darings, in a handsome, modern structure of brick and stone that had cost a lot of money to build. This family was reputed the wealthiest in Riverdale, for Mr. Randolph was a clever financier who spent most of his time in far-away Boston, where his business interests were, and only came South to see his family on rare occasions and for brief visits. Mrs. Randolph was a semi-invalid whose health obliged her to live in a warmer clime than that of Boston. She was rather selfish and worldly-minded, although professing to be much interested in foreign missions, and it was said she occupied most of her time in writing articles for religious papers and magazines. There were three Randolph children: Marion, about Phoebe’s age, who attended a college near Washington and was only home for vacations; Doris, a demure little girl of an age to associate with Becky, and Allerton, a boy a trifle younger than Don.

Allerton, whose mother indulged his every whim, rather than be annoyed by his pleading, had just received from the city an amateur printing press and outfit and had set it up in the barn. Don and Becky had been invited to come over and see the first “job” of printing executed, but interest in the new and expensive plaything was divided by the news of Toby Clark’s misfortunes. They were all four earnest friends and admirers of Toby and having canvassed the subject in all its phases, with growing indignation and excitement, Don wound up with the statement:

“Something’s got to be done!”

“What?” asked Becky curiously.

“Something to show we believe in Toby an’ know he’s innocent.”

“That don’t answer my question,” insisted his sister. “Something don’t mean anything, unless you say what the something is.”

“He means,” announced Doris, in her prim way, “that we must undertake to do something, to be decided later, that will show to the world that we believe in the honesty of Toby Clark.”

“That’s it!” cried Don approvingly; “an’ Beck ought to know it without so much argument.”

“All right; I’m game,” said Becky, complacently. “You can count on me in anything that’ll help Toby.”

“I’m afraid we four can’t do much,” remarked Allerton. “The law has Toby in its clutches and I suppose it will hang him.”

“Hang nothing!” retorted Don, scornfully. “They don’t hang folks for stealing, Al; it’s only for murder.”

“But Toby didn’t steal Mrs. Ritchie’s box,” suggested Doris.

“No; of course not. But he’s been arrested for it and is in jail, and nobody seems to be doing anything to help him. That’s why I think we ought to do something. If I was in his fix I’d like my friends to fight for me.”

“Tell us what to do, then, and we’ll do it,” said Becky. “We’ll all join hands, eyes right an’ chins up, an’ march on to victory!”

“Eh?” said Don, staring at her thoughtfully; “that isn’t a bad idea, Becky.”

“What idea?”

“The marching. When there’s an election the men all get together and form a company and parade the streets with banners and a band—and their man gets elected.”

“It is a way to win popular favor,” said Doris. “The marching and bands and fireworks arouse excitement.”

“Well, that’s what we ought to do,” declared Don. “Those fool people in the town are all shaking their heads like billygoats and saying Toby must be guilty, just ’cause they found the empty box in his back yard. Anyone could put the box there; it’s no proof Toby did it. Let’s get up a Toby Clark Marching Club, to defend Toby and bring folks to the right way of thinking. That’ll help him more than anything else.”

“It would make ’em laugh,” said Beck, “to see two boys and two girls marching with a banner and a band. And where in thunder will you get that band, Don?”

“You shut up. We’ll enlist every kid in town in our marching club. It’ll be no end of fun—besides helping Toby.”

“That sounds good,” said Allerton. “I’ll be the captain.”

“I’m captain myself,” retorted Don. “It’s my idea.”

“It was Becky’s.”

“Nothing of the sort. What she said gave me the idea; and it’s a good one.”

“If you’re going to hog everything, you can get up your own marching club, and I’ll stay out of it,” said Allerton sullenly.

Don had a hot reply on his tongue’s end, but hesitated. He really wanted to help Toby Clark.

“Tell you what we’ll do, Al,” he said generously; “we’ll get up the club together and then let all the members vote which one of us shall be captain. Then the other can be first lieutenant.”

“All right,” agreed Al.

“Why don’t you both be generals?” asked Becky. “Then it would leave some offices for us girls.”

“Why, we can’t be expected to march in a parade, Becky,” said Doris chidingly. “It wouldn’t be ladylike.”

“I’m no lady, an’ I’m goin’ to march,” replied Becky, with decision. “This isn’t politics; it’s a boom for Toby Clark, the Unjustly Accused, and I’m in the game first, last an’ all the time.”

“That’s the proper spirit,” said Don.

“Tell you what,” remarked Allerton; “we’ll print a lot of cards, inviting all the boys and girls in Riverdale to join the Toby Clark Marching Club, and we’ll distribute them at school and call the first meeting in our barn on Saturday forenoon.”

“Great idea, Al! Let’s print the cards right away,” cried Don with enthusiasm.

They first wrote the announcement on a piece of paper, Becky doing the writing in her scrawly hand and Doris correcting the spelling, which was something startling as Becky employed it. Then they set the type, the girls eagerly helping to do that, and after locking it up in the chase they ran off the first impression. It was somewhat blurred, there being too much ink on the roller, but Becky proudly read it aloud, as follows:

TAKE NOTICE!

You are respectfully invited to become a Member of

THE TOBY CLARK MARCHING CLUB!

Organized for the Defense of our Unjustly Accused Fellow Citizen, Toby Clark! And to Bring About his Release from Jail and to Clear his Good Name from the Taint of Cowardly Slander! There will be

UNIFORMS! BANDS! RED FIRE! and BANNERS!

All in Favor of this will Meet at Randolph's Barn (upstairs) on
Saturday Morning at 9 o'clock Sharp.

ALL BOYS AND GIRLS WELCOME TO JOIN!

Don Daring,
Al Randolph,
Doris Randolph,
Becky Daring,
Organizing Committee.

(Al Randolph, Printer)

"The composition doesn't seem to be quite clear," observed Doris, when the applause had subsided. "It reads as if all in favor of the red fire and banners were invited to join."

"Well, so they are," maintained Don. "The red fire an' banners mean the Marching Club, 'cause they're a part of it."

"Better leave the band out," advised Becky. "It's a swindle, and we want this thing on the square."

"There's going to be a band—if we have to blow on combs covered with paper," retorted her brother. "But this is going to be an awful big thing, girls, and we may hire the Riverdale Cornet Band."

"That'd cost twenty dollars."

"If they're friends of Toby Clark they'll play for nothing. Don't borrow trouble. Buckle to, and make the thing a success."

They printed off a hundred cards and laid them upon a board to dry overnight. Next morning Allerton brought them to the Darings and each of the Organizing Committee took twenty-five to distribute at school. The

boys and girls of Riverdale read the announcement and became excited over the novelty of the undertaking. Therefore the Randolph barn was crowded on Saturday morning at 9 o'clock, when Allerton called the meeting to order—a necessary call—and announced that Donald Daring would explain the object of the proposed organization.

Don had carefully prepared his speech in advance and had even committed it to memory. Right after breakfast he had recited it to Becky without a skip, and his usually critical sister had declared it was “simply grand.” But Don had an attack of what is called “stage fright” and as he faced the throng of eager listeners promptly forgot the beginning of his address—and nearly all the rest of it. But he knew what he wanted to talk about and after stammering through the first sentence, progressed very well, his earnestness inspiring him to oratory.

“Friends and fellow citizens,” he began; “you all know what a measly shame the arrestin’ of Toby Clark was, which he’s innocent as I am or as any of you are. You know Toby, and he’s a good fellow, and no sneak-thief, and you can bet your oatmeal on that ev’ry time! (Applause.) Toby’s always been a friend an’ stood by us, so now’s the time for us to stand by him. The truth is, somebody’s tryin’ to make a goat of Toby, and hopes to put him in jail so he’ll escape himself.”

A Voice: “So who’ll escape? Which one of ’em, Don?”

“So the thief that stole the box will escape, of course. That’s why the thief put the empty box in Toby’s yard, an’ stuffed the papers in his shanty. He hoped Toby would be arrested an’ proved guilty, so he—the fellow that stole the box—wouldn’t be suspected.”

Another Voice: “Who stole the box, if Toby didn’t?”

“We don’t know who stole it. I wish we did. But we’re sure it wasn’t Toby and so we’re going to stick up for him and force Sam Parsons an’ the law-bugs over at Bayport to set him free. That’s what this Club’s going to be organized for,” here Don suddenly remembered part of his speech: “to mold public opinion into the right channels and champion the cause of our down-trodden comrade.”

“Hooray!” yelled Becky, and great applause followed.

“I heard Lawyer Holbrook was stickin’ up for Toby,” said a boy.

“Holbrook’s a stick, but he ain’t stickin’ up much,” replied Don. “He isn’t posted on things, ’cause he’s just come to town and don’t know the run of things. If Toby’s goin’ to be saved, this Marching Club, organized for his benefit, is goin’ to save him, and it’ll be stacks of fun besides. We’ll parade all through the town, with flags an’ banners flying, an’ we’ll have a banquet, an’ perhaps a brass band, an’ so help to set Toby Clark free.”

“What’ll we eat at the banquet?” asked a solemn-eyed girl.

“Food, of course,” answered Becky. “You’d better join an’ get a square meal, for once in your life, Susan Doozen.”

“I guess our grocery bill is as big as yours is!” cried the girl angrily.

“It’s bigger,” replied Becky composedly, “for we pay ours.”

“Here, cut that out!” commanded the speaker. “We’re not here to squabble, but to fight for Toby Clark, and we’re going to put up the biggest fight Riverdale has ever seen. The Toby Clark Marching Club will become famous, an’ go down in the annals of history as a—as—as—”

“As a Marching Club,” said Allerton, helping him out.

“With a record we’ll all be proud of,” added Don. “I can tell you kids one thing, and that is that every boy an’ girl who don’t belong to our marching club will be looked down on as nobodies, an’ they’ll deserve it. This is goin’ to be the biggest thing that ever happened in Riverdale and when Toby Clark is free and cleared of this wicked slander I’m going to petition Congress to give every one of us a gold medal. Now, then, the register is on that box beside the chairman, who is Al Randolph. You’ll form in line and all walk up and sign it. It’s a pledge to become a member of this Marching Club and to allow no one to say Toby Clark is guilty without denying it. Also to obey the rules of the Club and mind its officers.”

“Who’s them?” asked a small boy.

“We’re going to elect the officers after you’ve all signed,” replied Don.

It was evident that the arguments advanced had been effective. Every boy and girl present signed the roll. When Doris had counted the names she announced that the Toby Clark Marching Club now numbered sixty-seven members.

“We’ll make it an even hundred in a few days,” declared Don exultantly. “And now we’ll have the election of officers. All in favor of me for captain say ‘aye.’”

“Hold on!” cried Al, jumping up. “That isn’t fair. You promised they should vote whether you or I should be captain.”

“That’s all right,” said Don. “If they don’t elect me they can vote for you.”

“Can’t anyone else be it?” asked a big boy anxiously.

“No,” replied Don. “It was my idea, and Al printed the invitations on his press. One of us has got to be captain and the other lieutenant. But there’ll be lots of other officers.”

“Listen to me,” said Becky. “I know how to run an election. I’ll give each one a piece of paper, and each one must write ‘Al’ or ‘Don’ on it, whichever they want for captain. Then Doris and I will collect the papers and count ’em, and whoever has the most will be elected.”

There being no objection to this plan it was carried out. When the papers were counted Al had twenty-six votes and Don forty-one.

“Are you sure you counted right?” asked Al in a disappointed tone.

“Count ’em yourself, if you want to,” replied Becky.

“Friends and fellow citizens,” said Don, bowing to the members of the Marching Club, “I thank you for this evidence of your good judgment. I’m

now the captain and I'll drill you like a regiment of soldiers, only better. Al is first lieutenant, and I appoint Becky secretary and Doris the treasurer."

"When do we get the gold medals?" asked a girl.

Don glared at her.

"The gold medals don't come till after Toby is cleared. Then I said I'd ask Congress for 'em."

"Who's Congress?" inquired the girl.

There was a laugh, at this, and then Don said they'd elect two standard-bearers, to carry the banners, and four corporals. He didn't much care who filled these offices, and so allowed the members to vote for whom they pleased. By the time the election was over Doris and Becky brought up two great trays of cakes, while their brothers provided a pail of lemonade, with which the entire club was served by having recourse to constant dilutions.

Providing these refreshments had been thought by the organizers to be good policy and calculated to arouse enthusiasm in the Marching Club; and so it did. After being served they all trooped out upon the lawn, where Don and Al matched the children into pairs and arranged the order in which they should parade. The boys and girls wanted to march through the town at once, but their captain told them they were not ready for a parade yet. They must be drilled, and the banners must be made and painted. Each member was instructed to get a white sash and wear it whenever the club met.

They drilled until noon, growing more and more animated and enthusiastic, and then separated to meet again after supper on the grounds of the Daring residence.

CHAPTER XI

HOW THE CLUB RECEIVED A DONATION

“What were all those children doing at the Randolphs?” inquired Cousin Judith, as Becky and Don came in to dinner, flushed and triumphant.

“That was the Toby Clark Marching Club,” announced Don, proudly. “I’m elected captain of it.”

Judith seemed puzzled.

“Tell me about it,” she said. “What’s the idea?”

Becky at once began an excited explanation and Don broke in to assist her, so that by listening carefully to the broken sentences the Little Mother managed to get a fair idea of the object of the organization.

“You don’t mind, do you?” Becky inquired anxiously.

“No, indeed. The Marching Club may not do Toby Clark much good, but it certainly will do him no harm. As you say, there will be lots of fun in parading in defense of one so unjustly accused.”

“Becky and I are going to spend all our week’s allowance on ribbon,” said Don, “and we will make it into badges and Al will print them this afternoon in gold letters. He got some gold powder with his printing outfit.”

“Can’t I belong?” asked Sue, who had not been present at the meeting.

“Of course,” said Becky. “Every able-bodied kid in town is welcome to join, and I’ll bet a cookie they’ll all come in. It’s the swellest thing in Riverdale, just now, and not to belong to the Toby Clark Marching Club is to be just a nobody.”

“I think I would like to contribute the ribbon for the badges,” said Cousin Judith. “How much will you need?”

“Oh, thank you!” they all cried gleefully, and Becky added that they wanted enough white ribbon to make a hundred badges.

“White’s going to be our color,” said the girl, “’cause it’s the emblem of innocence, and we’ll stick to Toby’s innocence till the cows come home. We’re all to wear white sashes, and I wish we could get white caps to match; but I don’t suppose we can.”

“I’ll see if I can make a white cap,” remarked Phoebe, who was quite delighted with the idea of the Marching Club. “If I find I can do it, I’ll make one for every member.”

This encouragement delighted Becky and Don and after dinner Judith and Phoebe went down town and purchased the ribbon for the badges and white cotton cloth for the caps. Phoebe found it was not very difficult to make a round cap, which consisted merely of a band and a crown, and the first one she stitched up on the machine was pronounced a success. It was becoming to boys and girls alike and Becky thought Al could print “T. C. M. C.” on the front of each cap, very easily.

It took Allerton, assisted by Don, all the afternoon to print the badges, but they looked very pretty with their gold letters and Doris fringed the end of each one to make it look more like a badge. Becky, meantime, was assisting Phoebe with the caps, and so was Cousin Judith. They managed to make thirty before evening, when the club was to meet, and Don was told to promise each member a cap as soon as the rest could be made.

Nearly eighty children gathered on the lawn after supper and the new additions all signed the roll of the club and became members. Doris and Becky pinned a badge upon each one and told them to wear it wherever they might go, as a mark of distinction. The thirty caps were also distributed and some had already provided and brought with them their white sashes. These preparations filled the youngsters with joy and made them very proud of belonging to the new organization. Don got them in line and marched them around the grounds awhile, but the evenings were short at this time of

the year and the children were soon dismissed with instructions to assemble on Monday after school and to bring as many new members as could be induced to join.

The badges were worn even to church the next day and aroused much curiosity; but not a boy nor girl would tell what “T. C. M. C.” meant, as they had pledged themselves to keep the club and its object a deep secret until they were ready to parade.

Perhaps it was not wholly a desire to help Toby Clark that animated these children, although after they were enrolled in the Marching Club they one and all warmly defended him if his innocence was questioned. What most attracted them was the club itself, with its glamour of badges, sashes, caps, “refreshments” at meetings, its drills and parades and the promises of brass bands and gold medals.

Doris, a conscientious little girl, took Don Daring to task for making those rash promises, but the boy protested that they would get a band, somehow or other, and as for the medals he had only said he would ask “Congress” for them and he meant to keep his word. If “Congress” refused to present the medals it wouldn’t be his fault, anyhow.

They drilled every afternoon during the following week. Phoebe finished the caps and supplied sashes to those children who were unable to get them at home. Becky wheedled Aunt Hyacinth, the black mammy who had been with the Darings all their lives, into making a hundred cookies one day and a hundred fried cakes the next, and with these the girls served lemonade to the Club. Wednesday afternoon Doris again supplied the refreshments and on Thursday Cousin Judith furnished ice cream for the whole assemblage. Janet Ferguson, whose interest had been aroused by the unique idea of the Toby Clark Marching Club, provided the refreshments for Friday, and Saturday was to be the day of the first great parade.

But before this the Marching Club received its greatest surprise, resulting in its greatest impetus. On Thursday Doris Randolph came running over to the Daring place breathless with excitement and waving a letter as she met Becky and Don.

“Oh, dear!” she gasped; “what do you suppose has happened?”

“The North Star has gone south,” answered Becky, laughing.

“No; it’s something great—wonderful,” said Doris. “Just listen to this letter; the postman brought it a minute ago.”

She opened the letter with fluttering fingers and read as follows:

“Miss Doris Randolph,

Treasurer of the Toby Clark Marching Club:

“We beg to inform you that one of our customers, who wishes to remain unknown, has placed to your credit in Spaythe’s Bank the sum of Fifty Dollars, to be used for the promotion of the Club as its officers deem best. Very respectfully,

Spaythe’s Bank,
by Eric Spaythe, Cashier.”

“Well, for goodness sake!” exclaimed Becky. “Fifty dollars! Who do you suppose sent it, Doris?”

“I don’t know any more than the letter tells us; but what in the world will we do with all that money?”

“I know,” said Don, so astonished that he had been speechless until now; “we’ll hire the Riverdale Cornet Band for Saturday.”

“Good idea,” said Becky. “Let’s go see Ed Collins, the leader of the band, right away.”

“But—wait!” cried Doris; “don’t let us do anything rash. We’d better wait until the Club meets this afternoon and let them all vote on it.”

“Nonsense,” said Don. “Don’t the letter say the money’s to be used as the officers think best? Well, we’re the officers. Where’s Al?”

“I think he is studying his lessons just at present,” said Al’s sister.

“Never mind; we’re the majority; so let’s vote to hire the band,” proposed Don.

“Better let Allerton into this,” said Becky cautiously. “He’s mighty sensitive and there’s no use having war in our own camp. As for the others, they’re all dummies; but it won’t take more than a jiffy to hunt Al up and get his vote on the proposition.”

“We must all start for school very soon,” said Doris; “and, if you will wait for us, Allerton and I will join you. Then, on our way, we can talk it over and decide what is best to be done.”

This being a sensible suggestion, it was adopted and Doris ran across to her home while Becky flew upstairs to tell Phoebe and the Little Mother the wonderful news.

“It is certainly strange,” commented Phoebe thoughtfully. “I wonder who could have sent this money?”

“Never mind who sent it,” cried Becky; “we’ve got it, and we’ll hire the band, and the whole town will go crazy over the Marching Club on Saturday!”

Then off she ran to talk it over with Don again, and Cousin Judith said to Phoebe:

“There may be a clew for you in this donation, my Lady Conspirator.”

“That occurred to me at once,” replied the girl seriously. “No one would donate fifty dollars to the Marching Club unless greatly interested in the fate of poor Toby. And who so likely to be interested in saving him as the one who really took Mrs. Ritchie’s box?”

“In that case, the thief has a conscience and does not wish an innocent person to suffer for his own fault,” commented Judith. “Therefore, thinking the Marching Club may assist Toby’s case, the guilty one has donated fifty dollars to the cause.”

“Perhaps a part of the stolen money,” suggested Phoebe.

“Very likely. The letter says he wishes to conceal his identity, but—”

“The Spaythes must know who it is!” exclaimed Phoebe.

“Of course.”

“I’m going to see Eric right away. He wrote the letter, Cousin Judith, and Eric knows if anyone does.”

“But will he tell you?”

“He is very much interested in Toby and greatly worried over the way his case drags. Eric told me the other day he would do anything to save Toby.”

“Then I advise you to see him.”

Phoebe glanced out of the window. Becky and Don and the two Randolph children were just starting for school, eagerly canvassing the joyful news as they went. So Phoebe put on her things and quietly followed them, wending her way to Spaythe’s bank.

This was a neat brick building, quite the most imposing bit of architecture in town. At this early hour the doors had just been opened and no customer had as yet appeared. Eric was back of the cashier’s desk and greeted the girl with a cheery “good morning.”

“Who gave fifty dollars to the Marching Club, Eric?” she asked.

“Some unknown person, Miss Daring,” he replied with a smile.

“Not unknown to the bank, however,” she said meaningly. “You see, it’s this way,” Phoebe added, as the young man shook his head positively, “whoever gave that money knows something, Eric, and we must find out who it is. Perhaps—”

“Perhaps it’s the thief himself,” returned Eric. “It struck me at the time as a curious proceeding, in view of the circumstances,” he continued; “but the

truth is, I'm as much in the dark as you are."

"How *can* you be?" she protested.

"Yesterday afternoon the governor came in from his private office and told me to write the letter to Doris Randolph. I worded it just as I was instructed, but when I asked who was the donor my father merely frowned and said he must respect the person's wish to remain unidentified."

"Then Mr. Spaythe knows?"

"Undoubtedly. You may question him, if you like; he's in his private office now. But I'm sure you won't learn anything."

Phoebe sighed. She believed Eric was right in this assertion. Mr. Spaythe was a man who guarded all confidences with the utmost loyalty. He would be likely to resent any attempt to penetrate this secret, Phoebe well knew, and she abandoned any thought of appealing to the banker.

"The governor is Toby's friend, you know," remarked Eric, as he noted her disappointed expression. "If he has discovered anything, through this donation, you may be sure he will take advantage of it when the proper time comes."

That thought cheered Phoebe somewhat on her way home. But just as she reached the house another thought intruded itself and she sat down on the porch bench to think it out.

Mr. Spaythe, although considered far above any breath of suspicion, actually headed her list of suspects. In other words, the banker was one of those who knew of the box and that it contained money, and he might have had the opportunity to steal it. She rapidly ran over in her mind the arguments she had used for and against the probability of Mr. Spaythe's having taken the box, and shook her head doubtfully. There was much that was suspicious in the banker's actions. His astonishing defense of Toby Clark, whom before the arrest he had scarcely noticed, could not be easily explained.

“The thief—the one we’re after—was a clever person,” mused Phoebe. “I doubt if he would be reckless enough to go to Mr. Spaythe and ask him to give that fifty dollars to the Marching Club and to keep his name secret. Mr. Spaythe would know at once that such a person was the guilty one. No; it wasn’t the criminal. Some one honestly interested in Toby’s welfare gave that money, or else—or else it was Mr. Spaythe himself!”

She tried to consider this last possibility. Mr. Spaythe was not a charitable man; he seldom or never espoused any cause through pure philanthropy. There was something beneath this sudden interest in Toby Clark, a poor and friendless boy, and that something was not mere kindness, Phoebe felt sure. He might be politic enough to assist a wealthy and powerful man in trouble, but not one who, like Toby, could make him no return. What, then, had impelled the banker to pursue this generous course toward the accused boy?

Phoebe went in to talk it over with Cousin Judith, but found the house in a commotion. Old Aunt Hyacinth was sweeping the parlor vigorously, although this was not sweeping day. Judith, in cap and apron, was dusting and rearranging the furniture, and Phoebe looked at the extraordinary scene in amazement.

CHAPTER XII

HOW THE GOVERNOR ARRIVED

“Oh; is it you?” asked Judith busily. “Come and help us, dear, for we must have the place in apple-pie order by four o’clock, and there’s a lot to be done.”

“Dear me; what’s the excitement about?” asked Phoebe.

“I’ve just had a telegram from Cousin John, the Governor, and he’ll be here at four o’clock,” answered Judith.

“Really?”

“Honest for true, Phoebe. Isn’t it fine?”

Phoebe sat down with a bewildered expression. All the Darings well knew of Judith’s famous cousin, the governor of the state, whom they always called the “Great Man” in discussing him; but until now none of them had ever seen him. He was not their cousin, although he bore that relation to Cousin Judith Eliot, whose mother had been the sister of his mother. There was no doubt of his being a very great man, for he had not only been twice elected governor of the state but people declared he might some day become president of the United States, so able and clean had been his administration of affairs. The very idea of their entertaining so celebrated a personage made Phoebe gasp. She looked at Cousin Judith with big eyes, trying to conceive the situation.

“I’ve often invited him to come and see us,” continued Judith, her voice full of glad anticipation as she worked, “but he is such a busy man he could never find time. At last, however, he has remembered me, and his telegram says he has been North on state affairs and finds he can spare me a few

hours to-day on his return; so he'll be here at four o'clock, stay all night and take the morning train on to the capitol."

"All night!" cried Phoebe.

"Yes; I'm so pleased, Phoebe. You're sure to like Cousin John and I know the other children will adore him. It's his custom to dine at night, you know; so we'll just have a lunch this noon and our dinner at suppertime, as they do up North. The youngsters won't mind, for once, although it may give them indigestion."

Phoebe took off her hat and began to help Judith "rid up" the house. The rooms were always so neatly kept that the girl could not see now they might be improved, but Judith had the old-fashioned housekeeper's instinct in regard to cleanliness and knew just what touches the place needed to render it sweet and fresh.

Awe fell upon the younger Darings when they came in from school and heard the news. Don, who had been chattering noisily of the Riverdale Cornet Band, which had been hired for Saturday, fell silent and grave, for the governor's coming was an event that overshadowed all else. Becky, serious for just a moment, suddenly began laughing.

"The Great Man will scorn Riverdale, and especially the Darings," she predicted. "We'll look like a set of gawks to him and I warn you now, Little Mother, that if he pokes fun at me I'll make faces. It's straight goods that a governor has no business here, and if he comes he'll have to shed his city airs and be human."

Judith laughed at this.

"Don't think of him as a governor, dear," she said. "Just think of him as my Cousin John, who used to be very nice to me when I was wee girl and has never been any different since I grew up. I'm sure he is giving us these few hours to rest his weary brain and bones, and hide from the politicians. Not a soul in Riverdale will know the governor is here, unless he is seen and recognized."

“Is he ashamed of us, then?” inquired little Sue.

“Why should he be?”

“Because we’re not great, like he is.”

“But we *are*, Sue,” declared Phoebe. “The Darings are as great, in their way, as the governor himself. We are honest and respectable, and the votes of just such families as ours placed Judith’s cousin in the governor’s chair and made him our leader and lawgiver.”

“But he’s got a head on him,” remarked Don emphatically.

“We all have heads,” answered Phoebe; “only our brains don’t lead us to delve in politics or seek public offices.”

“Mine do,” asserted her brother. “I’m goin’ to be awful great, myself, some day. If the Little Mother’s cousin can be governor, there’s no reason I shouldn’t become a—a——”

“A policeman,” said Becky, helping him finish the sentence. “But you’ll have to grow up first, Don.”

This conversation did not seem to annoy Cousin Judith in the least. On the contrary she was amused by the excitement the coming of the Great Man caused in their little circle.

“I wonder if the Randolphs would lend us their automobile to bring him from the station,” mused Phoebe, at luncheon.

“How absurd!” said Judith. “Cousin John has two feet, just like other men, and he’ll be glad to use them.”

“Will the band turn out?” asked Don.

“No. You mustn’t tell anyone of this visit, for the Riverdale people would rush to see their governor and that would spoil his quiet visit with us. Keep very quiet about it until after he has gone—all of you.”

“What’ll we do about the Marching Club, Don?” asked Becky. “They were to meet on our grounds after school, but now that the Great Man is coming—”

“You need not alter your plans at all,” said Judith. “I want you to do just as you are accustomed to do. Be yourselves, my dears, and treat Cousin John as if he were one of the family, which he really is. You mustn’t let his coming disturb you in any way, for that would embarrass and grieve him. He has no family of his own and it will delight him to be received here as a relative and a friend, rather than as a great statesman.”

It was hard work for the children to keep the secret to themselves when at school that afternoon; but they did. It was only little Sue who confided to a friend the fact that “the biggest man in the whole world, ’cept the kings an’ princes of fairy tales, was coming to visit them;” but this indefinite information was received with stolid indifference and quickly forgotten.

Phoebe went with Judith to the station to meet the four o’clock train, at her cousin’s earnest request, and her heart beat wildly as the train drew in. The girl had pictured to herself a big, stalwart gentleman, stern-visaged and grim, wearing a Prince Albert coat and a tall silk hat, the center of a crowd of admiring observers. She was looking for this important personage among the passengers who alighted from the cars when Judith’s voice said in her ear:

“Shake hands with Cousin John, Phoebe.”

She started and blushed and then glanced shyly into the kind and humorous eyes that gleamed from beneath the brim of a soft felt hat. The Great Man was not great in stature; on the contrary his eyes were about on a level with Phoebe’s own and she saw that his form was thin and somewhat stooping. His coat was dusty from travel, his tie somewhat carelessly arranged and his shoes were sadly in need of shining. Otherwise there was an air of easy goodfellowship about Cousin John that made Phoebe forget in a moment that he was the governor of a great state and the idol of his people.

“Bless me, what a big girl!” he cried, looking at Phoebe admiringly. “I thought all your adopted children were infants, Judy, and fully expected to find you wielding half a dozen nursing bottles.”

“No, indeed,” laughed the Little Mother; “the Darings are all stalwarts, I assure you; an army of able-bodied boys and girls almost ready to vote for you, Cousin John.”

“Oh-ho! Suffragettes, eh?” he retorted, looking at Phoebe mischievously.

“Not yet,” she said, returning his smile. “The women of Riverdale haven’t organized the army militant, I’m glad to say; for I’ve an idea I would never join it.”

“You’re wrong,” he said quickly. “The women of the world will dominate politics, some day, and you mustn’t be too old-fashioned in your notions to join the procession of progress. But I mustn’t talk shop to-day. What’s that tree, Judith; a live oak or a hickory? What a quaint old town, and how cosy and delightful it seems! Some day, little Cousin, I’m going to disappear from the world and rusticate in just such a happy, forgotten paradise as Riverdale.”

They were walking up the street, now, heading directly for the Daring residence. The governor carried a small traveling bag and a light overcoat. Those who saw him looked at him curiously, wondering what guest was visiting the Darings; but not one of the gaping villagers suspected that this was their governor.

Arriving at the house the Great Man tossed his bag and coat in the hall and drew a hickory rocker to a shady spot on the lawn. Asking permission to smoke a cigar—his one bad habit, he claimed—he braced his feet against a tree, leaned back in his chair and began to gossip comfortably with Judith, who sat beside him, of their childhood days and all the queer things that had happened to them both since. When Phoebe wanted to run away and leave the cousins together they made her stay; so she got a bit of embroidery and sat on the grass sewing and listening.

The children came home from school, awkwardly greeted the Great Man, in whom they were distinctly disappointed because he did not look the part, and then rushed away to follow their own devices. By and by Cousin John glanced through the trees and was astonished to observe in the distance an army of boys and girls engaged in drilling, their white caps and sashes and their badges giving them an impressive appearance.

“What’s all that?” asked the Governor curiously.

“That,” replied Judith with a laugh, “is the Toby Clark Marching Club.”

“Toby Clark—Toby Clark,” he said musingly. “A local celebrity, Judith?”

“Yes; a lame boy who has been arrested for stealing. These children resent the unjust accusation and have organized the Marching Club to express their indignation and their unfaltering loyalty to their friend.”

“Good!” he cried; and then, after a moment, he added: “Unjust accusation, Judy?”

“Absolutely unjust,” she replied.

He took down his feet and sat up straight in his chair.

“Tell me about it,” he said.

“Phoebe can do that better than I,” was the answer. “She is one of Toby Clark’s staunchest defenders.”

“Now, then, Phoebe, fire away.”

She told the story, quietly and convincingly, beginning with Judge Ferguson’s sudden death and relating Mrs. Ritchie’s demand for her box, its disappearance and the finding of evidence on the premises of Toby Clark, who had been promptly arrested and held for trial on the charge of stealing. She told of Mr. Spaythe’s unaccountable defense of Toby, employing a lawyer, furnishing his bail, and then giving him an asylum in his own house, and concluded with the donation of fifty dollars by an unknown person—through Spaythe’s bank—for the benefit of the Marching Club.

The governor listened without interruption or comment to the end, but it was evident he was interested. When Phoebe had finished he rose to his feet and walked over to where the boys and girls were drilling, where he stood watching Don explain the maneuvers and direct the exercises. The Great Man noted every child's face and marked its expression. Then he strode among them and facing the astonished assemblage held up his hand.

"How many of you believe Toby Clark is innocent?" he asked.

The yell they gave was decidedly unanimous.

"How many of you would be willing to take his chance of going free?" continued the governor in an earnest tone.

There was hesitation, this time.

"I would!" cried Don. Then he turned to the others. "All of you who would be willing to take Toby Clark's chance of going free, step over here beside me."

Allerton and Becky, inspired by loyalty to the cause, moved over at once. The others stood silent.

"It is this way, sir," said Doris, who had no idea who the strange man was, but was impressed by his voice, nevertheless, for it was a voice accustomed to command respectful attention: "We all know that Toby is innocent, but we are not at all sure he will go free."

"Why not?"

"Because the law is so unjust, at times," replied the little maid, "and a very bad man who is a lawyer is trying to prove that Toby is guilty."

"It looks like he was, the way they've figured it out," added Becky; "only of course he can't be."

"Sometimes," said the governor, as if to himself, "the innocent is made to suffer for the guilty. Now, it seems to me the question is this: If Toby Clark

is innocent, who, then, is guilty? Find the guilty one and Toby goes free. Otherwise—the law may be perverted and justice miscarry.”

They looked very sober at this, and Don blurted out:

“We’re not detectives, sir, and we don’t know who is guilty. Hasn’t the state any way of protecting its people? Isn’t there anyone whose business it is to see that justice don’t miscarry? Our business is just to stand by Toby Clark, ’cause we know he’s innocent, and we mean to show ev’rybody in Riverdale that we believe Toby Clark couldn’t do anything mean if he tried. He’s good stuff, all through, even if he is a poor boy, and whatever happens we’ll stand by him to the last.”

The governor nodded his approval.

“That’s right,” he said. “Stand by your friends. There’s no better motto than that. I wish you success.”

Then he turned and walked away.

“Where is Toby Clark now?” he asked when he had rejoined Phoebe and Judith.

“He is at Mr. Spaythe’s house. He doesn’t go out much, for this dreadful charge against him makes him ashamed to face people,” replied Phoebe.

“I want to see him,” said the governor. “Will you take me to him after dinner?”

“Gladly!” cried Phoebe, sudden hope springing up in her breast, for the governor was a power in the land.

He said nothing more on the subject until after dinner. Phoebe almost feared he had forgotten about Toby Clark, for during the afternoon he chatted with Cousin Judith and during dinner he joked with Becky and Don and even with Sue, the demure and big-eyed. Cousin John won the entire family without effort, and even Aunt Hyacinth, hopping about in the kitchen, told the tea-kettle that “dis yer guv’ner ain’t no diff’rence f’m a

plain, ever'day man. He jus' natcherly takes to de whole kit an' caboodle, seein' he's cousin to Miss Judy an' not stuck up ner refrigerated a bit—no more 'n dem blessed child'ns is.”

But after dinner he walked into the hall and picked his hat from the rack, which Phoebe decided was a signal that he was ready to go to Toby Clark. So she threw on a jacket and joined him, for the evenings were getting cool of late, and together they strolled through the back streets, avoiding the business part of the town, and so reached Mr. Spaythe's house.

CHAPTER XIII

HOW TOBY SAW THE GREAT MAN

Mr. Spaythe himself opened the door and took a step backward in astonishment.

“Why, Governor—is it really you?” he stammered.

“Yes. Good evening, Spaythe. I’ve called to see Toby Clark.”

Mr. Spaythe led the way to the library, thoroughly amazed at the suddenly apparition of the state’s chief executive.

“I’ll call Toby,” he said briefly.

“Do not tell him who I am, please,” cautioned the governor. “I am simply Judith Eliot’s cousin, and am at present visiting her.”

“I understand, sir.”

Toby came stumping in on his crutch, with a smile for his friend Phoebe and a frank handshake for Miss Eliot’s cousin.

“I am a stranger here but have become interested in this unfortunate accusation against you,” began Cousin John, in his easy, conversational way. “No; don’t go away, Mr. Spaythe; there’s nothing private about this interview. I merely want Toby Clark to tell me his story and explain why they charge him with taking and rifling Mrs. Ritchie’s box.”

“The story is easy, sir, but the explanation is difficult,” replied Toby, and then he told in his own way the manner in which the circumstantial evidence against him had been found. The boy’s story did not differ

materially from Phoebe's, except that he added a few details that she had neglected to mention.

"I can scarcely blame them for their suspicions," Toby concluded. "Being poor, they decided I longed for money and would not object to taking that which belonged to some one else. As I knew the contents of the box and had access to Judge Ferguson's office, the conclusion is natural that I helped myself to Mrs. Ritchie's money and bonds and afterward tried to hide the useless but incriminating papers and the box."

"Who discovered the box, and afterward the papers?" asked the Governor.

"Our constable here, Sam Parsons. He is one of my best friends. But they sent a policeman over from Bayport to help him."

"How did Parsons happen to search your premises for such evidence?"

Mr. Spaythe started to answer this question, but checked himself and remained silent. It was Toby who replied:

"After I was arrested, on a warrant sworn out by Mrs. Ritchie, her lawyer, a man named Kellogg, urged Parsons to search my house and yard. He did so, and found the box. Afterward Kellogg insisted on another search, and the papers were found."

The governor looked grave.

"It is strong evidence," said he, "and of the sort that convicts. Who stole the box, Mr. Spaythe?"

The banker started at the abrupt question.

"I—I haven't an idea, sir."

"Nor you, Toby?"

"No, sir. I've racked my brain many times in the attempt to guess; but I can't suspect anyone, with justice."

“Well, I am sorry for your misfortune, young man. You seem to be in a serious dilemma. It’s a peculiar case, to say the least of it, and I can only say I hope you’ll come out on top and with colors flying. All ready, Phoebe?”

As they walked back to the house the girl felt sorely disappointed over the result of the interview, from which she had hoped so much. The governor talked on all sorts of subjects except that of Toby Clark and she replied as cheerfully as she could. Not until they were in sight of the Daring house did he refer to the visit, and then it was to say absently:

“Kellogg—Kellogg. What’s the lawyer’s other name?”

“Abner, sir.”

“Fine fellow?”

“I don’t like him,” said Phoebe.

“Ah! Judith tells me you’re investigating this case yourself; posing as a sort of female detective.”

“Oh, no!” she protested. “Cousin Judith and I—merely in a laughing way and yet earnest in our desire to help Toby—organized a private conspiracy to probe the mystery in our own way and try to discover its solution. I suppose, sir, we are very foolish to think we can accomplish anything, but —”

“But you may succeed, nevertheless. I believe in girls. When they’re sincere and determined they can accomplish wonders. By the way, keep an eye on Abner Kellogg.”

“The lawyer?” she asked in surprise.

“Yes. Ask yourself this question: Why did Abner Kellogg direct the constable to search Toby Clark’s premises? And now let us talk of something else, for here is Judith waiting for us.”

The governor had a jolly, restful evening. He played dominoes with Becky, who was allowed to sit up on this important occasion, and afterward, when the youngsters were in bed, lay back in an easy chair and smoked a cigar while Phoebe played some simple old-fashioned melodies on the piano which warmed his heart. Cousin John really enjoyed his visit to Riverdale and honestly regretted it must be so brief.

“I’m coming again, some time,” he promised, as he prepared to walk to the station after breakfast. “These few hours with you have rested me wonderfully and enabled me to forget for the moment the thousand and one worries and cares incident to my office. It is no sinecure being a public servant, I assure you. The people insist that I earn my salary.”

Phoebe and Judith walked down to the train with him and the secret must have leaked out in some way for, early as it was, a throng of villagers had assembled on the platform. The governor frowned slightly, but then smiled and bowed in answer to the ringing cheer that greeted his appearance. As he waited for the train to pull in he whispered to Phoebe: “If you get snagged over that Toby Clark affair, send me a telegram. The boy is innocent. I’ve seen and studied him, and I’ll vouch for his honesty. But on his trail is a clever enemy, and you’ll have to look sharp to circumvent him.”

Then he kissed Judith, jumped on the platform of the car and waved his hat to the cheering crowd as the train carried him away.

“We’ve gained an added prestige through the governor’s visit—if it’s worth anything to us,” laughed Judith, on the way home.

“Isn’t he splendid?” cried Phoebe, enthusiastically. “He wasn’t a bit stilted or self-important, as such a great man has the right to be, but acted just like an old friend.”

“Exactly what Cousin John is,” replied the Little Mother. “The great are always human, Phoebe; sometimes the more human they are the greater they become. And they grow to judge fame and public adulation at its proper value and are not deceived nor unduly elated at popular acclaim. When the next governor takes his seat the present governor will be speedily forgotten. Cousin John realizes that, and—”

“But he’s to be president, some day; everybody says so!” exclaimed Phoebe protestingly.

“They’ll forget that, too,” returned Judith, with a smile. “I wouldn’t care to have Cousin John become president; he is tired from long service, and deserves a rest.”

“It’s a great honor,” sighed Phoebe.

“It’s a compliment, certainly,” said Judith. “Yet the highest honor a politician can win is to be known as a faithful friend to the people, and that honor is already awarded to Cousin John.”

Phoebe went about her duties thoughtfully. The interest shown in Toby Clark’s fate by the governor had the effect of encouraging and discouraging her at one and the same time. She considered especially his advice with regard to Lawyer Kellogg, but could not understand why he attached so much importance to Kellogg’s direction that Toby’s house and yard be searched. It had seemed natural to her that the lawyer, who had disliked Toby because the boy served his rival, Judge Ferguson, had promptly suspected him of taking the box and, in Mrs. Ritchie’s interests, had directed the search which was the simple outcome of Toby’s arrest.

Sam Parsons would have some idea about Mr. Kellogg’s part in the affair. She had intended to see Sam and question him ever since Cousin Judith advised such a course, and now she decided to lose no more time in doing so. She had known the constable all her life and regarded him as a trusty friend; therefore the girl had no hesitation in going that evening to his humble home, which was only two short blocks from the Daring house.

“Sam’ll be in in a minute,” reported Mrs. Parsons, whose hand was too wet to shake, for she had left her dish-washing to open the door. “Come inside, Miss Phoebe, an’ set down.”

She left the girl alone in the sitting room and went back to her kitchen, and Phoebe sat down and waited. It was already more than “a minute” and she realized she might have to wait a considerable time for Sam, whose movements were uncertain.

She glanced around the room. In one corner the constable had his desk, littered with all sorts of documents, while the pigeon-holes contained a variety of rubbish. Underneath, on the floor and directly in the corner, was a heap of newspapers and illustrated periodicals, irregularly piled. Phoebe stooped and reaching underneath the desk drew out one or two papers to read while she waited. Then she gave a suppressed cry of astonishment, for even by the dim light of the one kerosene lamp she saw that she had uncovered a tin box painted blue, which had been hidden by the papers. Kneeling down she lifted the box and quickly examined it. On one end was painted the name "Ritchie" in white letters and the lock was in perfect condition, so that she could not lift the cover.

Fearful of being surprised, she hastily replaced the box and laid the papers over it, as before; then, rising to her feet, she resumed her chair and became aware that Sam Parsons was standing just inside the door, regarding her thoughtfully.

CHAPTER XIV

HOW THE CONSTABLE ARGUED HIS CASE

Phoebe turned first white and then red, consumed with shame at being caught prying into the affairs of others. But the constable merely nodded and sat down in a rocker, which thereafter he kept moving in a regular, deliberate manner.

“Evenin’, Phoebe. Lookin’ at the Ritchie box?”

“That can’t be the Ritchie box, Sam,” she replied.

“Why not?”

“The box—the other box—the one they found in Toby’s rubbish-heap—was bent and battered out of shape, and the lock smashed. I saw it myself.”

“M—m. O’ course. So did I. And here’s another Ritchie box in good shape. You’ve seen that, too.”

“I—I was going to read one of the papers, while I waited, and I—I—uncovered the box by accident.”

“It’s all right, little girl. No harm done. But can you tell me which is the real Ritchie box—this or the other?”

“Is one an imitation, Sam?”

“Must be. Judge Ferguson only kept one Ritchie box in his cupboard. Them boxes are kept in stock at the hardware store, an’ the judge bought ’em when he needed ’em. They’re heavy sheet tin, over a steel frame, an’ the locks are the best there is made. The boxes are all black, when they’re new, but for some reason—p’raps so’s to tell it easy—the judge had ’em

painted different colors, with the names on 'em. The Ritchie box was blue. I s'pose, Phoebe, it wouldn't be much of a trick to buy a box, an' paint it blue, an' put 'Ritchie' on the end of it; would it?"

He spoke lightly, but there was an anxiety underlying the lightness that did not escape Phoebe's notice.

"Which is the real Ritchie box, Sam?" she asked breathlessly.

"I don't know, Phoebe."

"Where did you get this one?"

"I—can't—tell—you. That's my private business, an' I'll ask you not to mention to a soul on earth that you've seen it."

She looked at him with a puzzled expression. Then she asked:

"Sam, does Lawyer Kellogg buy those boxes at the hardware store?"

"So they tell me," he replied, shifting uneasily in his chair. "Kellogg's got a few clients, you know, and he keeps his papers in a good deal the same way as the judge did—only he's got a big safe to put the boxes in."

"I suppose no one else in Riverdale ever buys such boxes?" she continued.

"I don't know. Might, if they had any use for 'em," he replied.

She sat silent for a time.

"Sam, are they going to convict Toby of this crime?" she presently asked.

He hesitated.

"Looks like it, Phoebe. Looks confounded like it, to me, and I've had a good deal of experience in such things."

"Won't you save him, Sam?"

“Who? Me? How can I?”

“I thought you were Toby’s friend.”

“So I am. I’d give a year o’ my life to save Toby from prison, if I could; but—it’s out o’ the question, girl; I can’t!” he said emphatically.

“You can!”

“What do you mean, Phoebe Daring?”

“Sam Parsons, you know who stole Mrs. Ritchie’s box.”

He looked at her steadily and not a muscle of his face changed expression.

“Think so?”

“I know it. And, unless you save Toby of your own accord, I’ll make you go on the witness stand and confess the whole truth.”

“How can you do that—if I don’t know?” he asked slowly.

“You *do* know. I’ll tell the judge at the trial how you were caught twice in the hall before Judge Ferguson’s door—once looking through the keyhole; I’ll tell how I found a blue Ritchie box hidden in your home, and how you found another in Toby’s rubbish heap; and the judge will make you explain things.”

The constable gave a low whistle; then he laughed, but not merrily; next he rubbed his chin in a puzzled and thoughtful way while he studied the young girl’s face.

“Phoebe,” said he, “I used to tote you on my back when you were a wee baby. Your mother called me in to see you walk alone, for the first time in your life—it was jus’ two steps, an’ then you tumbled. You used to ride ’round the country with me in my buggy, when I had to serve papers, and we’ve been chums an’ good friends ever since.”

“That’s true, Sam.”

“Am I a decent fellow, Phoebe? Am I as honest as most men, and as good a friend as many?”

“I—I think so. I could always trust you, Sam. And so could my father, and Judge Ferguson.”

“If that’s the case, why do you think I’d let my friend Toby Clark serve a term in prison for a felony he didn’t commit, when I could save him by tellin’ what I know?”

“I can’t understand it, Sam. It’s so unlike you. Tell me why.”

He sighed at her insistence. Then he said doggedly.

“Our secret, Phoebe? You’ll keep mum?”

“Unless by telling I can save Toby.”

He reflected, his face very grave.

“No; you couldn’t save Toby by telling, for no power on earth can make Sam Parsons speak when he’s determined to keep his mouth shut. It’s for you I’m goin’ to speak now, an’ for no one else. I’d like to explain to you, Phoebe, because we’re old friends, an’ we’re both fond of Toby. It’ll be a sort of relief to me, too. But no judge could make me tell this.”

“Then I’ll promise.”

He rocked to and fro a while before he began.

“It worries me, Phoebe, to think that you—a mere child—have found out what I don’t want found out. If my secret is so loosely guarded, it may not be a secret for long, and I can’t let others know all that I know. The truth is, Phoebe, that I don’t know for certain sure who took the box, not seein’ it taken with my own eyes; but I’ve a strong suspicion, based on facts, as to who took it. In other words, I’ve made up my mind, firmly, as to the thief, and for that reason I don’t want any detective work done—any pryin’ into

the secret—by you or anyone else; for I mean to let Toby Clark take the punishment and serve his term in prison for it.”

“And Toby innocent!”

“And Toby as innocent as you or I.”

“But that’s a dreadful thing to do, Sam!”

“It is, Phoebe; it’s dreadful; but not so dreadful as telling the truth. I’m only a plain man, my child, without education or what you call ‘gloss’; I’m just a village constable, an’ likely to be that same until I die. But I’ve got a heart, Phoebe, an’ I can feel for others. That’s the only religion I know; to do to others as I’d like ’em to do to me. So I figure it out this way: To bring the—the—person—who took Mrs. Ritchie’s box to justice, to tell the whole world who the criminal is, would bring grief an’ humiliation to some of the kindest and truest hearts in all Riverdale. It would bow them with shame and ruin their lives—not one, mind you, but several lives. It wouldn’t reform the—the one—who did it, for the—the person—wouldn’t do such a thing again; never! It was a case of sudden temptation and—a sudden fall. Prison would wreck that life beyond redemption, as well as the lives of the relations and—and friends, such as I’ve mentioned.

“On the other hand, evidence points to Toby Clark, and unless the real—person—who took the box is discovered, Toby will be convicted on that evidence. That’s the horror of the thing, Phoebe; but horror is sure to follow crime, and a crime has been committed that some one must suffer the penalty for. Who is Toby Clark? A poor boy without a single relative in the world to be shamed by his fate. Friends, yes; a plenty; you and I among ’em; but no friend so close that the prison taint would cling to ’em; *not even a sweetheart has Toby*. So it’s Hobson’s choice, seems to me. I’m dead sorry for the lad; but it’s better—far better—an’ more Christianlike to let him suffer this fate alone, than to condemn many others to suffering—people who have done no wrong, no more ’n Toby has. He’s just one, an’ a boy; the others are—sev’ral, and I consider it best to let Toby redeem ’em. That’s all, Phoebe. Now you understand me, and I know you’ll stand by me and say I’m right.”

The girl had followed these arguments in wonder and perplexity. She felt that Sam Parsons might be right, in a way, but rebelled against the necessity of letting the innocent suffer.

“I know Toby,” she said softly; “but the others I don’t know.”

“Yes; you do,” he contended. “You know ’em, but you don’t know who they are. What diff’rence does that make?”

“Who took the box, Sam?”

“I’ll never tell.”

“My friends and relations are all responsible for me, in a way, and I am responsible to them,” said Phoebe reflectively. “One thing that would keep me from willfully doing wrong is the knowledge that I would grieve others—those near and dear to me.”

“To be sure!” replied Sam, rubbing his hands together; “you’re arguin’ on my side now, Phoebe. S’pose in a moment of weakness you yielded to temptation? We’re all so blamed human that we can’t be sure of ourselves. S’pose you had a hankerin’ for that money of Mrs. Ritchie’s, an’ s’pose on a sudden you got a chance to take it—an’ took it before you thought? Well; there you are. Prison for you; shame and humiliation for all that are dear to you. Eh? Toby Clark? Well, it’s too bad, but it won’t hurt Toby so very much. He couldn’t expect much in life, anyhow, with his poverty, his bad foot, an’ the only man that could push him ahead dead an’ gone. But what’s one ruined career as compared to—say—half a dozen? Toby’ll take his sentence easy, ’cause he’s strong in his innocence. The others would be heartbroken. It’s far better to let Toby do the penance, seems to me.”

Phoebe could not answer him just then. She was too bewildered. The girl understood perfectly Sam’s position and realized that in opposing it she expressed less charity and kindness than the constable.

“I’m going to think about it,” she said to him. “I’m so surprised and confused right now by what you’ve told me that my senses have gone

glimmering. But it strikes me, Sam, that we ought to find a way to save Toby without implicating the guilty one at all.”

He shook his head negatively.

“That would be fine, but it can’t be done,” he replied. “We’ve got to produce the thief to get Toby out of the mess, for otherwise the evidence will convict him.”

“Can’t we destroy the evidence—upset it—prove it false?” inquired the girl.

“Not with safety to—the other party. But do as you say; go home an’ think it over. The more you think the more you’ll feel I’m right, an’ that your best course is to lie low an’ let Toby take his medicine. The life in prison ain’t so bad; plenty to eat, a clean bed and work to occupy his time.”

“But afterward? If he lives to come out he will be despised and avoided by everyone. No one cares to employ a jail-bird.”

“I’ve thought of that, Phoebe. Here in Riverdale Toby couldn’t hold his head up. But it’s a big world and there are places where his past would never be discovered. I’ll look after the lad, if I’m alive when he gets free, and try to help him begin a new life; but, anyhow, he must face this ordeal and make the best of it.”

Phoebe went home discouraged and rebellious. She kept telling herself that Sam Parsons was right, all the time resenting the fact that the common, uneducated man looked at this unfortunate affair in a broader, more philanthropic light than she could, and was resolved to do his duty as his simple mind conceived it. The girl’s heart, stifled as she would, cried out against the injustice of the plan of sacrifice. Sam knew all the parties concerned, and could therefore judge more impartially than she; but even that argument did not content her.

CHAPTER XV

HOW THE BAND PLAYED

Ed Collins, the leader of the Riverdale Cornet Band, was much amused when the four children—two Darings and two Randolphs—came to him in breathless excitement and wanted to hire his band to parade with the Marching Club on Saturday afternoon. Ed kept a tailor shop and was a good-natured, easy-going fellow who was fond of children and liked to humor them, but this proposition seemed so absurd that he answered with a smile:

“Bands cost money. The boys won’t tramp the streets for nothing, you know.”

“We’ll pay,” said Don, offended that he was not taken seriously. “I said we wanted to *hire* your band. Their business is to play for money, isn’t it?”

“Sometimes,” said Ed; “and sometimes they play for fun.”

“This’ll be fun,” suggested Becky.

“Not for the band, I guess. You’d want us to play every minute,” said the tailor.

“Of course; that’s what bands are for. When they don’t play, nobody pays any attention to them,” declared the girl.

“They have to get their breaths, once in awhile,” suggested Ed.

“Let ’em do it when they’re not parading, then. You can’t expect us to pay ’em to breathe,” said Becky.

“We have money,” said Doris, with dignity, thinking it time to interfere. “What is your lowest price?”

The leader looked at her in surprise.

“You’re in earnest?” he demanded.

“Of course!” they cried in a chorus.

“How many men do you want?”

“All you’ve got,” said Don; “and they must wear their new uniforms.”

“We’ve twelve men, altogether, and when we’re hired for an afternoon we get three dollars apiece.”

“That is thirty-six dollars,” replied Doris. “Very well; do you wish the money now?”

The tailor was amazed.

“What’s it all about, anyhow?” he inquired.

“We’ve organized the Toby Clark Marching Club—over a hundred boys and girls—the best lot in the village,” explained Don. “We want to show everybody in Riverdale that we don’t believe—not for a single minute—that Toby ever stole Mrs. Ritchie’s box, and we’re going to carry signs an’ banners an’ march through the streets with the band playing.”

Collins stared a minute, and then he laughed.

“That’s great!” he exclaimed. “I’m with you in this deal, for it’s a shame the way they’re treating Toby. Perhaps I can get the boys to play for two dollars apiece, on this occasion.”

“We’ve got fifty dollars,” announced Doris, the treasurer. “It was given us by some one anxious to befriend Toby Clark and we’re to spend it just as we please.”

“Oh. Do you want fifty dollars’ worth of music, then?” asked the tailor, with an eye to business.

“No,” said Don; “that is, not all at once. If your twelve men will play for twenty-four dollars, we could hire them twice. If this first parade’s a success, I want to take all the Club and the band over to Bayport, and make a parade there.”

“Dear me!” said Becky, to whom this idea was new; “how’ll we ever get such a mob over to Bayport?”

“It can’t be done,” declared Allerton.

“Yes, it can,” persisted Don. “If we wake up the folks in Riverdale we must wake ’em up in Bayport. That’s the county seat and the trial will be held there, so it’s a good point to show the Bayporters what we think of Toby Clark.”

“How’ll you get us there—walking?” asked Becky.

“We’ll hire carryalls, an’ rigs of all sorts,” said Don.

“We can’t hire much if we spend all our money on bands,” Allerton replied.

“We’ll get more money. P’raps the Unknown will fork over another wad for the good of the cause.”

“Tell you what I’ll do,” said Collins, catching some of the children’s enthusiasm, “I’ll play for nothing, myself, and perhaps some of the other men will. Those that insist on money will get two dollars apiece.”

Becky took her badge from her pocket and pinned it on the tailor’s coat.

“You’re the right stuff, Ed,” she remarked. “But don’t show your badge to anyone until Saturday; and don’t blab about the parade, either. We want to surprise folks.”

The band appeared in force at one o'clock on Saturday afternoon, meeting the Marching Club on the Daring grounds, as had been arranged. The musicians wore their best uniforms and looked very impressive with their glittering horns and their drums. Ed whispered to Don and Allerton that seven of the twelve had agreed to donate their services, so the total cost of the band would be but ten dollars.

This was good news, indeed. The youthful officers quickly formed their ranks, for every boy and girl was excited over the important event and very proud to be a member of the Marching Club.

Judith and Phoebe came out to see the parade start and they thought these bright and eager young folks could not fail to impress their belief in Toby Clark's innocence on all who witnessed this day's demonstration.

The children had "chipped in" whatever money they could command to pay the village sign painter for lettering in big black letters on white cloth three huge banners, which had been framed and were to be carried in the parade. The first, which the butcher's big boy carried just in front of the band, read:

"THE TOBY CLARK MARCHING CLUB."

The second, which was borne in the center of the procession, said:

"WE KNOW THAT TOBY CLARK IS INNOCENT."

The third sign, carried in the rear ranks, was as follows:

"JOIN US IN DEMANDING JUSTICE FOR TOBY.
YOU MIGHT BE FALSELY ACCUSED YOURSELF
SOME DAY."

This last was so big that it required two to carry it, and four guy-ropes, gayly decorated with colored ribbons, were held by four of the girls to give it more steadiness. In addition to these, two big American flags were carried in the line.

Don took his place at the head of the First Division, just behind the band. Allerton commanded the Second Division. Doris and Becky walked at either side, armed with bundles of handbills which Allerton had printed, urging the public to defend Toby Clark in every possible way, because he was helpless to defend himself.

Then the band struck up a spirited march tune and started down the street with the Marching Club following in splendid order and keeping fairly good step with the music. The white sashes and caps gave the children an impressive appearance and their earnest faces were very good to behold.

To most of the Riverdale people the parade was a real surprise and all were astonished by the numbers and soldierly bearing of the youthful participants. Many a cheer greeted them in the down-town districts, where numerous farmers and their families, who had come to Riverdale for their Saturday shopping, helped to swell the crowd of spectators.

“They ought to told us ’bout this,” said Tom Rathbun the grocer to the group standing outside his store. “We’d ’a’ decorated the town, to give the kids a send-off. I’ve got a sneakin’ notion, myself, as Toby is guilty, but that don’t cut no ice if it amuses the kids to think as he’s innercent.”

“Pah!” returned Griggs the carpenter, with scornful emphasis, “I’m ’shamed o’ you, Tom Rathbun. Can you look in the faces o’ them children, who all know Toby better’n we grown-ups, an’ then say the boy’s guilty?”

“They ain’t got no sense; they’re jest kids,” retorted the grocer.

“Sense? They’re full o’ sense, ’cause they ain’t prejudiced an’ stubborn, like us old ones,” claimed the carpenter. “Children has intuitions; they’ve a way of tellin’ the true from the false in a second, without any argyment. You might fool one youngster, p’raps, but when you see a whole crowd like this declarin’ the innercence of one who they knows through an’ through, you can bet your bottom dollar they’re right!”

A good many thought and argued as old Griggs did; those who had formerly condemned Toby became thoughtful and began to reconsider their judgment; even the most rabid believers in the boy’s guilt were silent in the

face of this impressive demonstration and forbore any remarks that might irritate the youthful champions.

The one exception was Dave Hunter, who had developed so strong an antipathy toward Toby that nothing seemed to mollify it. The telegraph office was at the railway station and as Dave stood outside with Wakefield, the station agent, watching the parade pass, he said sneeringly:

“The little fools! What good can they do? We’re not the judge and jury, and if we were we wouldn’t be influenced by a lot of crazy little beggars marching.”

“You’re ’way off, Dave,” replied Wakefield. “Nothing influences one more than the pleading of children. We can’t tell yet who the jury will be, but if any of them happen to see this parade to-day you can gamble that the opinion of these marchers will have a lot of weight with them.”

“There’s nothing sound in their opinion; it’s mere sentiment,” growled Dave.

“Sentiment? Well, that counts for a good deal in this world,” observed Wakefield, an older and more experienced man. “These children are dear to a lot of folks, who will side with them first and last; not through cold reason, but through sentiment.”

Indeed, almost every parent in Riverdale had a boy or girl in the parade and was proud to own it. Parents usually stand by their children when they evince generosity and loyalty and it is certain that the effect of this great parade helped the cause of Toby Clark more than its organizers suspected.

Don and Becky Daring and the Randolphs believed firmly in Toby’s innocence, but were animated as much by the novelty and excitement of promoting the Marching Club as by the belief that they could assist their friend by its means. Yet the fun of the undertaking did not lead them to forget the original cause and when the parade reached Mr. Spaythe’s house it halted and gave three rousing cheers for Toby Clark, afterward standing at attention while the band played through an entire tune. The crowd that had assembled called loudly for Toby, but the poor boy was hidden behind the

curtains of a window, trying to see his loyal army through the blinding tears that streamed from his eyes. Toby couldn't have spoken a word had he appeared, there was such a hard lump in his throat; but he kept repeating to himself, over and over again:

“It's worth it all! It's worth anything that can happen to know I am so loved and respected by all the boys and girls. I don't care, now. Let 'em do their worst. I'm happy!”

After more cheers the procession moved on and as the sound of the music died away in the distance, Toby Clark, in the seclusion of his room, fell on his knees and earnestly thanked God for giving him such friends.

CHAPTER XVI

HOW MRS. RITCHIE CHIDED HER LAWYER

The parade was the one topic of conversation in the village. The editor of the *Riverdale News*, Mr. Fellows, interviewed Don and Allerton, got the name of every member of the Marching Club and published the list incident to a two-column article in his paper, in which he sided with the children and strongly espoused the cause of Toby Clark. Mr. Fellows always liked to side with popular opinion and he shrewdly guessed that the children voiced the sentiment of the majority of Riverdale citizens. The editor rendered Sam Parsons very uneasy by concluding his article with a demand that the guilty person be discovered, so as to free Toby from any further suspicion, and he stated that if Mr. Holbrook, the lawyer defending Toby, and the village officers—meaning of course the constable—were unable to find the real criminal and bring him to justice, then outside aid should be summoned and detectives brought from the city.

In this demand poor Mr. Fellows found he had gone a step too far. Mr. Spaythe, angry and resentful, called on him and requested him not to publish any more such foolish ideas. Sam Parsons called on him and politely but firmly requested him to mind his own business. Mr. Holbrook called on him and sarcastically asked if he preferred to undertake the case, with its responsibilities, rather than trust to the judgment of a competent attorney. The bewildered editor tore up the article he had written for the next edition and resolved to keep silent thereafter, as a matter of policy.

Lawyer Kellogg was also keeping very quiet, relying upon the evidence he had on hand to convict the accused. He was greatly annoyed at times by Mrs. Ritchie, who drove to town every few days—usually in the evenings—and urged him to get back her money and the missing paper. This the lawyer was unable to do, even when she offered him a thousand dollars for the recovery of the paper alone.

“What was the paper?” he asked.

“That don’t concern you,” she retorted.

“It does, indeed, Mrs. Ritchie,” protested the man. “How can I find a paper if I am totally ignorant of its character? Was it a deed, a mortgage, or what?”

She looked at him uneasily.

“I wish I could trust you,” she muttered; “but you’re such a lyin’ scoundrel that I’ve no confidence in you.”

“I’m honest to my clients, at all times, and as honest as most men in other ways,” he assured her. “I’ve often observed that those who can’t trust their lawyers are not honest themselves.”

“Meaning me, sir?”

“Yes.”

“Well, you’re right. That paper might cause me trouble if it got into the wrong hands,” she frankly stated. “Even Judge Ferguson never knew what it was, for I kept it sealed up in a long yellow envelope just marked ‘private’ on the outside. When the box was stolen the envelope and all disappeared.”

“What was the paper?” he asked again.

“A—a will.”

“Oh! Mr. Ritchie’s will?”

“No. But it was a will, giving me power over property. If you run across it, and see my name, don’t read the paper but bring it straight to me and the thousand dollars is yours—with the understanding you keep your mouth shut forever.”

He smiled at her complacently. Here was a streak of good luck that well repaid the unscrupulous attorney for undertaking Mrs. Ritchie's case and submitting to all her abuse. She admitted she was not an honest woman. She admitted the lost will would be damaging evidence against her. Very well, she was now in his power and as she was a rich woman he could extort money from her whenever he pleased, by simply resorting to threats.

Mrs. Ritchie read the smile correctly and nodded with grim comprehension.

"I've told you this for two reasons," she said. "One is so you can identify the paper if you find it, and bring it to me. The other reason is because I can put you in jail if you try to blackmail me."

"Oh; you can?"

"Easy. It was you that put that box in Toby Clark's rubbish heap, so the police could find it there. You got a box, painted it blue, to look like mine, put my name on the end, and then smashed the lock, battered the box all up an' carried it to the rubbish heap."

"Did I?"

"Yes. I found the blue and white paints in your office closet. I've seen several such boxes in your possession when you opened your safe. The lock of the box found in Toby's yard won't fit my key, for there were two keys to my box and I carried one and Judge Ferguson the other. Last of all, I was driving home one night when I saw you sneaking along the dark road. I got out of my buggy an' followed you, an' I saw you go into Toby's yard an' hide the box."

"Why did you say nothing of this until now?"

"Because I'd like to see Toby go to prison. It's a dead sure thing he stole my box, for no one else would have taken just that yellow envelope and hid the other papers where they might be found. So I mean to make him do time for that trick, behind prison bars, and the sort of evidence you fixed up will help send him there. But I want that paper back, and I want the money, an'

you've got to get 'em for me, Abner Kellogg. If you don't, I'll tell about the box. That act of yours was conspiracy, accordin' to law, and it'll mean state's prison for you."

Mr. Kellogg, rather uneasy to find the tables turned on him so cleverly, took time to rearrange his thoughts. Then he said:

"I didn't hide your papers in the boy's room. I received an anonymous letter, telling me where to look for them. Did you write that letter?"

"Don't be a fool. If I'd known, I'd have got the papers myself. I don't accuse you of hiding the papers, but I do know you manufactured that box evidence."

"Yes, for a purpose. If I had known the papers would be found I wouldn't have bothered about the box, for the papers are really the strongest proof against young Clark. But I wonder why, when he hid the other papers, he kept out the yellow envelope containing the will."

"He wanted to keep that," she said.

"Then you think he intended the other papers to be discovered? Nonsense! You're more clever than that, Mrs. Ritchie."

She frowned.

"Well, what then, sir?" she asked.

"This case is more complicated than you dream of," he replied. "I've a notion that others besides Toby Clark are implicated. If you were not so anxious for that paper, I'd say the safest plan we can follow is to convict Toby, put him in prison, and then let the matter drop. What harm will the loss of the paper do? No one would dare use it, for it would proclaim him the accomplice of the thief. If it's a will, a legal document, it has been probated and recorded, so no one will question your right to the property it conveys. Keep quiet about the loss and you will be safe. It seems to me that the only danger is in stirring things up."

She thought this over.

“Find it if you can,” she said, rising to go, “but don’t mention to a soul that it’s a will you’re looking for. Try and get Toby to confess; that’s the best plan. Promise him a light sentence; promise him anything you like if he’ll give up the yellow envelope, or tell you where it is. When we’ve got our hands on it we can forget all our promises.”

The lawyer nodded, with an admiring smile for his confederate.

“I’ll try,” he said, but with a doubtful accent.

“A thousand dollars for you if you succeed,” she repeated, and went away.

CHAPTER XVII

HOW PHOEBE SURPRISED A SECRET

While Phoebe freely applauded the generous efforts of the children on behalf of Toby Clark, she realized that it would require something more than Marching Clubs to save the boy from prison.

According to Sam Parsons, Toby ought to go to prison, as a scapegoat for others; but Phoebe could not reconcile herself to the decree of so dreadful a fate for a helpless and innocent waif—just because he had no near relatives to grieve over his sacrifice.

She had promised Sam not to tell his secret, unless by telling it she could save Toby, yet after much earnest thought she decided to relate an abstract case to Cousin Judith and ask her advice. So, outlining just how much she dared say and still be true to her promise, she went one afternoon to the Little Mother's room, taking her sewing with her, and while Judith painted, Phoebe led the conversation toward Toby Clark.

"I'm afraid," she remarked, after pursuing the subject for a time, "that we're not helping Toby as energetically as we ought. No one seems so much interested as we are, for neither Mr. Spaythe nor Lawyer Holbrook appear to be doing anything to find the real criminal. If things jog along this way, December will soon arrive and Toby will be tried and convicted before we realize it."

"True," said Judith. "I can't account for the seeming inactivity of Mr. Holbrook and Mr. Spaythe; yet it may be all seeming, Phoebe. Have you conceived any idea on the subject?"

"I've speculated about it, of course. Suppose, Cousin, these men should not wish to discover the real criminal. Suppose they know who took the

box, but want to shield the guilty one from disgrace, and so are willing to let Toby suffer?”

“Why, Phoebe, what a queer notion that is!”

“But it isn’t impossible, is it? Suppose one with many friends and relatives—a prominent and respectable person, you know—in a moment of weakness stole Mrs. Ritchie’s box. To save that person from the consequences, false evidence against Toby was manufactured. We know it is false evidence if Toby is innocent. Wouldn’t those in the secret think it better to let a poor and friendless boy suffer the disgrace and the prison sentence, rather than denounce one whose disgrace would drag down many others?”

Judith looked at her with a startled expression.

“Really, my dear, you may possibly have stumbled upon the truth,” she said slowly. “That is quite a reasonable hypothesis. How did you happen to think of it?”

Phoebe flushed at the necessity of dissimulating.

“Some one is guilty,” she replied evasively, “and there seems to be a conspiracy to defend the guilty one from discovery. But would it be right and just for them to do that, Cousin Judith? Would it be honest to let an innocent boy suffer for another’s crime?”

Judith reflected before answering.

“I think not,” she said. “Certainly not unless the innocent one willingly and voluntarily undertook to shield the guilty. There have been such instances of generous self-sacrifice, which all the world has applauded; but to condemn the innocent without his knowledge or consent seems to me as great a crime as the theft of the box—even a greater crime.”

“That is exactly how it seems to me!” cried Phoebe eagerly. “If I knew of such a thing, Cousin, and was able to foil the plot, would I be justified in doing so?”

The Little Mother looked at the girl thoughtfully.

“I suppose, Phoebe, that you have discovered something that warrants this suspicion, but are not ready to confide in me wholly at the present time,” she said.

“I’m so sorry, Cousin Judith; but——”

“Never mind. I am not offended, Phoebe. I know your frank and true nature and can trust you to do right, as you see the right. But move cautiously in this matter, my dear. Study the arguments on both sides of the question very carefully; then boldly follow the dictates of your heart. Without knowing more than I do of the matter, I should consider two courses of action open to you—if, indeed, you prove to be right in your surmise. One is to let Toby himself decide.”

“Oh; but that would settle it at once!” exclaimed Phoebe. “Toby is generous to a fault and, although he is proud, he keenly realizes his humble position. To ask him to suffer that another might be saved would be the same as thrusting him into prison. I know he wouldn’t refuse; and you know it, too, Cousin Judith.”

“Yet under some conditions it might be best, even then,” asserted Judith. “Best, I mean, from a politic point of view. But that would depend largely on who the guilty person is. The other alternative is to obtain proof against the real criminal, of a character sufficient to clear Toby, and then let the punishment fall where it belongs, regardless of consequences. That would be strict justice, for those who err should alone pay the penalty.”

“How about the friends who would share the disgrace?”

“That should prevent one from committing a fault, but once the fault is perpetrated it is no argument for mercy. Nor do I think that anyone is really disgraced because a friend or relative does wrong. People never condemn a woman because her husband is a drunkard; rather do they pity her. Nor is a relative properly held responsible for one’s crime. It is true that the taint of crime and prison attaches—unjustly—to one’s children and frequently ruins

their lives, for many believe in heredity of disposition. Such belief is, in my opinion, erroneous.”

“Suppose the guilty one fell in a moment of weakness and is now sincerely sorry?” suggested Phoebe.

“The more reason he should bravely bear whatever punishment the law provides. Really, Phoebe, in the abstract I can see but one way to look at this thing. There may be exceptional circumstances that would induce us to sacrifice Toby Clark to avoid a greater evil; but such an act would not be just; it could only claim policy as its excuse.”

Cousin Judith’s ideas coincided with those of Phoebe. The girl tried to argue on the side of Sam Parsons, but could not convince herself that he was right. Sam doubtless believed he was acting nobly and generously, and he knew more than did Phoebe about the case, but she resented injustice in any form and finally determined to sift the affair to the bottom, if possible, and save Toby at any cost. Was not his good name as precious to him as her own was to herself? What right had anyone to destroy it, that some weak offender of the law might escape?

Having once firmly decided her course of action, Phoebe resumed her careful, painstaking methods of deduction, such as she had formerly employed. In the light of her latest information many of her conclusions must be modified. Mr. Spaythe was not the guilty one, assuredly, for he had but one relation, his son Eric, and no close friends since the death of Judge Ferguson. Mr. Holbrook was such an utter stranger to Riverdale that Sam Parsons’ clemency could not apply to him. Will Chandler was the next on the list; a man of large family, a postmaster by the grace of the president of the United States himself, one of the village council, a highly respected citizen, a leading churchman and a warm personal friend of the constable. Both Sam Parsons and Will Chandler were officers of the local lodge—an argument that Phoebe did not appreciate the importance of. But it was impossible to suspect Will Chandler. Had his nature been weak enough to succumb to temptation, he might have robbed the post office at any time during the past twenty years of sums far greater than that contained in Mrs. Ritchie’s box. Mrs. Miller, the charwoman, was a person of so little

reputation that Sam would never think of shielding her had she stolen the box.

There remained, then, of all Phoebe's list of suspects, only Sam Parsons himself. If he had stolen the box—which she had discovered in his possession—the arguments he had advanced to induce her to keep silent would be just such as might be expected from a shrewd but uncultured man.

Yet Phoebe's knowledge of character was sufficient to induce her instantly to abandon any thought of connecting the constable with the crime. It was absolutely impossible for Sam Parsons to be guilty of the theft of money. She knew that intuitively. The man was an honest man, if honest men exist.

Phoebe soon came to realize that she must seek the guilty party outside the circle of probabilities she had formerly outlined. She knew, at least by sight and reputation, practically every inhabitant of the village. So she began to consider which one might have an object in taking the money, which one was a member of a large and respectable family, and which was weak enough in character to yield to sudden temptation. Sam had hinted at an unexpected chance to rifle the box, which chance had furnished the temptation resulting in the theft; but Phoebe knew nothing of such a sudden opportunity and, after puzzling her brain for several days over the problem, she decided to start out and attempt to secure some additional information which, in view of her recent discoveries, might guide her to the truth.

Many girls develop a native talent for unraveling mysteries and, both in modern journalism and in secret service, women have proved themselves more intelligent investigators than men. There was nothing abnormal in Phoebe Daring's desire to discover the truth underlying the complex plot of which Toby Clark seemed the innocent victim. She was sufficiently interested in the unfortunate boy to have a sincere desire to assist him, and she furthermore felt under deep obligations to Toby for his past services to her family, at a time when the Darings were in much trouble. It was her bounden duty, she considered, to save him if she could, for his interests seemed to be sadly neglected by those who should have strained every effort in his behalf. So she constituted herself his champion and the disappointments and rebuffs she met with only made her the more

determined to persevere. In a little town like Riverdale she could go and come without comment and, as a matter of fact, the young girl's investigations were conducted very quietly and secretly. No one but Cousin Judith was in her secret; even the children had no idea that Phoebe was "playing detective" in Toby's interest. She might have to be a little more bold and aggressive than before, if she was to succeed, but she felt that tact and a cool head would carry her through any emergency and these qualities she believed she possessed.

It would be useless to deny the fascination inherent in the task of solving a mystery such as this and although Phoebe Daring had sufficient reasons for undertaking it she became so intensely interested that the desire to succeed often overshadowed her primary object to help Toby Clark.

For one thing, she was anxious to know why Mr. Holbrook had shown so little interest in clearing his client of the accusation against him. The young lawyer scarcely knew Toby Clark and could not be personally inimical to his interests; so she determined to interview him again.

This time she induced Nathalie Cameron to accompany her. Nathalie was one of Toby's strongest sympathizers and without letting her suspect her real purpose Phoebe frankly told her friend that she wanted to bring Mr. Holbrook to book for not being more strenuous in the defense of his client.

The girls found the lawyer in his office and he received them with his usual polite deference.

"I'd like to know," said Phoebe, "what your plans are for destroying the evidence against Toby, at the coming trial."

The young man smiled and then looked grave. He saw that the girl was quite serious and, unwarranted as her interference might be, her position in Riverdale was sufficiently important to render it impolitic to deny her an answer.

"There is little we lawyers can do, in such a peculiar case as this, in advance of the trial," said he. "I have selected a number of witnesses whom I shall call to testify to young Clark's fine record and his good standing in

the community. But I count largely on the cross-examinations of the witnesses for the prosecution, and I shall appeal to the jury not to condemn a man on circumstantial evidence, which is so often misleading.”

“Then you are unable to disprove the evidence?” asked Phoebe indignantly.

“There is no way to do that, I fear. The incriminating box, for instance, was found on Toby Clark’s premises.”

“Are you sure of that?” she inquired.

“We can’t deny it. The regular officers of the law discovered it, where it was hidden. We can, and shall, deny that the accused placed it there, and—”

“And also we shall deny that it was Mrs. Ritchie’s box,” she added.

He stared at her, not understanding.

“I will give you a hint, to assist you,” she continued. “Ask them to prove it was Mrs. Ritchie’s box they found.”

“Why, it had her name painted on the end,” said Holbrook.

“I know that. I believe I could myself paint a name on a tin box, such as the hardware store keeps in stock for Judge Ferguson and Mr. Kellogg to use when they required them.”

“Kellogg?” he asked thoughtfully.

“Yes; he uses the same kind of boxes for valuable papers that Judge Ferguson did. But none of the locks of those boxes are ever duplicated; the keys are all different. At the trial, if you ask Mrs. Ritchie to produce her key, which must match the key kept by Judge Ferguson and now in the possession of Mr. Spaythe, you will find it will not fit the lock of the box discovered in Toby Clark’s back yard.”

Mr. Holbrook leaped from his chair and paced up and down the room, evidently excited.

“Good!” he cried. “Excellent, Miss Daring. That is exactly the kind of information I have been seeking—something that will disprove the evidence. But are you sure of your statement?”

“I have seen the genuine box,” said Phoebe quietly.

“Since it was stolen?”

“Yes.”

He sat down again and glanced into her face curiously.

“Yet you do not care to say where you have seen it?” he asked in a hesitating voice.

“No, sir.”

Mr. Holbrook drew a long sigh, as of relief.

“You are quite right to keep the secret,” he asserted firmly. Then, after a moment, he added in a low tone: “Has she told you everything, then?”

CHAPTER XVIII

HOW MR. SPAYTHE CONFESSED

It was Phoebe's turn to start and draw a long breath, but she managed to stifle her surprise and retain her self-possession. In an instant she knew that the young man, deceived by her reference to the box, had inadvertently committed himself and she determined to take advantage of his slip. Mr. Holbrook's question was so astonishing that for a moment it fairly bewildered her, yet the pause before she answered might well be mistaken for a natural hesitation.

"Not everything," she calmly replied. "But I had no idea you—knew—so much—of the truth, Mr. Holbrook," she continued, with a searching look into his face.

"I admit that I have been in a quandary how to act," he said confidently, yet in an eager tone. "But it gives me great relief to know that you, who are in the secret, can understand my motives and sympathize with my dilemma. At the very outset of my career in Riverdale I have a case thrust upon me that bids fair to ruin my prestige in the town, for unless I can disprove the evidence against young Clark, without implicating the real criminal, I shall be considered an unsuccessful lawyer. You and I realize that I can't implicate the guilty person, for that would arouse the indignation of all Riverdale; and unless I clear Clark, who has the sympathy of all, I shall be generally condemned. Just see what an impression that parade of the children made! I've puzzled over the matter continually, striving to find a solution, but until you came with your hint about a substituted box I was completely at a loss what to do. Can you tell me anything more?"

"I should not have told you so much, sir," she answered.

"I understand. We must be cautious what we say, we who know."

“How did you discover that—she—took the box?” Phoebe asked, breathing hard as she pronounced the word “she” but outwardly appearing calm.

The lawyer glanced at Nathalie, who had remained silent but amazed.

“Your friend knows?” he asked Phoebe.

“Not all,” she said. “Not—the name.”

“Oh. Well, I’ll avoid the name,” he continued, evidently eager to explain. “I was sauntering along the deserted street late at night—it was the night before the judge died, you remember—engaged in considering whether I should settle in Riverdale and undertake the practice of law, when two lawyers were already in the field, when my attention was arrested by a flash of light from the upper windows of the building opposite me—this building. It was not a strong light; not an electric light; more like a match that flickered a moment and then went out. I stood still, but was not particularly interested, when the flash was repeated, shaded this time and not so bright. It occurred to me there was something suspicious about that. The electric lights at the street corners proved that the current was still on and if it were Judge Ferguson, visiting his office so late, there was no reason he should not turn on the incandescents. If not the judge, some one else was in his office—some one who did not want too much light, which might be noticed, but enough for a certain purpose.

“I waited and saw the third match struck, which flickered a moment, like the others, and then went out. The doorway of the drug store, just opposite here, was quite dark; so I withdrew into its recess and watched the stairway of this building. Presently—she—came down, glanced cautiously into the street, and finding it deserted began walking hastily toward the east. She carried something under her arm, hugged tightly but too large to be completely hidden. I slipped out of the doorway and followed, keeping in the shadows. As she passed under the light at the corner I saw that what she held was an oblong box painted blue. I could even discover some white letters on the end but was unable to read what they spelled. Being quite positive, by this time, that there was something wrong in the stealthy

actions of the—person, I kept her in sight during her entire journey, until she reached her home and let herself into the dark house with a latchkey.

“At that time I did not know who lived in the place; indeed, it was not until the Ritchie box was reported missing that I cautiously inquired and found out who it was I had caught pilfering. Toby’s arrest followed, and the discovery of the evidence against him. Then, to my regret, Mr. Spaythe engaged me to defend Clark and my worries and troubles began, as you may easily guess, Miss Daring. I had no idea, until now, that another box had been substituted; but if that was done, then the evidence that was meant to convict my young client will do much to prove a conspiracy against him and therefore his innocence.”

Phoebe had listened with intense interest to every word of Mr. Holbrook’s explanation, which he made under the impression that she knew the whole truth concerning the theft of the box. She regretted that in order to lead him on to talk freely she had been obliged to say that Nathalie did not know the name of the mysterious “she”; for otherwise he might inadvertently have mentioned it, and she would have been in possession of the entire truth.

But Phoebe had learned a great deal; more than she had ever dreamed of, and she left the lawyer’s office greatly elated over her discovery.

Nathalie, completely bewildered by Mr. Holbrook’s admissions, as well as by Phoebe’s reference to a duplicate box, began to ply her friend with questions as soon as they were on the street; but Phoebe earnestly begged her to wait patiently until she could tell her all.

“I’m as ignorant as you are, Nathalie, as to who the ‘she’ is whom Mr. Holbrook saw take the box,” she declared. “He got an impression, somehow, that I know more than I really do, and spoke so frankly on that account that he let me into his secret—in part—unawares. I shall now be obliged to ferret out the rest of the mystery, but with my present knowledge to guide me that ought not to be very difficult.”

“Why should he have such a strong desire to shield her?” asked Nathalie thoughtfully.

“I don’t know. She may be some very respectable woman.”

“Would a respectable woman steal?”

“Well she might yield to some extraordinary temptation to do so,” replied Phoebe, thinking of Sam Parsons’ plea.

“And the box was stolen before Judge Ferguson died,” said Nathalie, wonderingly.

“Yes; so it seems. The general impression has been that it was taken afterward, as the result of his death. I wonder how this affair would have turned out had the dear old judge lived. He was worth any ten common lawyers and a dozen detectives.”

“So he was,” replied Nathalie. “Mr. Holbrook seems an honest and gentlemanly fellow, but he never can fill Judge Ferguson’s place.”

Phoebe, after parting from her girl friend, reflected that her feelings toward the young lawyer had changed under the light of to-day’s discoveries. She could imagine his perplexity when called upon to defend Toby, and could see how his desire to shield the guilty female or his fear of denouncing her would account for his lack of activity in the case. Doubtless Mr. Holbrook agreed with Sam Parsons—of whose opinion he was wholly ignorant—that it was better to let Toby suffer than to accuse the guilty one. These two men, Phoebe reflected, were influenced alike by motives of gallantry or consideration for the female sex; for, had not the guilty one been a woman—or perhaps a young girl—neither man would have undertaken to shield him from the consequences of his crime.

But Phoebe was inclined to condemn one of her own sex as frankly as she would a man. She was even indignant that an honest boy was to be sacrificed for a dishonest woman. She became more firmly resolved than ever to prevent such a miscarriage of justice.

She was greatly pleased, however, with Mr. Holbrook’s assertion that by proving the box found on Toby’s premises a fraud, the defense would stand a good chance of winning the trial. If that evidence fell down, all the rest

might well be doubted, and for a time the girl seriously considered the advisability of abandoning any further attempt to bring the guilty party to justice, relying upon the lawyer to free his client. But the thought then occurred to her that merely to save Toby Clark from conviction would not be sufficient to restore to him his good name. Some would still claim that justice had miscarried and the suspicion would cling to him for all time. The only thing that could reinstate the accused in the eyes of the world was to prove beyond doubt that some one else had committed the crime.

Forced to reconstruct all her former theories, Phoebe abandoned her "list of suspects" and wrote a new memorandum. It outlined the facts now in her possession as follows:

"1—The guilty one was a woman or a girl, of respectable family. 2—Some one deliberately attempted to incriminate Toby Clark by placing a fraudulent box in the boy's rubbish heap. 3—Sam Parsons now had the genuine box in his possession and wouldn't tell how he got it. 4—The theft was committed on the night before Judge Ferguson's sudden death. 5—Both Sam and Mr. Holbrook knew the identity of the criminal but would not disclose it; therefore information must be sought elsewhere."

After taking a day or two to consider these points Phoebe suddenly decided to see Mr. Spaythe and have a talk with him. The banker was now freed of any suspicion that might attach to him and he was the one person in Riverdale who had boldly defied public opinion and taken the accused boy under his personal protection. Therefore she might talk freely with Mr. Spaythe and his judgment ought to assist her materially.

She decided to go to the bank rather than to the Spaythe residence, where Toby might be in the way, so late in the afternoon she waited on the banker, who was in his private office. This was a room quite separate from the bank proper, which it adjoined and with which it was connected.

Mr. Spaythe admitted Phoebe at once and placed a chair for her with an inquiring look but no word of question. The girl knew him well, for her twin brother, Phil Daring, had once worked in Spaythe's Bank and, in common with many others in Riverdale, the Darings had cause to respect the banker very highly.

“I am trying hard, Mr. Spaythe, to solve the mysterious disappearance of Mrs. Ritchie’s box,” she began. “I am not posing as a detective, exactly, but as an interested investigator. My object is to bring the guilty one to justice and so clear Toby’s good name. It seems like a very complicated affair and I’ve an idea you can assist me to untangle it.”

Mr. Spaythe, leaning back in his chair with his eyes fixed full upon the girl’s face, was silent for a time, evidently in deep thought. He was thinking of the time when Phoebe had handled another difficult matter in so delicate and intelligent a way that she had saved him a vast deal of sorrow and humiliation. He was a reserved man, but Phoebe Daring was the banker’s ideal of young womanhood. Finally he said quietly:

“What do you wish to know?”

“Who stole the box, for one thing,” she said, smiling at him. “But in default of that information I will welcome any detail bearing on the theft.”

He considered this a moment, gravely.

“I stole the box, for one,” said he.

Phoebe gave a great start, staring wide-eyed.

“You, Mr. Spaythe!”

“Yes, Phoebe.”

“But—Oh, it’s impossible.”

“It is quite true, my dear. Some of the contents of the box are still in my possession.”

She tried to think what this admission meant.

“But, Mr. Spaythe, I—I—don’t—understand!”

“Of course you don’t, my child; nor do I. Let me explain more fully. On the afternoon following Judge Ferguson’s death I wanted to see Toby Clark

on a matter connected with the funeral, of which I had assumed charge because I believed I was the judge's closest friend. I did not know where to find Toby, but thinking he might be in the office I walked over there and entered, the door being unlocked. The place was vacant. Seeing the door of the smaller room ajar I walked in and found lying upon the table Mrs. Ritchie's box. It was open and the lid was thrown back. I saw it was empty except for a yellow envelope with the end torn off and a legal document. This last attracted my attention at once, because of the names written on it. I knew that Mrs. Ritchie had been accustomed to keep many valuables in her box and had often warned Judge Ferguson that it was not wise to make a safety deposit vault of his law office; therefore the circumstance of finding the practically empty box on his table made me fear something was amiss. I tried the cupboard, but found it locked; so I wrapped the box in an old newspaper and carried it away to this office, without mentioning the fact to anyone. At my leisure I examined the paper found in the box and deciding it was of great importance I put it away in the bank safe, where it is still in my keeping. I may as well add that I believe this is the missing paper which Mrs. Ritchie is so anxious to regain—and I well understand her reasons for wanting it."

His voice grew harsh as he said this and he paused, with a frown, before resuming in a more gracious tone:

"Later in the day, on my visit to the Ferguson house, Janet handed me her father's keys. When I returned to the office I found the key that fitted Mrs. Ritchie's box and locked it, although there was nothing then in it but the yellow envelope which once contained the paper I had seized. Soon after I was called into the bank a moment and when I returned, the box which had been lying on this table, had disappeared."

"Stolen!" cried Phoebe in a hushed voice.

"Evidently. Stolen for the third time, I imagine. I did not see it again until it was found hidden in Toby Clark's rubbish heap."

"Oh!" exclaimed the girl and then checked herself. She knew it was not the same box, but a moment's thought warned her not to mention that fact just yet. Sam Parsons must have stolen the box from Mr. Spaythe's office

and hid it in his own home. Did Sam believe Mr. Spaythe the thief and was it the banker he was trying to protect? The bank was the repository of all the money in the village; to arrest the banker for theft would create a veritable panic and perhaps cause much suffering and loss.

CHAPTER XIX

HOW TOBY CLARK FACED RUIN

While the girl was revolving these bewildering thoughts in her brain there came a knock at the door of the private office and a boy from the bank brought in an envelope and laid it upon the table before Mr. Spaythe, retreating again immediately.

“Stop!” called the banker, after a glance at the envelope. “Who left this letter?”

“I don’t know, sir; we’ve just found it in the mail box. Must have been pushed in from outside, sir; but it wasn’t there at one o’clock, when I took in the afternoon mail.”

“You may go,” said Mr. Spaythe briefly. Then he sat staring at the envelope. “I’m almost afraid to open this, Phoebe,” he declared in a low, uncertain voice. “Once before I received just such a missive and it said: ‘Look among the newspapers in the back room of Toby Clark’s house for the property stolen from Mrs. Ritchie.’ It was not signed and the awkward writing was evidently disguised. I paid no attention to that note but some one else must have received the same hint, for the house was searched by the police and all the documents found except the one I took myself.”

“But not the money or the bonds,” said Phoebe.

“No. Now, here is another anonymous letter, for I recognize the same cramped writing. Shall we open it, Phoebe?”

“I think so, sir,” she replied, for she was curious.

He opened the envelope very carefully, using a paper-cutter. Then he unfolded a sheet of common note paper and read the contents aloud:

“‘Between the mattress and the straw tick on Toby Clark’s bed in his old house you will find the money and bonds he stole from Mrs. Ritchie and hid there.’”

That was all. The banker lifted his eyebrows and smiled.

“Ah, they’re giving up the money now,” said he. “They realize there is danger in keeping it.”

“Whom do you mean by ‘they’?” asked Phoebe.

“The original thieves.”

“Were there more than one?”

“I don’t know. There was one, at least, before me, and some one stole the box from this office—with a purpose. How shall we treat this suggestion, Phoebe?”

“Let us go and get the money at once, sir, and restore it to Mrs. Ritchie.”

“She will demand an explanation.”

“Then we will show this letter.”

Mr. Spaythe reflected a moment.

“You are right,” he decided. “It will be best that the money is restored by me, acting on behalf of Judge Ferguson’s estate, rather than by some one else. The only thing I fear is that they will claim I induced Toby to give it up.”

“Won’t they accept your word—and mine—and the letter, sir?”

“Perhaps. We will risk it. Will you come with me now? It’s growing late.”

Phoebe rose with alacrity. Mr. Spaythe took his hat from a hook, locked the door leading into the bank and, when they were outside, locked the

street door also.

“Since the disappearance of that box I am growing cautious,” he said.

The old Clerk shanty stood quite beyond the village at a bend in the river, but even at that the distance was not so great that a fifteen minute walk would not cover it. Mr. Spaythe and Phoebe walked briskly along, both silent and preoccupied, and presently had left the village and turned into a narrow but well trodden path that led across the waste lands or “downs,” as they were called, to the shanty.

But before they reached it a group of men came rushing out of Toby’s house, gesticulating and talking together in an excited manner. Among them were Lawyer Kellogg and Sam Parsons, the constable.

Mr. Spaythe stopped short, an angry frown upon his face. Phoebe halted beside him, feeling so disappointed she was near to crying. They waited for the others to approach.

“Do—do you think they got a letter, too?” asked the girl.

“Of course; just as before; and they’ve lost no time in acting upon it,” was the grim response.

Lawyer Kellogg came up, triumphantly waving his hand, in which was clasped an oblong packet.

“We’ve got it!” he cried, his round fat face well depicting his joy. “We’ve found the money and bonds where Clark hid ’em.”

“Clark?” replied Phoebe, coldly. “How dare you make such a statement? Toby Clark had nothing to do with hiding that money, and you know it.”

“He’ll get his stripes for it, just the same,” declared the little lawyer. “I’ve got plenty of witnesses, and the finding of this property will settle Toby Clark’s case for good and all. There’s no power on earth can save him now.”

The banker was staring fixedly at Sam Parsons, the only one of Kellogg's party who was not jubilant.

"Well?" he asked.

"The money was there, all right," growled the constable; "but Toby didn't put it there."

"Of course not," said Phoebe; "no more than he put that blue box in the rubbish heap."

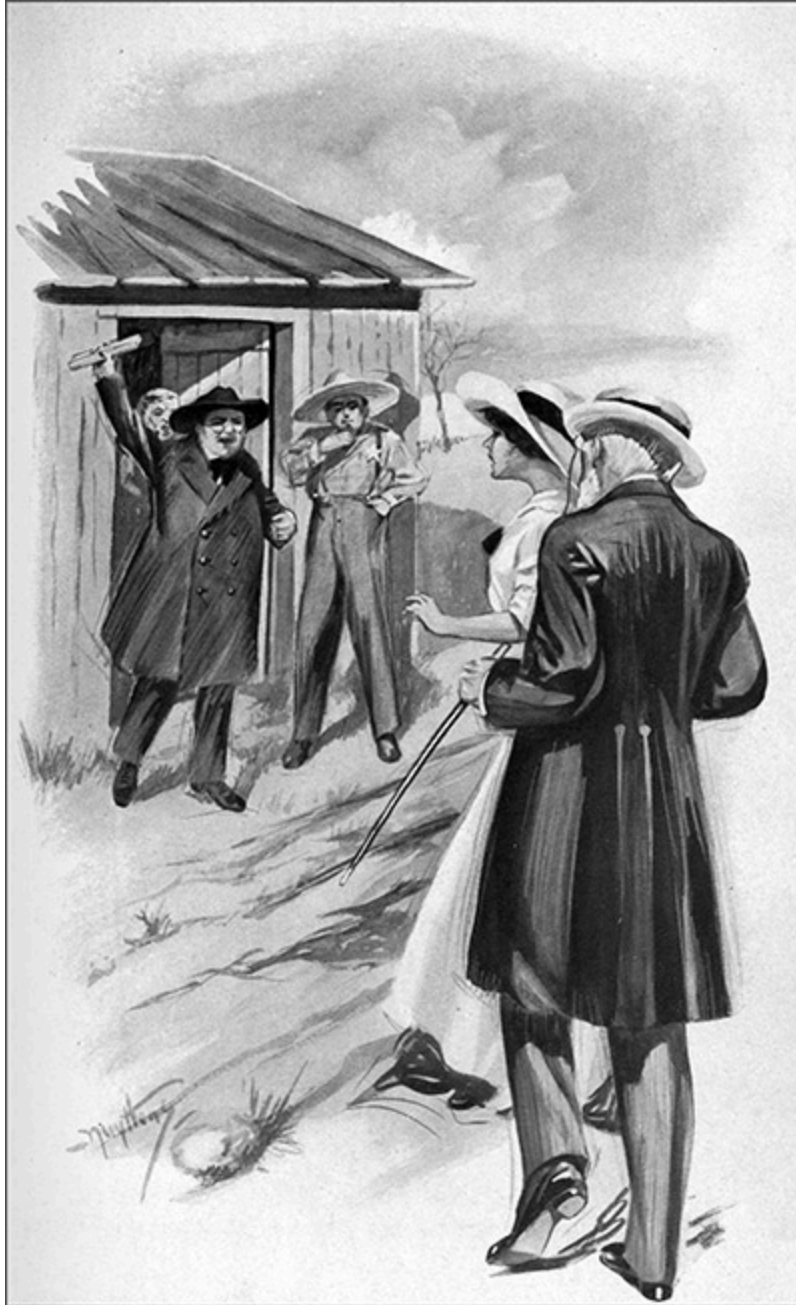
It was a chance shot but the little lawyer turned upon her with a fierce gesture, his hands clenched, his eyes ablaze with anger and fear.

"What do you mean by that?" he demanded.

"Nothing at all, sir," said Sam Parsons quickly, as he cast a warning look at the girl. "Miss Daring is a friend of Toby Clark, that's all, and she's annoyed over this new discovery."

"You must excuse Miss Daring," added the banker smoothly. "She is naturally agitated. Come, my dear," he added, tucking her arm beneath his own, "let us return."

They followed behind the others, who were mostly eager to get to the village and spread the news, and Sam Parsons remained with them. Phoebe was ready to bite her tongue with vexation for letting Mr. Kellogg suspect she knew about the substituted blue box. She saw that she might have destroyed all Toby's chance of acquittal by putting the lawyer on his guard. When they were alone she expected her companions to reproach her for her indiscretion, but they both remained silent.



Lawyer Kellogg came up, triumphantly waving his hand, in which was clasped an oblong packet. “We’ve got it!” he cried, his round fat face well depicting his joy.

“Kellogg came for me and I had to go,” explained Sam, as they reëntered the village.

Mr. Spaythe merely nodded.

“It’s a hard blow for Toby,” added the constable, with a sign.

“It is merely a part of the conspiracy against him,” asserted Phoebe indignantly.

“I know. But they can prove their charge, having now evidence enough to satisfy a jury, and Toby can’t disprove anything. This thing spells ruin to the boy, to my notion,” said the constable.

He left them at the bank and Phoebe again entered the office with Mr. Spaythe.

“Will you let me take that anonymous letter, sir?” she asked.

“If you like,” said he; “but the writing is purposely disguised.”

“I know; but I’d like to study it, just the same.”

The banker handed her the letter. Then he said:

“Wait a moment and I’ll get you the other.”

He unlocked a drawer of his desk and found it, holding the two together a moment for comparison.

“Just as I thought,” he said. “The same person wrote them both.”

“Was it a man or a woman?” inquired Phoebe.

“That I am unable to determine. Preserve these letters, for we may need them as evidence.”

“I will, sir.”

She carried them home and placed them in her desk, for as it was nearly supertime she had no opportunity to examine them at present. That evening she related to Cousin Judith the latest evidence found against Toby

Clark; “manufactured evidence” the girl called it, for she knew Toby had never touched the contents of Mrs. Ritchie’s box. She also told the Little Mother of Mr. Spaythe’s confession, laying stress on his assertion that at least three different persons, including himself, had stolen the box.

“But Mr. Spaythe did not really steal it, you know,” she added. “When he found it open on the office table, and the cupboard locked, he merely took the box away for safe keeping.”

“He took Mrs. Ritchie’s document, however, and is still holding it, without her knowledge or consent,” returned Judith thoughtfully. “I wonder why?”

“I am sure he had a good reason for that,” declared Phoebe. “The fact that Mrs. Ritchie is making such a fuss over that one paper, and that Mr. Spaythe is carefully guarding it, makes me think it is more important than the money.”

“That is probably true,” said Judith; “yet I fear there is nothing in that fact to save Toby. For, if Mr. Spaythe admits all the truth—so far as he knows it—at the trial, it will not clear Toby of the accusation that he first rifled the box of its contents.”

“No,” answered Phoebe, “and for that reason I must continue my search for the criminal. I had hoped that we had information to upset the entire evidence, until that dreadful development of to-day. It is the strongest proof against Toby they have yet secured, and I see no hope for the boy unless we can discover the guilty one.”

“Perhaps Mrs. Ritchie will refuse to prosecute Toby, now that she has recovered all her property but one paper,” suggested Judith.

“That would be worse for Toby than to stand his trial,” answered Phoebe, with conviction. “If he hopes again to hold up his head in the world he must prove his innocence—not be allowed to go free with the suspicion of his guilt constantly hanging over him.”

“Goodness me! what a staunch champion you are, Phoebe,” said Judith, smiling. “You must have thought very deeply on this subject to have mastered it so well.”

“It is a very interesting subject,” answered the girl, blushing at the Little Mother’s praise. “I seem to love a mystery, Cousin, for it spurs me to seek the solution. But I fear I’ve been neglecting my household duties of late and throwing the burden on your shoulders, Little Mother.”

“No, dear; I cannot see that you are at all lax in your duties; but, if you were, I would consider it excusable under the circumstances. I hope that in some manner you may light upon the truth and manage to solve your complicated problem.”

But when Phoebe went to her room to think over the discoveries of that eventful day, she was in a quandary how to act. The mystery seemed to have deepened, rather than cleared, and nothing had transpired to give her a clew of any sort.

Except the anonymous letters.

CHAPTER XX

HOW PHOEBE DEFENDED THE HELPLESS

For some time Phoebe had intended to make a study of the anonymous letters which Mr. Spaythe had lent her, so one morning when she was not likely to be disturbed she went to her room, took the letters from her desk and sat down to examine them carefully.

The handwriting was purposely made to sprawl this way and that, slanting first to the right and then to the left. The grammar was good enough and the spelling correct except for one word. In the second letter received by Mr. Spaythe the word “mattress” was spelled “mattrass”; but that did not seem to her of any importance, for it was a likely error. There was nothing to indicate that a woman rather than a man had written the letters, but Phoebe had reasons for guessing it was the former. In the first place, she now knew that a woman had stolen the box. Mr. Holbrook had seen her take it from the office to her home. She must have replaced it, the next day, empty save for one paper inadvertently overlooked—the most precious paper of all to Mrs. Ritchie. In her agitation she had forgotten to lock the office door behind her, so that Mr. Spaythe was able to enter. The woman, Phoebe argued, must have observed Mr. Spaythe taking away the box and, fearing discovery through it, had stealthily followed him and as soon as he had left his office crept in and taken it again. Then Sam Parsons had discovered the box in her possession and made her give it up, after exacting a confession and promising to shield her. Or else Sam had himself taken the box from Mr. Spaythe’s office, thinking he would thus protect the banker from suspicion. That part of the story was at present too involved for her to determine the exact truth.

But returning to her argument that a woman, or at least a girl, had written these letters, and also written duplicates of them for Mr. Kellogg, Phoebe felt that so rash a proceeding might only be attributed to one of her own

sex. A man would have realized the danger they might evoke and so have refrained from sending them.

What was the danger? she asked herself. The irregular penmanship was so cleverly executed that there was nothing to guide one to a discovery of the writer. She laid the two sheets of notepaper side by side. They were of the same cheap quality that one may buy at any store. No watermark. Nothing distinctive about the envelopes.

She went over the words letter by letter. Although written at different periods the writing was equally well disguised. But the same person wrote them, for the capital “T” that appeared in both, in the name “Toby Clark,” had a peculiar curl at the beginning of it. This “T” slanted one way in the first letter and the opposite way in the second, but the little curl was in both.

Suddenly the girl realized that here was a clew to the writer. That peculiarity in forming the letter “T” must be characteristic and the same curl would doubtless be found in the normal writing.

With the idea that it might be some girl whom she intimately knew Phoebe went through her desk and examined the capital T’s in every scrap of correspondence it contained, but without finding any indication of the telltale curl. It was late when she finished this task and so she went to bed feeling that she had accomplished nothing of value.

After this the days passed rapidly without any further developments. Public opinion in Riverdale was again undergoing a change and although the Marching Club paraded several times and once took the band to Bayport—with money left from the mysterious donation—people viewed the demonstrations with good-humored tolerance but were not impressed as they had been at first. There was a general feeling that Toby Clark’s case was hopeless and Phoebe was greatly annoyed by reports that Tom Rathbun and Dave Hunter, with some others, had openly denounced Toby as a thief, saying it was all nonsense to claim he was innocent when he had been “caught with the goods.”

Young Hunter, Lucy’s brother and Phoebe’s instructor in telegraphy, was the most bitter of these assailants and seemed to take pleasure in sneering at

Toby on every possible occasion. This surprised Phoebe the more because she had always considered Dave a kindly, manly young fellow, usually generous in his criticism of others. Something had doubtless turned him against Toby Clark and aroused his enmity, for Dave had condemned the boy out of hand almost from the moment of his arrest.

One dismal, cloudy afternoon, when Phoebe had been down town and was hastening home to supper, she turned up a side street and saw before her a crowd of children who were jeering and hooting at the top of their voices. These were not the children of good families, such as were members of the Marching Club, but the ragged, neglected gamins that are to be found on the streets of every Southern village; both white and black; mischievous, irresponsible youngsters who delight in annoying anyone and anything they dare attack, from a stray dog to a country woman driving to market.

Phoebe well knew the tribe and, as she heard shouts of “Robber!” “Thief!” “Jailbird!” ring out, at once suspected the truth. With rising anger she ran toward the group and reaching the outskirts of the little crowd she hurled the mockers right and left, whereby she came face to face with Toby Clark. The boy, leaning on his crutch, was cowering with bowed head before the jeers of his assailants.

“Shame on you all!” she cried, glaring around with righteous indignation. “How dare you attack one who is more unfortunate than yourselves—a poor, weak cripple, who needs friends more than you need soap-and-water?”

They shrank away, sullen and resenting her interference, and those who refused to run she threatened with her umbrella until they were driven off and she was left alone with their victim.

“Come, Toby,” she then said, with assumed cheerfulness; “let’s go home. You mustn’t mind those dreadful creatures; they’re ignorant of common decency.”

“I—I’d no business to come out,” he replied in a sad voice. “But I’d been in the house so long, and I wanted the air, and—”

“You’ve as much right on the streets as any other decent citizen,” Phoebe said warmly.

“Not at present,” returned Toby. “Those children think I am a thief, and so do many other people, and because I cannot prove that I am honest they consider it right to revile me.” He was hobbling along at her side as he spoke. “Isn’t it queer, Phoebe, that a mere suspicion can blot out one’s reputation, won by years of right living, and force one to defend himself and prove he is not a rascal?”

“It’s all wrong, Toby, and the law is greatly to blame for it, I think. It’s an absurd idea that anyone can swear out a warrant for another person’s arrest, charging him with any dreadful crime, just because that person has a suspicion he is guilty, and makes complaint against him. Any good, honest citizen may be thus disgraced and forced to prove his innocence before he is free again; and even then the smirch clings to him for a long time. It’s an unjust law and ought to be changed. No one should ever be arrested without proof of his crime. The one who makes the complaint should furnish such proof, and not oblige the innocent person to defend himself.”

Toby looked up at her with an admiring smile.

“I’ve studied law some, you know,” he said, “and what you propose is a revolution. It is more just than the present law, which ruins many lives and furnishes no redress, but I fear it would permit many guilty ones to escape.”

“You won’t pay any attention to what those children said?” she pleaded.

“Not more than I can help. They’ve heard others say I am a thief, so we mustn’t blame them too severely. They don’t know any better—poor little things.”

She left him at Mr. Spaythe’s house and proceeded toward home in a very depressed mood. It was dreadful to know that Toby was subjected to such insults whenever he showed himself on the streets, and yet this was nothing to the humiliation and disgrace he must endure if they fastened the theft upon him and condemned him to a prison sentence.

CHAPTER XXI

HOW PHOEBE TELEGRAPHED THE GOVERNOR

The day set for the trial was drawing so near that presently Phoebe became greatly worried. Winter had suddenly set in and the weather was so cold and disagreeable that she could not get out as frequently as before. She saw Mr. Holbrook once or twice but found him despondent.

“They’ve got us practically between two millstones,” he said, “and since we are unable to use our knowledge of the truth for defense, we shall be obliged to take our chances of defeat. I’m sorry, but it can’t be helped.”

Phoebe, however, thought it could. She asked herself how far she was bound to respect the various confidences reposed in her, when they meant the ruin of an innocent young life. She knew enough, she believed, to save Toby if she were allowed to go upon the stand and tell it all; but she felt that she was so inexperienced in legal matters that if she acted on mere impulse she might make a failure.

Meantime she kept studying the anonymous letters and one day decided to find out where the notepaper had been bought, if possible, as that might put her in the way of determining who had bought it. So she went to town and made her way to the post office.

Hazel Chandler waited upon her at the little stationery shop in the office, and Phoebe thought the young girl looked pale and worn. “They’re working her too hard again,” she reflected, and yet Hazel’s duties were no more onerous than those which many shop-girls voluntarily undertook. She also had the advantage of working for her father and running the little store as she pleased, although she was obliged to leave her counter for the post office whenever Will Chandler was out, as was often the case. Besides being one of the village council the postmaster was interested in several

other things which required his attention outside, so that Hazel as assistant postmaster waited on most of those who came to the office for their mail.

There was no one but Phoebe in the place just now and she asked to look at some notepaper.

“No, not the box sort, Hazel; just the common kind,” she added.

The girl laid several qualities before her and soon Phoebe recognized the kind she was looking for. She bought a few sheets and Hazel began to wrap them up.

“Have you heard much about—about Toby Clark’s case—lately?” the girl asked in a hesitating way.

“No,” replied Phoebe.

“It’s pretty black against him, isn’t it?” continued Hazel anxiously.

“It looks black, just now,” admitted Phoebe.

“I—I’m sorry for Toby,” said Hazel, with a sigh. “We—we’re all—very fond of him.”

Phoebe bristled with indignation.

“Your sweetheart, Dave Hunter, doesn’t seem very fond of him,” she retorted. “He takes every opportunity to denounce Toby and blacken his character.”

Hazel shrank back as if frightened by such vehemence. She bowed her head over the parcel she was tying, but Phoebe could see that her pale skin had flushed red.

“I—I’m not responsible for—for what Dave says, Phoebe,” she murmured pleadingly; and then to the other girl’s astonishment she put both hands before her face and began to cry, sobbing in a miserable way that was pitiful to listen to.

At once Phoebe became penitent.

“Forgive me, Hazel,” she said. “I know you are not responsible for Dave,” and then she took her parcel and went away, to give the girl a chance to recover her composure.

“The poor thing is almost a nervous wreck,” she mused, “and Dave’s bitterness toward Toby must have annoyed her more than I suspected. She probably loves Dave devotedly and hates to have him behave so ungenerously. I must ask Lucy when they are to be married. That would relieve her of the confining work in the post office and enable her to recover her health and strength.”

At the drug store opposite she found more of that identical notepaper, and the stationery counter at Markham’s dry goods store had it also. It was a grade so common that everyone kept it and therefore Phoebe was forced to acknowledge that her quest had been a failure.

She was in the dumps next day, wondering if she had done all she could for Toby, when suddenly she remembered the governor’s parting injunction. “If you need me, send me a telegram,” he had said, and this brainy, big-hearted man was just the one she needed in her present emergency. At once she decided to telegraph Cousin John, for she believed that his advice, coupled with her knowledge—which she would frankly confide to him—might yet save the day for Toby Clark.

She would not say anything to Cousin Judith, at present, for if the busy governor found himself obliged to ignore her summons she wanted no one to be disappointed but herself.

Very carefully she worded the telegram, in order to present the case as strongly as possible without committing the secrets she guarded in advance of his coming. She wrote and rewrote it several times, until finally she was satisfied with the following:

“Please come and help me save Toby Clark. I believe I know the truth, but without your assistance Toby will be condemned on false evidence. A woman stole Mrs. Ritchie’s box and there is a conspiracy to shield her from

discovery and wickedly sacrifice Toby in her stead. Will tell you all when you arrive. Come quickly, if you can, for time is precious.”

She signed this “Phoebe Daring” and putting on her wraps, carried it down to the station. Dave Hunter was in the little telegraph office, on duty but not busy. He laid down a newspaper as Phoebe entered his room and nodded rather ungraciously.

“Here’s a telegram, Dave, which I want you to send at once.”

“Day message, or night?” he inquired, taking it from her hand and beginning to count the words.

“Oh, day, of course,” she replied.

Suddenly he paused, with his pencil poised above the telegram, and a wave of red swept over his face and then receded, leaving it a chalky white. He did not lift his eyes, for a time, but seemed to study the telegram, reading it twice very slowly from beginning to end. Then he pushed the paper toward Phoebe and said in a hard, arrogant voice:

“I can’t send that.”

“Why not?” she asked in astonishment.

“I—it’s libelous,” he returned, rising from his chair before the table on which the telegraph instrument stood and facing the girl defiantly.

“It is not libelous!” she indignantly exclaimed.

“Well, I can’t send it; it’s against the rules of the office.”

Phoebe looked into his face searchingly and he half turned away. She remembered now Dave’s rabid enmity toward Toby Clark and concluded that he refused the telegram because he feared it would assist Toby’s case. But she would not be balked by such a ridiculous pretext and as her anger increased she grew more quiet and determined.

“You’re talking nonsense,” she said. “This is a public telegraph office and you, as the operator, are obliged to accept and send any message that is presented and paid for. It isn’t your place to decide whether it is libelous or not, and I demand that you send this telegram at once.”

“I won’t,” he said firmly. “I’m going out, Miss Daring, and must lock up the office; so I’ll trouble you to go.”

She regarded the young fellow questioningly as he took his hat and stepped to the door, waiting for her with his hand on the knob. Then she slipped into his seat at the table and placed her hand on the instrument.

“Here!” he called fiercely. “What are you doing, girl?”

“If you won’t telegraph the governor, I will!” she declared. “Stand back, Dave Hunter, and don’t you dare to touch me or interfere. I’ll save Toby Clark if I have to put you behind the bars in his place, and perhaps there’s where you belong.”

As she spoke she was clicking the little instrument, calling the state capitol. Dave himself had taught her how to do this. The operator now stood motionless beside her, looking down at the courageous girl with unmistakable terror in his eyes. Perhaps her threat awed him; perhaps he had other reasons for not venturing to prevent her extraordinary action.

The answer came in a moment. Fortunately the wire had been free and as soon as she got her connection she began clicking out the message—as dexterously as the regular operator himself might have done.

Dave listened, as motionless as if turned to stone. She demanded a “repeat” and from the other end came the repetition of the message, exactly as the girl had sent it. She answered: “O K,” rose from her chair and calmly asked:

“What are the charges?”

The young man drew his hand across his eyes with a despairing gesture and limply sank into the chair.

“Go away, please,” he replied.

Phoebe picked up the rate book and figured the cost of the telegram. As she did so her eyes fell on a railway order which Dave Hunter had written on a blank form and after staring at it a moment she stealthily folded it and slipped it into her pocket. Then she laid the exact change on the table and walked out of the office. As she closed the door softly behind her she noticed that the operator had dropped his head on his outstretched arms and seemed to have forgotten her existence.

A sudden horror and aversion for the young man welled up within her, but she felt elated and triumphant, as well. She had sent the message in spite of all opposition and—she had made a discovery!

The writer of the anonymous letters was none other than Dave Hunter.

Phoebe could scarcely wait to get home before examining the order she had taken from the telegraph office. Once within her own room she eagerly spread it out before her and studied it with care. It was a simple railway order addressed to the supply agent at St. Louis, and said: “Twenty beds with mattresses and pillows for laborers at Section 9 without delay.” It was signed by the Division Superintendent but was in Dave’s handwriting and had doubtless been dictated to him to be wired to the agent.

But within it lay the proof Phoebe had so long and vainly sought. Not only was the word “mattress” misspelled as in the anonymous letter, but the capital “T” in “Twenty” had the same preliminary curl to it that she had observed in both letters, wherever “Toby” had appeared.

This discovery positively amazed the girl. She had never suspected Dave, whom she now believed had hidden both the papers and the money in Toby’s house, on different occasions, with the evident determination to incriminate the boy. Then, by means of the anonymous letters, Dave had told where the stolen property could be found.

But Dave had not stolen the box. A woman did that. She sighed as she thought of Lucy, an ambitious girl, and of Mrs. Hunter, who was prominent

in all the social affairs of Riverdale and an earnest church member. It was easy enough to understand now why Dave had denounced Toby.

Cousin Judith knocked at her door.

“A telegram for you, Phoebe.”

She tore it open, while Judith watched her face curiously. It flushed with joy.

“The governor will be here in the morning,” she said. “You don’t mind, do you, Cousin Judith?”

CHAPTER XXII

HOW SAM PARSONS EXPLAINED

“You caught me just right, my dear,” said the governor, smiling cheerily into the girl’s anxious face. “I had nothing of importance on hand at this time, so I ran away from half a hundred unimportant demands and—here I am.”

He came for breakfast and was as eager for Aunt Hyacinth’s peerless flapjacks as any of the youngsters, laughing and chatting with the entire family like a boy just out of school. But afterward he sat with Phoebe and Judith in the cosy sitting room and listened gravely to every detail of the young girl’s story.

Phoebe was very frank in her relation, concealing nothing that she had discovered or that had been confided to her. “I am supposed to keep some of these things secret,” she said; “but I believe this secrecy on the part of Toby’s friends, and their failure to get together, is going to send the boy to prison unless we take advantage of our knowledge and accomplish something practical. Anyhow, I can see no harm in confiding in you, Cousin John, even if no good comes of it.”

The governor nodded approval.

“That’s right, Phoebe,” he said encouragingly. “Dust all the shelves and let the grime settle where it will.”

Before this man had been drawn into politics and became first a senator and then twice governor of his state, he had been a lawyer of unusual prominence. His keen intellect followed the girl’s recital with comprehension and even “read between the lines.” During the story he saw probabilities she had never guessed. But he said:

“You have shown admirable intelligence, Phoebe, and I see you have quickly recognized the important points of your discoveries. With the information you have given me I believe I can put my finger on the identical woman who is responsible for Toby Clark’s tribulations.”

“Oh; can you, sir?” she exclaimed. “Then I must have been very stupid.”

He turned to Judith with his whimsical smile.

“You see, she won’t admit that a rival detective has any talent.”

“Yes, I will,” said Phoebe. “I didn’t mean it that way at all. But I can see no ‘identical’ woman in the case, as yet. A mysterious woman stole the box, and of course it is a member of Dave Hunter’s family—his mother or sister—or perhaps his sweetheart, Hazel Chandler. Which of the three do you mean, sir?”

“None of those,” replied the governor, musingly. “The woman whom I think has been the cause of your friend Toby’s past misfortunes and present danger is—Mrs. Ritchie.”

Both Judith and Phoebe stared at him in amazement.

“Did she steal her own box, then?” said Phoebe.

“No, indeed; but she accused Toby Clark with a purpose, and she intends to get him a long prison sentence—also with a purpose.”

“What purpose, sir?”

“I don’t know. That is still dark. But we shall turn the light on it. Perhaps Mr. Spaythe knows, by this time.”

“Mr. Spaythe?”

“To be sure,” replied Cousin John blandly. “Why do you suppose he appropriated that paper of Mrs. Ritchie’s, to which he had no legal right, unless it contained something that required investigation?”

“Oh; I never thought of that.”

“Mr. Spaythe knew that Mrs. Ritchie had no right to the paper, and was not acting squarely in regard to it. So he put the paper in a safe place until he could discover the truth. It doesn’t take much of a detective to figure that out, Phoebe. It’s the science of deduction. Let’s go a little further: The paper concerns Toby Clark. That explains why this reserved banker took the boy to his own home, to safeguard his person or his interests until the truth could be learned. It’s as plain as a pikestaff, Miss Conspirator. You had all the pieces of the puzzle, but could not fit them together.”

“But—the woman who stole the box?” asked Judith, eagerly.

“Bother the woman who stole the box! What do we care about her?” retorted Cousin John. “It is true she stirred up this mess, but the stew may prove a savory one for Toby Clark, in the end. In that case we cannot be too thankful that the poor creature yielded to temptation. She has gained no material benefit, for the stolen property is all restored; but fate had used her to right a grievous wrong. Let us treat her with grateful consideration.”

Phoebe drew a long breath, striving to reconcile the governor’s view of this mysterious case with the prejudices she had so long encouraged in her own mind. She could not yet see by what process he arrived at the astonishing solution of the problem he now advanced, but the keen lawyer was quite satisfied that he had “nailed the truth.” Judith was fully as perplexed as Phoebe and after a pause she inquired:

“Will Mr. Spaythe’s discovery, then, clear Toby Clark of the charge against him?”

“Eh? Perhaps not. I’ve no idea what the discovery is and we must have more information on that subject. My idea is that Mrs. Ritchie will be forced to withdraw her charge; but the case might be taken up by the public prosecutor and young Clark condemned, unless we manage to get the case out of court altogether.”

“Even then,” said Phoebe, “Toby’s good name will not be cleansed. Many people will say he escaped paying the penalty of his crime, but was

really guilty. The evidence they have brought against him is very strong.”

“Cleverly argued, Phoebe. I see your point. We must not be content with whitewashing the young man; we must restore him to his friends as sweet and clean as before. So, after all, we can’t quite ignore the woman whose folly caused all the mischief; nor even your friend Dave Hunter, who obtained possession of the contents of the box and tried to throw the blame onto Toby in order to save one whom he loved.”

“That’s it, sir. I think that was Dave’s motive.”

“Well, the sooner we begin to burrow the sooner we shall unearth the truth. I want to see Sam Parsons, first of all.”

“I will send Don for him,” proposed Judith.

“If you please, Cousin.”

It was Saturday and Don chanced to be within hailing distance. He accepted the mission with joy and lost no time in running to the constable’s house.

“Hurry up, Sam,” he said: “The governor’s at our place and wants to see you.”

Sam sat down in his rocker.

“Now?” he inquired.

“Right away. He came this morning, you know. Perhaps he’s goin’ to promote you; make you Chief of Police or Grand Marshal. The governor can do anything, Sam.”

Sam shook his head. He rocked to and fro, thinking deeply and dreading the governor with a cowardly sinking of the heart.

“Well, what are you going to do? Mutiny?” asked Don impatiently.

The constable sighed. Then he rose and picked up his hat, walking slowly in the wake of his eager conductor to face the man he most feared.

“Good morning, Parsons. I know you well,” said the governor. “You’re an honest man and a good officer. Who took Mrs. Ritchie’s box from Judge Ferguson’s office?”

“I—I——”

“Who stole the box?” more sternly.

“Sir, a—a——”

“Parsons!”

“Hazel Chandler, sir.”

“Thank you. I thought so. Now, then, sit down and tell me about it.”

Perspiration was oozing from the constable’s forehead. He wiped it away and sat down, staring stupidly at the great man and wondering how he had come to admit a fact that he had sworn to keep secret to his dying day.

“There is nothing to tell, sir,” he said weakly.

“Begin at the beginning, stating why you spied in the hallway, outside of Judge Ferguson’s door.”

“The night before, sir, I had seen—seen——”

“Hazel.”

“I had seen Hazel carrying the box home. She passed under a light and I was in the shadow. It was Mrs. Ritchie’s blue box. The next day I watched. She brought the box down to the post office with her, wrapped in a cloak to make the bundle look round, and then covered with paper. Everyone was excited over the judge’s death, that day. The girl watched her chance and in the afternoon stole upstairs with the box, put it on the office table and hurried away. I sneaked up afterward and looked through the keyhole, but I

found Hazel had forgotten to lock the door behind her, although she had carried off the key. I went in and looked at the box. It was unlocked and empty, except for a paper or two, which I did not touch. I left it there and went into the post office; but Will Chandler, Hazel's father, said she had run over to the Ferguson house on an errand."

"By the way, Phoebe," said Cousin John, "can you get Janet Ferguson for me?"

"Yes; I can telegraph to her from my room."

"Thank you."

Phoebe ran up to telegraph Janet, asking her to come over at once to see the governor. Meantime Sam Parsons resumed his story.

"You still watched the office?" asked Cousin John.

"Yes, sir. After Hazel returned, Will Chandler took the office key to Holbrook and asked him to hand it to Mr. Spaythe, and not long afterward the banker came over and went up to the office. Will had caught me a couple of times in the hallway, so I didn't dare stay there any longer. I went up to our lodge room, over the drug store, which is just opposite, and from the window there I could see into the windows of Judge Ferguson's offices. I saw Mr. Spaythe go in and examine the box. He read a paper that was in it and then put the paper in his pocket. Afterward he wrapped up the box and took it away to his office. I was in deadly fear, sir, that Hazel's theft of the box would be discovered. I imagined Mr. Spaythe had taken it away to hold for evidence; so I followed to his office."

"Why did you fear Hazel's discovery?" asked the governor. "Is it a constable's duty to shield a criminal?"

"I wasn't a constable then, sir; I was just a man. Hazel has always been a favorite of mine, from babyhood," said Sam. "Her father, Will Chandler, is my best friend. We play chess together and he belongs to my lodge. But aside from that the Chandlers are rated the proudest and most respectable family in Riverdale—bar none. Their ancestors came over in the

Mayflower, and then founded this village. Will is the government's trusted agent. If Hazel's foolish act is discovered, the disgrace will kill Mrs. Chandler, who is a very proud woman and in delicate health, and there are six little brothers and sisters whose lives will be ruined."

"She should have thought of that," said the governor.

"And Hazel herself is engaged to be married to Dave Hunter, one of the finest young men in the village," continued Sam. "I think if Dave knew what she had done it would mar all his future life; and he has a sister and mother depending on him. That was why I shielded her, sir; it was better to let Toby Clark suffer alone than to overwhelm so many honest folks with disgrace."

"You took the box from Mr. Spaythe?" asked the governor, without commenting upon the man's excuses.

"Yes, sir. He left it on the office table and went into the bank, and I went in and got it. I carried it home and hid it, to save Hazel, and afterward I was astonished to find another box, just like it, in Toby Clark's back yard. I decided it was put there with a purpose—to prove Toby was guilty—so I kept quiet about it."

"Wasn't that very irregular, Parsons?"

"Very, sir. I'll lose my star, and perhaps I'll be prosecuted. But I'm glad I did it."

CHAPTER XXIII

HOW A WRONG LOOKED RIGHT

Janet Ferguson came in a moment later, having promptly answered Phoebe's summons. After greeting her in his kindly way the governor said:

"I'm puzzled about your father's keys. What happened to them the day following his death? Tell me, please?"

Janet tried to remember.

"Usually he left his office key at the post office, but carried the bunch of small keys on his person," she replied. "Father was very absent-minded at times, and I think he was not feeling quite himself the evening before—before his attack. For it seems he hung his key ring, containing all the keys, on the peg inside the post office window, instead of leaving just the office key. But the next morning Hazel Chandler discovered the keys and brought them to me—all except the office key, which was left hanging upon the peg. That key Mr. Chandler afterward turned over to Mr. Spaythe, to whom Toby Clark also gave his office key."

"And the smaller keys—the ones that unlocked the cupboard and the private boxes, such as Mrs. Ritchie's?"

"When Hazel brought them to me I asked her to carry them to Mr. Spaythe, and I understand she did so. She delivered them to him on her way back to the post office."

"Of course. It is all very clear and comprehensive now, Miss Ferguson. I thank you. I am not making an official investigation of this case, you understand. Phoebe and I have concocted a little conspiracy to arrive at the truth and we are doing our best to clear up the mystery of Mrs. Ritchie's lost box—for personal reasons only."

“I know that Phoebe has been anxious to save Toby Clark,” said Janet earnestly; “and I am also anxious. Can I assist you in any way?”

“Not at present. If we need you again we will let you know.”

So Janet went away and the governor also dismissed Sam Parsons, telling the constable he might continue to guard his secret until otherwise instructed. Then Cousin John briskly rose and said to Phoebe:

“Let us go and call on Dave Hunter.”

The girl dreaded that interview, remembering her last defiant visit to the telegraph operator; but she knew it could not be avoided. Already she was amazed at the ease with which the governor fitted together the pieces of her puzzle, and she was eager to see what link in the evidence Dave could furnish.

They found the young fellow alone in his office. He recognized the governor at a glance, for through the exchange of telegrams the operator knew he was due to arrive in Riverdale that morning and why he had come. At once Dave’s face hardened and his jaws locked together with firm obstinacy. But the governor, noting these signs of opposition, merely smiled.

“Hunter, my lad,” said he, “I’d like to dance at your wedding. I’m not sure you’ll invite me, and I’m not sure I could come if invited; but what I mean to assert is that I’d really like to help you celebrate that important event. Eh?”

Dave seemed confused. He had no answer ready for this form of attack.

“There appear to be certain complications, however, which at present stand in the way of your ambition,” continued the governor in an amiable tone. “Hazel has a fine nature and a gentle heart, but her character isn’t fully developed yet and, in a late emergency, she allowed herself to be led astray. She knew there was a great deal of money in Mrs. Ritchie’s box; her father had once seen it and talked of it in the family circle; so when the judge carelessly left all his keys in the post office, one evening, Hazel was

tempted and didn't stop to consider consequences. She was sick and tired of the drudgery she was enduring and knew she could not be married to you until you had acquired more money; so she foolishly yielded to the temptation and at night, when she locked up her store and the post office, she visited Judge Ferguson's office, unlocked the cupboard, took down Mrs. Ritchie's box and carried it home. In the seclusion of her room she found the key to the box, opened it and dumped the contents on the bed. The last thing to tumble out was a long yellow envelope marked 'Private,' and Hazel hastily tore this open, with the idea that it contained money. Finding it to be merely a legal document, in which she was not interested, she tossed it back into the box. Understand, Hunter, I won't vouch for the accuracy of every detail of this story; but in the main you know it is correct."

Dave's eyes were fairly bulging from their sockets as he stared at the governor and heard him lay bare a secret he thought had been faithfully guarded.

"You—you've seen Hazel?" he stammered.

"No; not yet. But let me continue. That night, perhaps fearing interruption, the girl had no chance to examine the contents of the box, which she hid somewhere in her room. Next day she took the box down town with her, wishing to get rid of it, and managed during the afternoon to return it to Judge Ferguson's office. But she had no time to put it back in the cupboard, because she had left the post office downstairs alone. So she simply placed it on the table and afterward got rid of the keys as soon as possible.

"No one suspected her. Toby Clark was suspected, but not Hazel Chandler. Yet Hazel was in a quandary. She had in her possession a great deal of money, some valuable bonds, and a lot of useless papers belonging to Mrs. Ritchie. Naturally she confided in her sweetheart, not realizing even yet the seriousness of her offense, but rather exulting in the fact that this money would hasten her wedding day. The young man to whom she was engaged, however, listened to her story with horror and despair. He realized the enormity of the girl's crime and knew that its discovery meant prison for her, a broken heart for him, and ruined lives for them both."

Dave's stern features had gradually relaxed to an expression of abject misery. At the vivid scene conjured up by his accuser he sobbed aloud and dropped his face in his hands. But the governor quietly continued:

"The young man's plight was indeed pitiful, but his poignant sorrow blurred his reason and led him to a subterfuge so cruel and unmanly that his error was scarcely less iniquitous than Hazel's. To save the girl he loved he endeavored to throw the burden of guilt on an innocent person, a friendless boy and a cripple. He was not the first to accuse Toby Clark, but Toby's arrest gave him the idea. Forcing Hazel to give to him the entire contents of the rifled box, he selected all the papers that were of no value to anyone but the owner and hid them in the back room of the shanty. Then, to make sure they would be found, he wrote anonymous letters to two parties whom he thought would be interested in the search, telling where the papers were hidden."

The governor paused a moment.

"I am not sure," said he, "why you retained the money and bonds, Hunter. You may have had some vague idea of keeping them, at the time; but afterward I am sure you thought better of it, for you gave up the stolen money, again implicating Toby Clark."

"I—I wanted to give it all up in the beginning," groaned Dave, in broken, pleading accents; "but I was bewildered, then—I've been bewildered ever since, I think—and the thought came to me that if Hazel should be arrested I would need money to defend her. I didn't much care what I did, if only I could manage to save Hazel. But—after a time—I thought the danger had passed and no one would now connect her with the theft; so I wanted to get rid of the money, which was a horror to me. I thought the best way was to put it in Toby's house, as I did the papers."

"I follow your argument," said the governor. "Had you been more experienced in crime you would have known that the greatest danger of discovery lay in those anonymous letters. Such things are very easily traced. Do you know that Phoebe Daring was able to connect you with this crime by means of those very letters? As a matter of fact, however, they did not lead to the discovery that Hazel Chandler took Mrs. Ritchie's box. Two

different people saw her carry it home; yet I suppose she has imagined she escaped observation.”

“She—she seemed quite sure of that, sir.”

“No doubt. The criminal is always blind. If the time ever comes when everyone realizes that the law is more clever than the individual, that justice is rampant and will not be denied and that punishment follows an undiscovered crime as surely as if it were discovered, then indeed humanity may shrink from committing lawless acts. The more inexperienced and simple-minded the offender, the more certain he or she is of outwitting all the rest of the world. As a consequence, our prisons are crowded and our trial courts cost us millions of dollars annually. It is so much more simple and safe to obey the laws of humanity and of nations, that I wonder people do not prefer to walk uprightly.”

Dave had no reply to this, although there is no doubt he frankly admitted its truth. He now knew that the governor and Phoebe, and doubtless others, were in possession of the secret he had guarded so jealously, and in this crisis his thoughts were all of the girl he loved and had sought to shield.

“Sir,” he said after a moment, “is there any way in which I can assume all the punishment? Suppose that I confess that I stole Mrs. Ritchie’s box; will you and Phoebe help me to carry out the deception and take Toby Clark’s place?”

“Why, that is what you should have done in the beginning,” said Cousin John. “Now it is too late for such vicarious atonement.”

Again Dave groaned.

“Mrs. Ritchie has all her property now,” he asserted. “Don’t you suppose she could be induced to save Hazel?”

“No; I do not.”

“It—it’s going to wreck a lot of lives, sir—the publicity and disgrace. The poor girl didn’t know what she was doing; indeed, sir, that is the truth.

She—she's sorry enough now. We've both suffered bitterly and—and been severely punished already. But I'll take more punishment; I'll do anything, sir, to keep Hazel out of it and save her and her people from infamy."

"I can't promise you anything, Hunter," said the governor, evident sympathy in his tone. "I'm sorry for you. You were drawn into this thing merely because you are fond of the girl, and I admire you for standing by your sweetheart, through thick and thin. The faults you have committed, in striving to compel an innocent boy to suffer, are far from admirable; yet you have not a strong nature and there are many who might have acted just as you did. I will say this: if it can be arranged to clear Toby Clark in the eyes of all the world without condemning Hazel Chandler, I shall try to do so. Our first care will be to save Toby; afterward I will do what I can for Hazel."

Dave was grateful for this promise and seized the governor's hand in both his own to press it warmly.

"At present," said Cousin John, "Phoebe and I alone are in possession of all the facts I have related. The two persons who saw Hazel take the box seem as anxious to shield her from public condemnation as you are. So I think you may hope for the best."

With this they left the telegraph office and walked up the street.

"Where next?" asked Phoebe curiously. She had, by this time, so supreme a confidence in Cousin John's ability to pick up scattered threads and smooth out all tangles that in her heart she believed the truth had now been laid bare in its entirety and thought nothing remained but to confirm the facts already gathered.

"We will see Mr. Spaythe next," the great man replied.

CHAPTER XXIV

HOW THE MYSTERY CLEARED

It was only a few minutes walk to the bank and Mr. Spaythe received them in his private office, expressing little surprise at seeing the governor again in Riverdale but welcoming him with frank cordiality.

When they were seated the banker looked at his visitors with polite inquiry.

“I’m helping Phoebe get the facts in this Toby Clark case,” said the governor, speaking easily and as to an equal, for he knew Mr. Spaythe’s record and reputation. “In her confidences to me concerning the peculiar circumstances surrounding this affair, which seems to have worn a veil of mystery from the first, she has mentioned the paper you found in the Ritchie box.”

The banker bowed but remained silent.

“There has been raised a great hue and cry for that paper, on the part of Mrs. Ritchie and her attorney,” continued the speaker; “therefore we may consider the document of prime importance to the old lady. When it fell into your hands you hypothecated it and carefully locked it in your safe; further evidence of its importance. Phoebe has concluded, from your unconditional defense of the accused boy, that you believe him innocent, in the first place, and also that the document referred to is in some way connected with—Toby Clark.”

Mr. Spaythe smiled.

“It’s difficult to keep a secret from Phoebe,” he replied.

“For my own part,” the governor resumed, “I have figured from your long silence regarding the paper that you have been investigating its validity or for some reason have been seeking outside information concerning it. I hope I am not in any way forcing your hand by asking if my surmise is correct and if you have yet received the information you desire.”

“Allow me to add that it is difficult to keep a secret from the governor,” laughed Mr. Spaythe. “Really, sir, you and Phoebe have guessed so much that you are entitled to know more, and fortunately my first information of value concerning this paper reached me but a few hours ago, in the morning’s mail.”

“Through my interest in my Cousin Judith I became acquainted with Phoebe Daring,” said Cousin John. “Through my interest in Phoebe I became acquainted with the sad plight of Toby Clark, and my interest in humanity at large induced me to ‘play hookey’ from the business of governing this exacting state, long enough to run down here and help things to a climax. So, sir, as my time is limited, I——”

“It will afford me pleasure to confide in you with the utmost frankness,” said the banker. “I would like you to know all that I know.”

“Thank you. I may say that we have finally run down the guilty party and are now certain that Toby Clark’s case will never come to trial.”

“Indeed!” exclaimed Mr. Spaythe. “Then you have solved a very perplexing mystery.”

“Have you had no hint of the truth?” inquired the governor.

“Not the slightest, although I have several times suspected my lawyer, a man named Holbrook.”

“And a very well meaning young fellow,” added the governor. “I think, from the information I have received, that Holbrook has conducted himself in a manly way that is distinctly creditable. But may I ask how you expected to save Toby Clark from prison without knowing who committed

the fault of which he stands accused, and in the face of a mass of incriminating evidence against him?"

"Yes; I expected to save him through Mrs. Ritchie."

"You can compel her to withdraw the charge?"

"Mrs. Ritchie is completely in my power. Would you mind telling me who first took the box from the judge's cupboard?"

"A weak and thoughtless girl—Hazel Chandler—who was tempted to steal the money that she might sooner wed the young man to whom she was engaged."

"Dear me. Hazel Chandler! How unfortunate."

"There is a general disposition, among those who know the facts, to shield her," suggested the governor. "The girl has already been punished—through fear, personal remorse and the reproaches of her fiancé. I can see no benefits to the public at large nor to the interest of justice to be gained by casting this foolish girl into prison. Her redemption, if redemption is still needed, may be better accomplished in other ways."

"I quite agree with you, sir; and I think that between us we may find a way to restore Toby Clark's reputation to its former purity without drawing Hazel Chandler into the mire. When Mrs. Ritchie knows that her treachery and embezzlements have been discovered, I think she can be induced to sign a statement that her box was not stolen at all."

"I see your point, Mr. Spaythe. And now please tell us about that paper."

The banker excused himself a moment and went into the counting room, in the rear of which stood a large safe. From a drawer which he unlocked he took a paper and with it returned to his private office.

"Although this document has been for years in Judge Ferguson's keeping," began Mr. Spaythe, "its character and contents were unknown to him, for before she placed it in her box Mrs. Ritchie enclosed it in a heavy

yellow envelope which she sealed and marked 'private.' The girl who took the box tore open the envelope, perhaps thinking it contained money, and so enabled me to make a discovery that otherwise might never have come to light. The moment I saw this paper I became interested, for it is a will, properly probated and attested, and on the outside it is docketed: 'Last Will and Testament of Alonzo Clark.'"

"Alonzo Clark?" echoed Phoebe; "why, who was he, sir?"

"The father of Toby Clark. I knew him very slightly during the years preceding his death, when he lived at Riverdale. He once attempted to borrow some money from the bank on some mining stock which I considered worthless; so I refused him. He was a relative of Mrs. Ritchie."

"I never knew that!" cried Phoebe, surprised.

"Nor I, until recently," replied the banker. "This document which I now hold bequeaths to Alonzo Clark's only child, Toby Clark, all of his interest in that mining stock, making Mrs. Ritchie the executor and providing that in case the stock becomes valuable and pays dividends it must not be sold or otherwise disposed of, but the proceeds shall be devoted to the education of Toby and the balance reserved until he is of age, when it is all to be turned over to him. During the minority of Toby, Mrs. Ritchie is to properly educate and clothe him and she is authorized to retain ten per cent of the income in payment for her services as trustee."

"You say the stock is worthless?" asked the governor.

"I thought it was, at the time Alonzo Clark brought it to me; but when first I saw this paper I found that the will had been probated and Mrs. Ritchie duly appointed executor and trustee under its terms. That fact, and the woman's eagerness to recover the paper, led me to suspect that the stock had become valuable; so I retained the will and began to investigate both the mine and the history of Alonzo Clark. As I told you, the first important report of these investigations reached me to-day. I will briefly relate to you their purport, rather than ask you to wade through the verbose mass of evidence submitted."

“That will be best, I think,” agreed the governor.

“Alonzo Clark was a mining engineer of education and ability, who was employed by large corporations as an expert, to examine mines and report upon their value. He successfully pursued this vocation for several years and came to be regarded as a reliable judge of both copper and gold mines. Then he met with a misfortune. While in a rough mining camp in Arizona he fell in love with a plump, pretty girl—the daughter of one of the superintendents—and married her. She became Toby’s mother and proved far beneath her husband in both refinement and intellect. At about the same time that he married, Clark conceived what he thought a clever idea to make his fortune. Being sent to examine an outlying mine that had never been developed, he found it to contain the richest deposit of copper he had ever known of—so rich, in fact, that it was destined to become one of the greatest copper mines in America. A company of capitalists would purchase and develop this mine if Clark reported on it favorably. He forwarded them some very ordinary specimens of ore and said he believed the mine would pay a fair profit if worked economically, but he predicted no big things of it. Then he set to work to invest every dollar he had in the world in stock of this very mine, and he was able to secure a large quantity because his discouraging report had failed to inspire the promoters with any degree of enthusiasm. Then the schemer became properly punished, for the men who had formed the company got possession of another mine that promised better, but in which Clark had no interest, and devoted their exclusive attention to working that. Clark dared not argue the matter with them, for he had declared the rich mine to be unimportant, so he was obliged to wait until the company was ready to develop it, when he knew it would speedily make him rich.

“This affair ruined the engineer’s life—that, and his wife’s dissolute habits, for she became addicted to drink and her companionship was not pleasant. Clark had beggared himself by his large purchase of stock and his vain dreams of wealth speedily destroyed his usefulness in his profession. In a few years he lost all ambition, became discredited in mining circles and finally drifted here, perhaps being attracted to Riverdale by the fact that a distant cousin—the only relative I have been able to trace—lived near here in the person of Mrs. Ritchie, a widow with a large and prosperous farm.

“It seems that Mrs. Ritchie, however, would do nothing to assist the impoverished Clarks, who had brought their little son Toby with them. She even doubted the man’s story about his rich mine, which he declared would some day bring him a fortune. She is very shrewd in business matters and knew that mining stock is dangerous to gamble on. Clark did a little work in the village, but not much, for he was incapable of steady manual labor. He fished a good deal in the river and won the name of being lazy, surly and unsocial. As a matter of fact he was a disappointed man and had fallen rapidly in the social scale. His wife soon drank herself to death and a year or so afterward Clark contracted pneumonia on the river and soon passed away, having previously made his will and given it to Mrs. Ritchie for safe keeping.

“Toby was a much neglected boy, as you may imagine,” continued Mr. Spaythe, after a brief pause. “Mrs. Ritchie ignored his very existence and after his father’s death the little fellow continued to reside in the shanty by the river—a ragged, barefooted urchin whom everyone liked because he was so sunny natured and agreeable. He inherited his father’s intellect but not his misanthropic ideas. Toby was not only willing, but glad to work and earned a modest living by doing odd jobs until, finally, Judge Ferguson noticed him and took charge of the boy. I think, governor, I have now given you the entire Clark history.”

“But the mine?” said the governor, greatly interested in the story.

“By a queer whim of fate the mine was developed soon after Alonzo Clark’s death and its enormous wealth became a seven days’ wonder. I believe it is to-day reputed one of the best paying mines on this continent, which proves that the engineer knew what he was doing when he invested his all in its stock. Mrs. Ritchie evidently heard of the great mine, for she had Clark’s will probated and applied for letters of administration, which were granted her. For several years she has been receiving dividends on the stock—which is worth a fortune to Toby, by the way—and yet the woman has kept her secret and the money to herself. Never a penny has been applied to Toby’s needs or to his education.”

“Oh, how dreadful!” exclaimed Phoebe, who was really shocked at this recital of Mrs. Ritchie’s perfidy.

“Her intention. I suppose,” said the banker, “was to continue to retain these receipts for herself. Toby had no other relatives to interfere in his behalf; he was too young at the time of his father’s death to know anything about the mine, and I doubt if he knew—or yet knows—that he is in any way related to Mrs. Ritchie. The deception might have continued indefinitely had not the box been stolen and so, by a chain of curious accidents, the will of Alonzo Clark discovered by those interested in Toby.”

After the banker had concluded his relation all three were silent for a time, pondering on the remarkable discovery. Then Phoebe said:

“I cannot understand, in view of the fact that Mrs. Ritchie was deliberately robbing Toby, why she was so bitter against him, or why she had him arrested and is even now trying to send him to prison.”

“That is a natural sequence, my dear,” replied the governor. “The woman has been greatly worried over the loss of this document, which, falling into certain hands—such as those of Mr. Spaythe—would perhaps lead to the discovery of her perversion of trust funds, which is a very serious crime. Perhaps she thinks that in some way Toby Clark has himself gained possession of the will, but believes that if he is discredited and put in prison he cannot appear against her. Without Mr. Spaythe’s exhaustive researches no one in Riverdale would be likely to know that the mine described in the elder Clark’s will had become valuable. The will itself would mean little or nothing to Toby unless he had opportunity to investigate his father’s bequest. There was a fair chance of Mrs. Ritchie’s evading detection, even with the will missing; but Toby in prison would be more safe to her interests than Toby at liberty.”

“Toby mustn’t go to prison,” declared Phoebe, with energy.

“Certainly not,” replied Mr. Spaythe. “The boy must regain the position in society to which he is fully entitled.”

“Can’t we do anything to Mrs. Ritchie?” she asked.

“We’ll try,” said the governor, looking at his watch. “Just now dinner is waiting at the Daring mansion and I promised Judith I’d not forget it. But

this afternoon I'd like to drive over with you, Mr. Spaythe, to see the woman."

"I will be glad to accompany you," replied the banker. "We close at one o'clock on Saturday, you know; so at two, if you will be ready, I will call for you with my motor car."

"That will be quite satisfactory," said the governor, rising. Then he hesitated a moment. "May we take Phoebe with us?" he asked. "She has been so interested in this affair and has already accomplished so much in Toby's behalf that I think she is entitled to be present at the climax."

"I think so, too," answered Mr. Spaythe readily. "Do you care to go, Phoebe?"

"Yes, if you please."

Then she and Cousin John went home to dinner and the youngsters, who suspected something important was under way, were able to drag no information from their big sister beyond mysterious looks and sundry shakes of the head, which of course aroused their curiosity to the highest pitch.

"I think you might tell us, Phoebe," pouted Sue, disconsolately. "I always tell you *my* secrets."

Cousin John laughed.

"Listen, then," said he. "We've discovered that Toby Clark is innocent and that we can prove it; so he is no longer in danger of prison. That's more than Toby Clark knows yet. Furthermore, we have discovered that Toby is not a mere nobody, as everyone has considered him, but the owner of considerable valuable property. I say 'we' have discovered this, but really it was Phoebe who solved the whole mystery. Now, if you can keep this secret for a few days, until the newspaper prints the complete story, I'll take you into my confidence the next time I know a secret."

Don cheered and Becky clapped her hands in delight, while Sue cried ecstatically: "Bully for Toby!" and was promptly repressed by Phoebe, who was annoyed by such a wild demonstration in the presence of the great man. But Cousin John seemed to enjoy the outburst.

Judith has listened gravely and seemed surprised.

"Is this indeed the truth?" she asked.

"Part of it," replied the governor. "When Phoebe and I return from a little trip this afternoon you shall have the entire story, with all the details. You see, we're rehearsing a little show of our own. The play isn't entirely finished yet, for the last act is on and we must corner the villain before the final curtain falls."

This contented them for the time, for they really believed they had been taken into the great man's confidence; but when Mr. Spaythe's automobile drew up at the door and Phoebe and the governor entered it, they were followed by envious looks and much speculation among the Darings as to their errand.

"I hope," said Sue, anxiously, "the villain won't hurt Phoebe."

"Pshaw!" returned Don, with scorn, "villains never amount to anything; they're only put in a play to be knocked out in the last round."

CHAPTER XXV

HOW TOBY WON HIS HERITAGE

Mrs. Ritchie was hoeing that afternoon in her vegetable garden, which adjoined the spacious farmhouse where she resided. She was attired in a faded calico dress and a weatherworn sunbonnet, and her heavy leather shoes were rusty and clogged by constant contact with the soil.

There were several servants upon the plantation, and they were afforded an excellent example of industry by their mistress, who “worked like a hired man” herself and made everyone around her labor just as energetically.

The arrival of Lawyer Kellogg on his bicycle, which he had ridden over from Riverdale, did not interrupt Mrs. Ritchie’s task. She merely gave her attorney an ungracious nod and said: “Well?”

“I’ve come over to see you about the trial,” he announced. “It begins next Thursday, at Bayport, and I must know exactly what you want to do about Toby Clark.”

“Give him a long sentence—the longer the better.”

“He is sure to get that if we prove him guilty.”

She looked at him suspiciously.

“Why do you say ‘if’?” she asked.

Kellogg smiled.

“Any trial is uncertain, Mrs. Ritchie,” said he. “Unexpected things are liable to happen to change the probable verdict. I think we have enough

evidence against Toby to prove our case, but those terrible children have greatly influenced popular opinion by means of their parades and we can't tell who the jury will be, or whether we can depend on them."

"Can't the jury be fixed?" asked the woman, after some thought.

"It would cost a lot of money, and it isn't a safe thing to do," returned her lawyer, standing beside her as she hoed. "And that reminds me to speak of my own expenses and fees."

"Well, what about 'em?"

"You promised me a hundred dollars if I recovered the contents of your box. I've returned to you all your money, bonds and papers; but you haven't paid me yet."

"There's a paper missing."

"One. I do not suppose you intend to withhold my money on that account."

"Why not?"

"Because I should then sue you for it and the court would award me damages."

She gave a contemptuous snort.

"Do you want that matter of the box aired?" she asked.

"Do you want that will investigated—the paper which is missing?" he retorted.

Mrs. Ritchie laughed.

"I'll give you fifty dollars now, and fifty when you get that last paper," said she.

“You’ll give me a hundred now. The price of the paper was a thousand dollars.”

“Have you got track of it yet?” she asked quickly.

“No. I’m not going to undertake that trial for nothing, Mrs. Ritchie. There’ll be a lot of work and expense about it and, if you want Toby Clark imprisoned for stealing your box, you’ve got to pay handsomely for it.”

“How much?”

“I want a hundred dollars in advance and two hundred more if I win.”

“You’re a thief!” she snarled.

“No other lawyer would undertake the case at any price. It will make me very unpopular to prosecute Toby Clark.”

“You’re not much of a favorite now,” said Mrs. Ritchie. “Very well, I’ll give you a hundred dollars.”



“I’m not going to undertake that trial for nothing, Mrs. Ritchie. If you want Toby Clark imprisoned for stealing your box you’ve got to pay handsomely for it.”

“I want two hundred to-day. A hundred for recovering your property and a hundred in advance for the trial.”

She dropped her hoe and stared at him. Then she sighed.

“Come into the house. You’re a scoundrel, Abner Kellogg, and you ain’t earned half the money; but I’ll be generous.”

“No; you’ll be sensible,” he said, following her up the path. “You’ve got some secret that’s worth money to you, Mrs. Ritchie, and which you don’t care to have discovered; and it’s connected with Toby Clark.”

“That’s a lie.”

She ushered him into the front room and left him there while she went to get the money. When she returned she placed four fifty-dollar bills in his hand.

“Oh; cash, is it?” he said in a pleased tone.

“I don’t trust banks; they’re tricky. That’s all the ready money I’ve got in the house. The rest is in a new box with Miles Hubbard, over in Bayport.”

“Why didn’t you put it in my care?” asked Kellogg.

“Because you’re a dishonest cur.”

He reddened a little.

“Then why don’t you employ Hubbard to prosecute Toby Clark?”

“He wouldn’t take the case.”

“I see. Well, I’ve raised my price, Mrs. Ritchie. I want a hundred more in advance.”

“You can’t have it.”

“I think I can.”

“I won’t be bled, Abner Kellogg!”

“No; you prefer to bleed others.”

“You insolent pettifogger! What do you mean by that?”

“I mean that I want another hundred dollars—before I make a single move in this case.”

While she sat glaring at him an automobile stopped in the road before the house. The woman turned her head and through the window saw Phoebe Daring, Mr. Spaythe and a stranger alight and enter the gate.

“Tell ’em I ain’t at home, Kellogg,” she exclaimed in a half frightened voice.

“Better face the music,” said the lawyer, who had noted the arrivals. “If there’s danger, as I suspect, face it boldly. You can’t save the day by running away.”

“You stand by me, then, Kellogg. I’ll give you the other hundred when they’re gone.”

He smiled grimly, but there was no time for reply. The bell rang and Mrs. Ritchie went to the door.

“May we speak with you—on business—Mrs. Ritchie?” asked Mr. Spaythe.

“I’m busy with my lawyer. You’ll have to come again.”

“I’m glad your lawyer is here,” said the banker gravely. “I think you will need his advice.”

“What about?”

“If you will permit us to enter, I will explain.”

“Who’s this other man?” she asked curtly.

“The governor of the state.”

Mrs. Ritchie fell back and they all entered the parlor.

“Good afternoon, your Excellency,” said Kellogg, with a low bow. The governor did not know the man but he nodded to him.

“Well?” asked the woman in harsh, rasping tones.

“I have called to see you in regard to the Alonzo Clark will,” said Mr. Spaythe.

She sank into a seat, but the cold, hard look never left her face. If she was at all startled she retained her self-possession wonderfully.

“Who was Alonzo Clark?” she asked, as if to gain time.

“Toby Clark’s father; your second-cousin.”

“What about his will?”

“You are the administrator.”

“Well, that’s my business.”

“Not entirely,” remarked the governor, calmly. “Your letters of administration require you to fulfill the terms of the will—or the property will be taken out of your hands by the court. Also you are personally responsible for any—shall we say ‘irregularities’?—you have committed.”

“Well?”

“You have not fulfilled the terms of the will,” said Mr. Spaythe sternly.

“Who says so?”

“The will itself.”

“Somebody stole it.”

“That does not matter. There is a copy on file in the probate’s office. You have criminally disobeyed the injunctions of that will, Mrs. Ritchie, and applied such moneys as you have received, to your own personal use, instead of to the support and education of Toby Clark.”

“Toby Clark’s a thief, and he’ll go to prison for stealing my box,” she snapped.

“We will not discuss Toby now,” said Mr. Spaythe. “Your own case demands your first attention. The governor will tell you the legal penalty for embezzling trust funds.”

“State’s prison,” said the governor.

“Shucks! Tell him he lies, Abner Kellogg,” cried the woman.

“The governor is entirely correct, madam,” answered the wily attorney. “I trust, gentlemen,” he added, “you will acquit me of any complicity in this affair. I am merely hired by Mrs. Ritchie to prosecute the case of Toby Clark and know nothing of her past history or criminal acts.”

“Oh, you turn against me, do you?” she inquired angrily.

“I cannot defend you from so grave an offense, Mrs. Ritchie,” said Kellogg. “These gentlemen would not accuse you without proof, and the proof will send you to prison.”

She studied by turn the stern faces confronting her.

“What else have you got to say?” she asked. “If you wanted to send me to prison you would have me arrested, without taking the trouble to come here.”

“That is true,” returned Mr. Spaythe. “I will explain. By chance the will of Alonzo Clark fell into my hands and on behalf of Toby Clark I caused an investigation to be made. During the past seven years there has been paid to you, as administrator of the estate of Toby Clark, a minor, in dividends on stock, the total sum of forty-eight thousand, four hundred and eighty

dollars, up to the first of last month. You were entitled to retain ten per cent of this, provided you had performed your duties according to law; but since you have failed to do this the entire amount must now be paid over to the new administrator whom the court will appoint. And this payment must be made whether you go to prison or not.”

Kellogg was amazed. He looked at Mrs. Ritchie with a glint of admiration in his eyes. Forty-eight thousand, and she still grubbing with a hoe! Phoebe was also amazed by the immensity of the sum. She had not thought it would be nearly so large. She mentally figured that it meant an income of about seven thousand a year, which would make Toby quite independent.

Mrs. Ritchie did not deny Mr. Spaythe’s assertion. She knew it would be useless.

“That will is my property,” she said sullenly. “I can have you arrested for stealing it.”

“I will return the will,” said Mr. Spaythe. “It is no longer of use to me—nor to you, madam. Unless you voluntarily resign your trusteeship it will be taken from you, after a rigid investigation which will prove you guilty of embezzlement.”

“Suppose I refuse to give up the money?” said she. “You don’t know where it is, and you can’t find it. You can take this farm away from me, if you like, but it’s only worth about fifteen thousand. If I go to jail I can keep the cash I’ve put away—and have it to use when I get free again.”

“I believe,” said the governor, “you might be able to do that, and so defeat justice. But let us consider what it would mean. My experience enables me to state that your term of imprisonment would be no less than twenty years, and perhaps more. I doubt if, at your age, you would live for twenty years in a prison—you who are so used to the open air. So your stolen money would be of no benefit to you. On the other hand, you might effect a compromise with us and so keep the matter out of court. You have here sufficient property for all your needs and the income from your

plantation gives you more than a living. It occurs to me, Mrs. Ritchie, that you will find it more comfortable to end your days in freedom.”

She dropped her eyes in thought and stared at the carpet for a time. Then she asked gruffly:

“What do you demand?”

“First,” replied Mr. Spaythe, “you must resign as administrator and petition the probate court to appoint some one in your place. You must furnish an exact statement of the money received and turn over the entire amount to the new administrator, for the sole benefit of Toby Clark. In addition to this, we demand that you sign a statement, for publication, saying that your blue box was not stolen, but merely mislaid, and that you have recovered the entire contents. You will add that Toby Clark has been unjustly accused. I have prepared a statement to this effect which is all ready for you to sign, and the governor will witness it, so that it will never be questioned.”

“But somebody stole that box,” cried the woman, “and whoever it was ought to suffer for it.”

“Somebody stole Toby Clark’s inheritance,” replied Mr. Spaythe. “I do not think it necessary for one to suffer for either crime, if amends are fully made and no lasting evil can result.”

Mrs. Ritchie frowned. She looked from one to another and saw no signs of relenting in any face. Even Kellogg’s fat face wore a sneer as he regarded her.

So she surrendered.

“I’ll sign the papers,” she said.

CHAPTER XXVI

HOW PHOEBE'S CONSPIRACY TRIUMPHED

As they rode homeward Phoebe said thoughtfully:

“Who will break the news to Toby?”

Mr. Spaythe and the governor exchanged glances.

“I think that must be your task, Phoebe,” said the latter. “No one has done so much for Toby Clark as you, nor has anyone been so instrumental in establishing his good fortune.”

“I—I don’t think I could do it!” exclaimed Phoebe. “Toby is so proud and sensitive that he—he might make a fuss, and that would break me all up.”

Said Mr. Spaythe, after a moment’s thought:

“I’ll make it easy for you, Phoebe. I’ll give a little dinner party at my house, in Toby’s honor, on Wednesday evening and invite all those friends who have stood by him during his time of need. Then you can make a speech and announce the good news.”

“Just the thing,” commented the governor. “Wednesday. That will give me time to accomplish something I have in mind.”

And so the matter was arranged.

Toby Clark had grown more restless as the day approached when he was to be tried for stealing Mrs. Ritchie’s box. He knew of the recent evidence against him—the finding of the money and bonds in his house—and fully realized that his guilt would appear conclusive to a jury. He was ashamed to go out of the house except for a brief walk after dark and whenever he met

Mr. Spaythe or Eric at mealtime he would study their faces for some sign that would indicate hope. They seemed cheerful enough and laughed and talked as if no tragedy was pending; but both father and son refrained from mentioning Toby's trial in any way. The boy had not seen Phoebe since she had rescued him from the hoodlums; Sam Parsons kept out of sight; Mr. Holbrook, who used to visit him regularly, now remained absent, and so poor Toby imagined himself deserted and neglected by all his friends.

Wednesday noon the banker said at luncheon:

"Toby, I'm giving a little dinner party to-night and I want you to be present."

"Oh, sir! I—I——"

"Not a word, Toby. I won't listen to any excuses. You will find the guests old friends and must be prepared to assist me and Eric to entertain them."

The boy was astonished. He had never known Mr. Spaythe to entertain anyone before and this dinner party, given on the eve of Toby's trial, seemed to him a cruel mockery. But he could not refuse Mr. Spaythe's request, having been a guest in the banker's house for so long and knew he must face these people as bravely as he could. He wondered, vaguely, who would come to the Spaythe dinner party, and toward evening grew very uneasy and despondent.

The first arrival was Janet Ferguson, and the sight of his old employer's daughter did much to relieve his nervousness. Then came Nathalie Cameron and Lucy Hunter and following them closely he heard the eager voices of "the Daring tribe," including Miss Eliot, Phoebe, Becky and Don. These were first greeted by Mr. Spaythe and Eric and then engaged Toby in conversation, surrounding him in a group—as if he were the hero of the occasion, he reflected bitterly, instead of an accused criminal in danger of a prison sentence!

From his seat in the long drawing-room Toby saw Mr. Holbrook arrive, and then Sam Parsons and Will Chandler—surely a mixed assemblage. Mr. Spaythe had refrained from inviting Hazel Chandler and Dave Hunter,

thinking the ordeal would be too severe for them. Finally came Doris and Allerton Randolph and then Mr. Fellows, the editor, and with these the list of guests seemed complete, for they were all straightway ushered into the dining-room to partake of an elaborate feast.

Toby was in a daze. He could not understand it at all. On all sides were bright and happy faces and no one seemed to remember that on the morrow he was to be tried in open court as a thief.

With the dessert Mr. Spaythe looked up and said casually, but in a voice loud enough for all to hear:

“I believe Phoebe Daring has a few remarks to make to us, and this seems a good opportunity to hear her.”

Phoebe rose from her seat, rather red and embarrassed at first, as she marked the sudden silence around the table and the earnest looks turned upon her. But she resolved not to falter in the task she had undertaken.

“This is a joyful occasion,” she began, very solemnly—so solemnly that Becky giggled. “We have met, at Mr. Spaythe’s kind invitation, to extend congratulations to our friend Toby Clark.”

Don thought this a good time to yell “Bravo!” but the reproachful look of his sister promptly “squelched” him. Toby stared at Phoebe in wonder, but she refused to meet his pleading gaze.

“It is a joyful occasion,” she resumed, “because the absurd charge trumped up against Toby has been withdrawn, as perhaps you all know.” It was news to Toby, indeed! “Mrs. Ritchie has issued a signed statement, which Mr. Fellows is going to print in the paper, saying that she was mistaken about her box being stolen, as it was merely mislaid. Her property has all been recovered and she is very sorry that poor Toby was ever accused of a crime that neither he nor anyone else ever committed.”

There was something of a sensation around the table, for few had known of this statement until now. Toby was trying hard to comprehend his good fortune. He could no longer see Phoebe because his eyes were full of tears.

“Just before I came here this evening,” continued the girl, “I received a telegram from our governor, dated from the state capital. I will read it to you.” She unfolded a telegram and read in a clear, deliberate voice: “‘Probate Judge Fordyce to-day appointed Duncan Spaythe administrator of the estate of Toby Clark, and his guardian. Congratulations to all concerned.’”

An intense silence followed. A secret was here disclosed that had been unknown by any but Phoebe and the banker. Curious looks were cast upon the girl and then upon Toby. The lame boy half rose from his chair, pallid and shaking in every limb.

“I—I haven’t any estate,” he said. “It’s all a—a—cruel—joke! I——”

“Sit down, please,” said Phoebe. “I believe you were as ignorant as the others—as we all have been until recently—concerning this estate, which was bequeathed you by your father, Alonzo Clark. The preposterous charge against you led us to a rigid investigation of the Clark family history, and we—your friends—discovered that a certain mining property once owned by your father and left to you by his will, had become very valuable and for the past seven years has been paying you big dividends. So in your case trouble has led to prosperity. As you are not yet of age, it was necessary that an administrator and guardian for you be appointed by the court. The governor kindly interested himself in this matter, with the result that Mr. Spaythe is now your guardian and the custodian of all the money belonging to you.”

Phoebe, quite breathless now, sat down. Mr. Spaythe rose from his chair and was greeted with cheers.

“Around this table,” said he, “are gathered only loyal friends of Toby Clark—those who have supported him and watched over his interests during the past two months, the darkest period in his young life. Especially do I wish to congratulate Phoebe Daring and the energetic organizers and officers of the Toby Clark Marching Club for their good work on behalf of our young friend, who has so unjustly suffered because of a false accusation. But Toby’s troubles are over, now; for all time, I hope. Once more his good name stands unsullied in the eyes of the world. He has

proved his mental caliber and courage by the manly way in which he has faced the wicked charge brought against him. With ample means, such as he now possesses, to back his highest ambitions, I predict that Toby Clark will in time become a great man and a power in our little community.”

The banker stood bowing until the thunderous applause that greeted his speech subsided. Becky smashed a plate by pounding it upon the table and no one reproved her. Then she pinched Don’s leg and his howl merely increased the sounds of jubilation. When, at last, comparative quiet reigned, Mr. Spaythe said:

“We will now hear from Toby Clark.”

Toby, still bewildered but trying to grasp the reality of the good fortune that had befallen him, responded in a few broken words:

“You won’t hear much from me,” he said, “because my heart is too full for anything but gratitude for the kind friends who have done so much for me. I wasn’t worth all your interest in me and trouble on my account, you know; but I’ll try to be more worthy in the future. I—I’m very happy and—I—I thank you all!”

More wild applause, and then Don’s voice was heard asking:

“Say, who gave the Marching Club that fifty dollars?”

“I did,” replied Mr. Spaythe, “and it was the best fifty I ever invested. But,” he added with a smile, “I’ve an idea of charging it to the account of Toby Clark.”

Here Mr. Holbrook rose to his feet.

“Toby Clark once applied to me for a position in my office,” he said, “and I was obliged to refuse him. But as my business is growing nicely I would now like to have him for my clerk.”

“No,” said Toby, with something of his old-time whimsical humor, “I must refuse the nomination, with thanks. I’m going to college. Some day,

though, I'll be a lawyer, too, Mr. Holbrook, and then—who knows?—we may go into partnership together.”

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Punctuation has been standardised. Changes to the original publication are as follows:

- Page 76
spoke argumentively and there
changed to
spoke [argumentatively](#) and there
- Page 135
Don broke in the assist her
changed to
Don broke in [to](#) assist her
- Page 185
look in the faces o' them childern
changed to
look in the faces o' them [children](#)
- Page 269
fiancè. I can see no *changed to*
[fiancé](#). I can see no
- Page 280
and there were afforded an
changed to
and [they](#) were afforded an
- Fourth page of book catalogue
designs by Dan Sayre Grosbeck

changed to
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- Seventh page of book catalogue
Aero-Plane changed to
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